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Loudoun County Board of Supervisors, Special Business — Western Loudoun Rural Uses, Monday, May 4, 2026

Date Monday, May 4, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 6h 48m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8173>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8173>

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[00:04:46] Please. Thank you. Where's Caleb? He's in the bathroom. He's in the back. Okay. Hi, everyone. I'm going to call the meeting to order in just one second. But before I call the meeting to order, I'm going to take a moment, a personal privilege and say that Jason is graduating. His last class for college is Thursday. He is the first person in his entire family ever to graduate from college. And I wasn't going to let this moment go by without us saying thank you to Jason.

[00:05:22] Okay, thank you. Yeah, we're so proud of him. Okay, good afternoon supervisors, good afternoon staff, and good afternoon Loudon. I'd like to call to order the May 4th, 2026 Loudon County Board of Supervisors special business meeting.

[00:05:51] This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one. If you do not mind, would you all please join me in the Pledge of Allegiance. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, liberty, and justice for all.

[00:06:24] Okay, I've got to say all this stuff before we start, and then we will start. So, over the past weekend, especially this weekend, we have received hundreds of emails, and we have been on all the Facebook pages and everywhere.

[00:06:47] And I just want to remind everybody that this process is Aurora, and so this is, you can kind of consider tonight, kind of like we're coming out of halftime. We are not making final decisions tonight. We will be giving staff some language to go forward with.

[00:07:07] But this is not the night that all decisions are being made. If you imagine that, say, the first quarter was us kind of setting up the game and the staff telling us to go find stakeholders to have the very many stakeholder meetings.

[00:07:22] That was the first quarter. And then all of the stakeholder meetings of which we've been doing this now for almost two years. That's the second quarter. We went in the halftime, and during halftime we had a lecture from the coach, which is all of you all who've come to speak so many times have told us on either side or whatever what you want to see.

[00:07:42] That has been the coach's speech, and we have heard those speeches. We are now coming out of halftime, and we're about to start the third quarter. And what we would be doing the third quarter is we would do tonight's meeting, and we would hold tonight's meeting, and we would give the staff language to go forth with.

[00:08:00] But then it goes to a, I would call them kind of almost fresh players who, you know, have some, haven't seen the item yet. And it's going to go to Zoc. And the Zoc will hold on to it from hopefully no more than six months while they work through it.

[00:08:16] And then it goes to the Planning Commission. So Zoc is third quarter. Planning Commission is beginning the fourth quarter. At the end of the fourth quarter, it will then come back to us for the final touchdown or the final home run or the three-point shot that wins the game, or whatever you want to say.

[00:08:33] So please know that there will be a lot of time left between here and probably a whole year from now when we will complete this. And during all that time, we will have and continue to take public comments.

[00:08:49] I know that just over the past five days alone, I've met with five different groups. We will continue to have meetings. We will continue to make phone calls. All those things will happen, and I cannot say how much we appreciate how involved you all have been.

[00:09:06] I say all the time, Western Loudoun County is about 16% of the population and about 70% of my emails, and that's the truth. And we really appreciate and want to continue all the feedback because we need that as we go forward. But tonight is not the night.

[00:09:22] Tonight is not the three-point shot that was made that beat Duke. Everybody watch that game. So we will be doing this for the next many months.

[00:09:39] I also want to say, colleagues, two things. One, this meeting is going to be hard to chair tonight. There's a lot of stuff going on. There's a lot of moving parts, kind of a confusing docket. And I'll let you all know just a second how I plan on doing the meeting or running the meeting this evening, but I'm going to ask you, beg you, beseech you, whatever, if you can please keep it down on the dais. I really appreciate it so I can focus on the meeting.

[00:10:06] I also want to let everyone know, both my colleagues and the county know that items one and two that were on the agenda this evening are both the items that are about what we then called proactive

zoning. When we did the budget, we took that out already and we put three positions in place for zoning compliance. We haven't even hired those positions yet. And so what that will

[00:10:43] look like, and it would be a countywide, those compliance officers will be countywide, not just Western Loudoun County what that will look like will come back to us in on June is it June 3rd everybody June 2nd June 2nd. And so items one and two which is about proactive zoning is literally old language we're not even using the term proactive zoning anymore and that's and we wouldn't have proactive zoning enforcers that's not that's not what we would even call them and the positions have been hired or will be hired already.

[00:11:17] And so those two items, we will not be discussing tonight because they're going to go to the meeting in June. Colleagues, this is how I'm going to order the meeting tonight. I'm going to have the staff do their presentation, and then we will ask staff questions.

[00:11:33] And the reason I'm doing that is because I think it's hard for -- it may be easier for all of the constituents and citizens who came to the room, they might want to see the presentation first and even hear our questions before they make their comments, because their comments may change or adjust based on what the presentation is and based on the questions that we ask.

[00:11:57] And so we do the presentation, they will make their comments, we will ask questions, and then we will go to public comments, and we will do all public comments before we take a break. We are not going to take a break until we're finished public comments. And then when we come back from public comments, I'm sorry, come back from our break, I will describe to you all at that time how I plan on getting through all 57 items on this agenda.

[00:12:27] Many of them can be put in a one bulk motion, and I will describe how that's going to look. We do know that there's probably like four or five things that is going to take the bulk of our time tonight, but it doesn't have to be everything at one time.

[00:12:45] And so that's the order that we're going to do it, but we're not going to take a break until everyone who has signed up to speak has spoken. Before I go to the staff, Mr. Hempstead, do you have any comments for tonight at all? You're good? I'm good.

[00:13:00] You're good. Staff, thank you for all the work you've done on this. Thank you for even just one hour ago being in my office to talk through tonight's agenda. I know how hard you've worked. We really do appreciate you. And now that we're out of the dugout or the locker room or whatever you want to call it, we're ready to start the second half of the game.

[00:13:22] So let's go. Thank you, Madam Chair.

[00:13:43] Tonight we will be discussing the Western Loud and Rural Uses and Standards Project. I'd just like to give you a brief overview of where we've been. and where we're going to be going. This project was authorized in September 2024 at the board business meeting.

[00:14:05] The project really came about as a result of work through the zoning ordinance rewrite where it became clear that, well, the residents and several interest groups felt there needed to be more work done on the rural area zoning requirements The county made the decision that there was not enough time during the zoning ordinance rewrite to properly give the attention that Western Loudon deserved regarding the ordinance amendments.

[00:14:37] So this project was born as a result of that. So a lot of the input we had during the zoning ordinance rewrite helped inform this project going forward. But even going before that, predating the zoning ordinance rewrite, a lot of these issues had been discussed significantly.

[00:14:55] through many different groups in the county. And all of that information was used to basically formulate questions and discussion points that we held during the stakeholder meetings. But if you look at the bullet point list here, the primary areas of focus on the slide are really what I would say took most of TELUC's time.

[00:15:22] There were several other items that we did discuss, but much less significant. I would say everything on this list is probably what we would consider to be the most heavily debated issues as we went through this project. The Transportation and Land Use Committee's role originally during this project was to simply facilitate public input.

[00:15:48] The board had scheduled originally seven stakeholder meetings where industry and residents, as well as agricultural and conservation concerns could be expressed at these stakeholder meetings.

[00:16:04] We ended up adding one additional stakeholder meeting during the process. During that time I think it became relatively obvious to the TLUC that there was certainly a number of differing opinions regarding all of these issues and it was decided that in addition to the public input stakeholder meetings we would hold three specific direction meetings at TLUC.

[00:16:29] Those direction meetings were held in January and March of this year and those meetings were simply to allow TLUC to formulate, formalize official recommendations that would be sent forward to the board of supervisors that would give the board some actionable recommendations for staff to recommend for staff direction as we proceed forward with this project so that's where we are tonight on at this board meeting we are going to be reviewing the TLUC recommendations

[00:17:06] and hopefully staff is hoping that we can come out of this with some clear direction as far as how you would like us to proceed with the zoning ordinance amendments. Following this meeting, staff will begin drafting text and have that text reviewed by the Zoning Ordinance Committee.

[00:17:28] We're anticipating going at least six meetings going through December of 2026. Following Zoning Ordinance Committee's review, it would go to the Planning Commission where there would be an official public hearing projected for the spring of 2027, followed by work sessions at the Planning Commission.

[00:17:48] We are currently anticipating a board public hearing for September 2027 with final adoption by December 2027. And again, that's a tentative date, always subject to change.

[00:18:06] Going forward, we certainly didn't have enough time to make a presentation on every single recommendation. We, as the Chair indicated, 57 recommendations, but we would like to essentially hit what were questions that were raised at TLUC and perhaps some issues that staff did not agree with TLUC on and has an alternative recommendation.

[00:18:33] But before I do that, one of the questions that was raised at TLUC was what is the county's legal authority as far as regulating some of the ABC uses in the county, those being farm wineries, limited breweries, limited distilleries.

[00:18:52] As a result of that request, staff did sit down with ABC for a second time during this process. We went through several of the issues and we got their feedback and opinion. And Jason Hobby is here to talk about the county's legal authority to regulate those uses.

[00:19:16] As Brian mentioned, our office researched the matter, and we also met with ABC, and based on our discussions, we're comfortable that the county has legal authority to regulate the land use impact and aspects of the ABC uses.

[00:19:33] ABC primarily regulates the licensing, and by the ABC uses, I'm referring to the farm wineries, limited breweries, and limited distilleries that are the subject of this ZOAM.

[00:19:45] ABC regulates the licensing and the locality, Loudoun County can establish permissions themselves regarding the land use of these uses and we're comfortable that aspects such as hours of operation, events, occupancy, attendance, maximum structure size, minimum site size, access, setbacks and other matters that may come up during the course of discussions properly fit under the county's land use authority, and the constraints on that authority would be presented by 15.2, 2288.3,

[00:20:25] and the slide up there mentions that the primary constraint, which is that any kind of permission standards we establish are to protect against substantial impacts to public health, safety, and general welfare. Can you say that last part again? Can you say that last part again?

[00:20:51] The primary impacts... Sorry. Our permissions and standards need to be based on protecting from substantial impacts to public health, safety, and welfare that may be caused by the uses.

[00:21:18] I'm sorry. I need just a moment. And I, okay, so are you saying that anything that this board decides based, any use that this board decides based on our operation, that type of thing, has to be based in whether we think there is a danger to health, safety of citizens as it comes to ABC law.

[00:21:42] Is that what you're saying? The code provisions use the term substantial impact, but. Substantial impact. Yes. Okay, all right, that helps. All right, thank you. I'm sorry. Okay. I had not seen that before. When we met with ABC, they were very clear.

[00:21:58] As far as land use goes, that is the municipality's jurisdiction. It is not something that they get involved with. Okay. Madam Chair, if I may, general land use considerations are health, safety, and general welfare.

[00:22:17] And so when you adopt a Roy, you'll always notice that that's in there. Yeah. So it's the land use criteria. Yeah, I understand. I just want to make sure I understood. Thank you. Madam Chair, with your permission, I'll skip Issue 1 since this will be discussed in the future.

[00:22:35] And Issue 2. Well, yes, the first two recommendations would be Issue 1. Yeah. Yes. Okay, moving on. Like I said, we did have some issues where there was questions that were raised during TLUC. The second issue was a question raised by Supervisor Kirchner, I believe, as we were discussing the spring feature protection setback.

[00:23:01] This particular item is associated with TLEC recommendation number five in your packet. Currently in the zoning ordinance, there is a 300-foot setback for areas only within the mountainside overlay district.

[00:23:16] So if the mountainside overlay district meanders, the only portion of the spring feature protection setback that would apply would be that portion in the mountainside overlay district. What is

being proposed is a reduction of that 300-foot setback to a 100-foot setback for all areas in the spring feature protection area, regardless of whether it's in the mountainside overlay district.

[00:23:43] The question was, you know, what kind of impact would this have on existing structures in the area? And what we did was we went back and we looked. Since this was a new provision that was developed in 2024 during the zoning ordinance rewrite, we looked to see if there were any new structures built that would be impacted by this change.

[00:24:07] We did not find any. So essentially the answer is there would be no impacts as a result of this change. I would like to, let me go here, I would like to basically just kind of give you a general overview of what we were proposing with this as there has been a lot of discussion and back and forth regarding this particular recommendation.

[00:24:31] Why is the staff recommending a reduction from 300 feet to 100 feet? If you look at the graphic on the left, That is what the current ordinance requires. You'll notice everything that's in a colored area, red or yellow, is in the mountainside overlay district.

[00:24:48] If it's just an aerial photograph, that is not part of the mountainside overlay district. So the spring feature protection is only regulated for those areas in the mountainside overlay, the colored areas. you'll see that some of those areas come very close to the spring feature that we're trying to maintain a setback for.

[00:25:10] If you look at the area on the right, that's what we're proposing. You'll see that it's a much more uniform protection area. Whether it's in the mountainside overlay district or not, the spring feature is going to have a required setback of 100 feet.

[00:25:29] So with the old one, you could actually have a 300 foot setback in the mountainside overlay district and right next to it, you could have a zero setback, zero foot setback right next to the same spring feature. So what we're trying to do is eliminate that difference between and have a more uniform standard essentially.

[00:25:52] Now, obviously, if the entire piece of the spring feature is entirely within the mountainside overlay district, it would just simply be a reduction in the setback from 300 to 100 feet. But again, staff felt this was not only a good compromise for making the regulations more reasonable, but also getting a more uniform protection in the area.

[00:26:19] Moving to issue number three, there was a question raised during TLUC, I believe by you, Madam Chair. Regarding the discussion around tiny homes, that was a discussion related to farm labor housing.

[00:26:36] The problem at hand, staff have found that most of the farm labor does not live in Loudoun County due to the cost. Most do live in Winchester. So the challenge we've had is trying to find a way to allow for additional housing options for agriculture workers in the area.

[00:26:59] One of the proposals was to look at some different types of houses, such as tiny homes on wheels, as a tenant dwelling in the rural zoning districts. the question was if we did allow tiny homes at a certain level for agricultural operations would this impact uh policy in the in eastern loudon the simple answer is no it would not simply because the the tiny tiny homes on wheel being permitted would be permitted as a tenant dwelling in the

[00:27:34] rural zoning districts only on parcels that maintain agricultural operations issue number four. You'll see in the packet there's three issues that, well there's four issues that's where staff had a differing recommendation. Three of those were related to hours of operation. You'll see TLUC recommended hours of operation Monday through Thursday 7 a.m. to 10 p.m. and Friday, Saturday, Sunday from 7 a.m. to 11 p.m. Staff is in a disagreement with that Sunday time so we were

[00:28:14] We're essentially recommending that Friday and Saturday maintain 7 a.m. to 11 p.m. requirement and Sunday be pushed back to 10 p.m. If you look at the current hours of operation right now that are in effect for the bed and breakfast, homestay inn, and country inn requirements, you'll see it is somewhat scattered.

[00:28:39] We're looking to create hours of operation that are more consistent throughout the county, the rural area anyways. So again, we were recommending that we dial that Sunday time frame back to 10 p.m. rather than 11.

[00:28:59] Moving to issue five, this one was an issue that there was quite a bit of debate on, established for, this is related to farm wineries, limited breweries, and limited distilleries, but essentially it would give the ABC uses the ability to hold private parties and events related to product sales, usual and customary for these businesses in Virginia as accessory uses with no limitation on the number of such provided they are consistent with alcohol laws in Virginia and to enable enforcement of existing noise, parking, and lighting.

[00:29:34] So essentially there would be no limit. The main restrictions would be noise, parking, and lighting regarding these activities. Again, as Jason noted, the county does have the ability to regulate the land use and operations of these uses in the county.

[00:29:54] We do not support the private parties and events without limitation. That's not to say we don't support private parties and events. We had quite a bit of discussion with the industry related to this topic, and we agree with them that this is something that is very important to the operation of those uses.

[00:30:14] However, we are of the opinion that there should be regulations surrounding these that are based on site-specific conditions and the intensity of the use. We feel that if we were to permit unlimited number of events, it may result in increased traffic on rural roads, increased issues with parking constraints, potential noise impacts, and public safety concerns related to emergency access.

[00:30:46] And from a public health, safety, and welfare issue, we feel, especially over the long term, as the county continues to grow, we want to make sure that A, these businesses do have the ability to grow and thrive, and B, we want to make sure that we don't get into a situation where some of these banquets and large-scale events become the primary uses on the property, where right now we're trying to ensure that the agricultural use on the site is the primary use on the property.

[00:31:23] So again, looking back at our, we have several, there are several recommendations that TLUC forwarded. Staff believes that TLUC recommendation number 22, and for the most part, TLUC recommendation number 32, Gives staff adequate direction to ensure that these types of uses are regulated and managed in an appropriate and responsible manner.

[00:31:50] And we feel that it would ensure that we can maintain bona fide agricultural production as a principal use without letting some of the ancillary uses that could occur, ensuring those are just secondary to the primary agricultural operation.

[00:32:12] So with that, we do have a recommendation of approval for the resolution of intent to amend the ordinance. We would recommend approval of that as attachment one in your packet. In addition, staff is recommending approval of motions one through 19, 21, 22, 24 through 33, 35 through 49 and 51 through 57.

[00:32:38] Again, there are the four motions I previously spoke about, the three regarding hours of operation and recommendation 20 that staff does not support. But with that, I would turn it back over to you, Madam Chair.

[00:32:53] - Number 57 is the wrap-up motion? - Yes, correct, yes. - Supervisors, especially my colleagues in finance who may not be as familiar with this with these items if you need two rounds of questions we can do that if you don't you know but if you need two rounds of questions we can do that so if you have questions please put your light on miss Brixman thank you madam chair can we go back to the number of events slide explore the recommendations that staff was talking about for the

[00:33:27] number of events. Slide 14. Let me see if I if I'm hearing correctly what you said. Staff does not want staff is not recommending unlimited but it sounds like staff wants to have use specific limitations on the number of events. Am I hearing that correctly? Yes. So the idea would be that the board would agree we want use specific limitations on the number of events and then after the Roy staff would go and make recommendations for specific can you describe

[00:34:02] what those uses might be the specific uses might be where we would want to limit or not limit events or where staff might make recommendations for event limitations like categories so for this specifically this would be for the wineries the farm wineries limited breweries and limited distilleries this recommendation that we were talking about I mean there was other there were other motions that involved private parties and events for the lodging uses as well as the equestrian

[00:34:36] uses. Okay that's a type of venue but it sounds sounded to me like we wanted to limit types of events. Well what I would add to what Dave said is there are there's specific requirements that are associated with these uses, such as a farm winery. Agritourism would be an ancillary use to a farm winery. Within the agritourism requirements, there would be specific requirements

[00:35:12] related to banquets, wedding events, things like that, large-scale private parties. Okay, so depending on the venue that you have, whether it's a main type of use and or ancillary ancillary, thank you, ancillary use, there may be different recommendations for the number of events you could have? I think we would be looking, yes, yes, but we'd be looking at like the scale,

[00:35:48] the intensity, site size, structure size, setbacks, that kind of thing. Okay, and then Can you explain to me the difference between recommendation 34 and recommendation 20?

[00:36:08] I guess the difference is guest activity versus number 20 is other types of events. Recommendation 34 is specifically related to hours of operation.

[00:36:28] Recommendation 20 is specifically related to. I'm sorry, 23. Excuse me. It's 23 and – sorry, Madam Chair. Yes. 23 is related to the – essentially the bed and breakfast uses, and 34 is related to the ABC uses.

[00:36:46] Essentially, TLEC made a recommendation on four hours of operation for three use categories. The equestrian event facilities and livery stables, the ABC uses, and the bed and breakfast uses, the

lodging uses.

[00:37:02] All right, thank you. If you want another round, we can do another round. Mr. Kirshner. Thank you, Madam Chair, and thank you, staff, for coming forward. I wanted to hit on, as you can only imagine, my motion that you're picking on, because you did touch on it in your opening. So let me just ask a couple questions, because as a lawyer, I went and looked at the statute, and I looked at it pretty carefully, and I'm glad you met with ABC about this, and I have never disagreed that you don't have the power to regulate certain zoning aspects.

[00:37:31] But when I read the farm bill and I read the statute in Virginia, it seems pretty darn clear that local restrictions, and I'm going to read the statute, local restrictions on activities, events, and farm wineries licensed in accordance with Title IV to market and sell products shall be reasonable and shall take into account the economic impact on the farm winery of such, farm winery of such restrictions, the agricultural nature of such activities and events, and whether such activities and events are usual and customary for farm wineries throughout the commonwealth then it goes on to say usual and customary activities

[00:38:07] and events of farms wineries shall be permitted without local regulation unless there is quote and this is really i think what we're going to have to key on when we when we get down into the and i quite frankly don't think this board should be getting into quote substantial impact on health safety and welfare of the public that's something that should probably be looked at far more closely and not prescriptively by us, far more closely by the Planning Commission, ZOC, and before it ever comes back to us.

[00:38:36] So do you disagree that that is what the statute says, Mr. Hovey? That's what the statute says regarding the farm wineries. Right, and then, of course, most of those protections, of course, are in on the breweries, not all of them.

[00:38:52] I grant you the farm wineries are protected even more. But in your opening, you said, hey, we can regulate. And I just want to make it clear for my members who maybe are not lawyers and understand some of the lingo and that we're kind of throwing around here is we have to demonstrate there's a clear economic, we have to look at the economic impact, you would agree, correct, on any regulation that we have.

[00:39:15] And we have to prove that there's substantial, that it's substantially, there's a substantial impact on health and safety before we start regulating these things. Economic impact needs to be considered and yes. Okay. So have we, and just out of curiosity, when we've been going through this, I don't remember any discussion that's occurred from staff or even up here other than kind of what the economic impact would be on some of these regulations that have been suggested.

[00:39:45] So do we know what the substantial impact is at this point, or is that something that's going to be looked at by staff going forward as we build out what these regulations ultimately look like? I say the latter. Again, this is just the resolution of intent to amend, and we'll certainly be examining economic impact as the regulations develop, and permissions develop.

[00:40:04] And I appreciate that. I think we're going to hear a lot from some of the businesses tonight. I see a lot of them in the audience, and so I hope that we as a board obviously look at that, because I don't want to run afoul of state law. Thank you, Madam Chair. Well, we don't want to run afoul of state law either. We don't want to afoul either, my colleague, who's also an attorney.

[00:40:24] Mr. Crony? Thank you, Chair Randall, and thank you, staff, for the very informative staff report this time. You've done an excellent job detailing all of the information and issues. So our zoning administrator has interpreted the Code of Virginia provides for usual and customary activities and events at a winery or brewery, But our zoning administrator has consistently interpreted wineries and breweries being separate uses from a restaurant or banquet event facility.

[00:40:57] So as you look towards developing regulations, and maybe this is a question from Judy, do you still see weddings as needing, 'cause they're very large events, a banquet event facility approval, it's a minor spec?

[00:41:13] - I think that's really the crux of the issue. At what point is a large event Does it, is the threshold hit where it is no longer accessory to agriculture, but it is its own second principal use as a banquet event facility. Right. And usual and customary, what have we always considered that?

[00:41:32] Is that like a happy hour, you know, music, music venue, music, you know, we're playing music. Right. The way the zoning administrator has interpreted that over the past few decades is it's more of a tasting room. Smaller venues like that, not a wedding or event with hundreds of people.

[00:41:55] It's more like a tasting room. Right. And would a banquet and event facility approval require a site plan and potentially building codes and fire safety codes when it's being reviewed? Yes, that would require a site plan and even a minor special exemption for a banquet event facility.

[00:42:16] that would give the board an opportunity to look at potential impacts and impose conditions to mitigate those impacts, traffic, parking, things of that nature, site access. Right, right. Okay. And do you see agritourism, including weddings, or is that going to be more related to agricultural operation when we do that? Yeah, we haven't fully fleshed that out, But in discussions, it's agritourism could definitely include those events to a certain degree.

[00:42:53] We just have to flesh out exactly what we mean by that. Again, we're at the beginning. We don't have all the details. But it's certainly a component. And we recognize, like Brian said, it has become more and more customary to these uses.

[00:43:10] So we want to come up with something that works. Okay. On to another topic. Does the Limestone Overlay District have a spring feature protection setback? Do you know? And what is that? I believe that's only specific to the Mountainside Overlay District.

[00:43:27] Oh, okay. I thought they also had that setback. Supervisor Dr. Courney, I believe there is a karst feature setback in the Limestone Overlay District that you may be thinking of. And that does, I believe, a spring and I forget what the other one's called, a swallet, are types of karst feature involving running water.

[00:43:46] And there are certain setbacks that apply to those, if my recollection is correct. Okay, thank you. Mr. Sainz. Thank you, Madam Chair. Thank you, staff, for the presentation. I'm sure we'll hear more from you guys as we get going. Does Eastern Lodden require banquet facility registration for events?

[00:44:09] Yes. You have to establish the banquet event facility use. And depending on the zoning district, it might be permitted special exception or minus special exception use. So you're saying if, say, for example, Lansdowne or another hotel in Eastern Loudoun, if they're having a wedding or a private function, they have to get it?

[00:44:29] As long as they're operating under the guise of their approval, then they would not require a separate registration for their particular, for an individual wedding. So would that hold true for a banquet facility in Western Loudoun?

[00:44:46] Yes, if you establish the banquet event facility, then when you get that minor special exception, that's when the parameters for that would be set. So then if you have... I'll bring your mic a little closer to you, sir. Sorry. That's okay. But yes, it would be the same. If you say in AR1, it would be a minor special exception to establish the banquet event facility use.

[00:45:07] And once it comes to the board, that's when you would discuss the parameters for events. Okay. All right. All right. How does staff regulate... Well, we haven't talked about distillery, so I'm not going to ask that question. Actually, I will ask that question.

[00:45:33] It's right here. All right. How does staff regulate distilleries that are located in the county right now? They're considered most similar to a limited brewery, so they're regulated under the limited brewery requirements. All right, thank you.

[00:45:53] Thank you, Mr. Turner. Thank you, Madam Chair. Well, my sympathies to the members of the Finance Committee. I've been doing this for two years, and now I'm confused, so I fully sympathize, and I apologize. This is just the land we've lived in for this two years. On number 20, I want to clarify here.

[00:46:11] My impression is what you're saying is right now 20 and T-LUX recommendation was an unlimited number of vents. Correct. Okay. And you are saying you should limit the number of vents in accordance with the limitations established for agritourism events subject to as an accessory used to bona fide agriculture events.

[00:46:33] But you're not saying we want to redefine farm wineries, limited breweries, and limited distilleries as agricultural activities. You're just saying we want to apply those limits to this use. Correct. Well, I mean, actually what we're saying is we don't want recommendation 20.

[00:46:52] we would like to see Recommendation 20 stricken from the record because we feel that the other recommendations that TELUC has presented would give us the proper direction to ensure that those uses are regulated in a great lead into my next question. My chief of staff caught that so you'd be happy if we did away with the Recommendation 20 because you feel the sufficient limitations are incorporated in the next in the other two Yes motions items correct okay that's what i thought um on the 100 foot setback i remember that discussion i remember the map so the situation we have right now is there's a 300 foot setback in sensitive areas i can't remember the exact terminology but it's sensitive but because of

[00:47:32] the topography maps some of that topography which requires no setback can actually come up adjacent to the 300 foot setback area so you don't have a full circle or a 300 feet you have some truncated thing where there's going to be no setback. So you basically threaded the needle and said, "Let's make it a 100-foot setback across the board," and that gets a whole lot better in some areas, even though it sacrifices 300 feet.

[00:47:57] Here's my long-winded question. I had a very good email from, I have to believe, a hydrologist expert who said, "Yeah, but a 100-foot setback in a highly sensitive mountain overlay district is different than a 300-foot setback and could have a substantive impact on the quality of the filtration at 100 feet.

[00:48:14] Do we have any data suggesting that 100 feet is, from a scientific or engineering standpoint, relatively insignificant compared to a 300-foot setback? We don't have any of that information. What we would say is that, you know, in light of the feedback that we got, you know, going back to the 1993 regulation of 100 feet, it seemed to be a fair tradeoff in the distance versus, you know, right now, which is 300 feet or in some circumstances zero feet.

[00:48:47] not in others okay um and then the last one is i have heard really quickly i've heard a minor specs costs a hundred thousand dollars and takes a year is that reasonable can you talk to that well we can't speak to the costs of hiring a design professional i can say that you know as far as approval fees go it does not cost a hundred thousand dollars but you know judy if you had a

[00:49:14] Judy, did you have something you want to, you have to turn your mic on.

[00:49:34] The fee, the \$100,000 that you're talking about is what Brian said, associated with the engineering costs. The actual minor special exception fee paid to the county is more in the \$8,000 range currently.

[00:49:53] Okay. Thank you. We'll come back. All right. So, yeah, back to the discussion of setbacks on slide nine. You all are saying that there's no real impact or change between 100 feet and 300 feet. You're almost saying, what I think you're saying is you're doing this for the purpose of consistency.

[00:50:12] That's not a good reason to do it, with respect. If it really is nothing but you want to make it consistent and you think there's no real change, why not just protect more of the mountainside and do 300 feet? We absolutely support. Oh, no.

[00:50:30] Thank you. But we actually don't, we can't. It's not my time. If I allow clapping, then I have to allow jeering or booing. And if I allow jeering and booing, then that gets kind of out of control. Not to mention, you know, we don't want to be jeered or booed.

[00:50:46] So you can do jazz hands, but we don't do clapping. However, that was a good question, right? No, I'm just kidding. So start my time again. And so, yeah, why? The idea that it's just for consistency. Certainly, we could go to a 300-foot width, you know, where it doesn't matter if it's mountainside or not, basically the same as the 100-foot regulation, but just bring it to 300 feet.

[00:51:13] Oh, okay. I like that better. But again, you know, a lot of the discussion in MAD was... Yeah, I didn't know that was an option for the discussion, though. I mean, really, I would go with let's protect more and just be consistent protecting more.

[00:51:29] I mean, that's certainly making it more restrictive, and what I was going to say was, you know, a lot of the discussion around mod was that the regulations are, you know, overly burdensome and making it, you know, too difficult to develop.

[00:51:45] So that was the proposal to try and, you know, work towards making something more reasonable. On page 14, when we talk about page 14, item number five, parties, events, and ABC uses, this is what has always confused me a little bit.

[00:52:04] We're saying that we want to limit the number of events, but we're not saying that we want to limit the hours of operation or just the daily activities. So if someone is at a facility, if a facility holds 200 people and 200 people are there every single day and they're using the product that is sold on site or grown and then sold on site, there's no issue because it's not an event.

[00:52:33] but if some one of those people right in that event has a wedding dress on now it's an event so I'm a little confused as to why we want to limit events when we don't want to limit I mean if if they can be there anyway why are we and the only thing I could come up with is maybe because if it's an event the traffic everyone kind of comes and leaves at the same time that would be the only thing that makes sense to me but I don't see why we limit events if we're not going to limit and we shouldn't limit, the same exact number of people at the same exact facility

[00:53:09] drinking and eating the same exact thing and playing the same exact music, it's just that day it happens to be Roscoe's birthday. What's the difference? You make good points on all of it. I think the standard arrival and departure times would be one of the major issues.

[00:53:34] But other than that, you can certainly make that argument. Okay. Okay, thank you. Supervisors, especially finance members, if you need another round, let's get that done. Because I know, because for you all, this is, I know you've had a briefing, but we've been doing this for two years, and you all had one briefing.

[00:53:52] So it's kind of hard for you all, I understand that. So do you have, is everybody good before we go to speakers? I'm trying to go to finance members first. I don't see any, so I'm going to go to Mr. Crone, Mr. Sainz. There you go, thank you.

[00:54:08] I'm sorry. All right. Walk me through the difference between farm building and the structure.

[00:54:21] I believe that, I mean, I would defer to the building official, Wally. I don't, I think for purposes of that term, structure and building are the same. Okay. So it's talking about either a farm structure or a farm building? That's correct. They are the same. There's no difference between the buildings. The difference is whether or not it's exempt from the building code or not.

[00:54:43] that's where that's where the difference is made okay and another question so say some of our sister counties more to the west that are more rural uh focci or warrenton and others do they have they gone through this process and have their own local regulations on top of um the abc laws so from for the part that i get into with the exemption from the uniform statewide building that's state law so we can't layer another regulation on top of that we have to enforce as it is written and adopted by the General Assembly so when you have there's

[00:55:22] a whole definition for what makes a farm building and what makes it exempt from the building code and it gets into products grown on the farm production sampling sale educational and recreational events things like that all that does is determine whether or not they have to comply with the building code or they can be exempt from the requirements of the building code once they're exempt we lose any authority to do anything else in there now zoning is a separate a separate matter than that so the ordinances that zoning don't affect that ag exemption all right and then staying with our western counties um if anybody knows this what are their hours of

[00:56:01] operation for for wineries and breweries and stuff that would be the zoning folks the hours of operation i don't we would have to research the hours of operation in other counties we don't have that tonight. Just out of curiosity. Okay. Thank you, Chair Randall. And actually, Wally, I do have a question for you. So I understand that to get that farm structure and the exemption from building codes, you have to primarily be a farm, correct? That's correct. Okay. And then when

[00:56:37] um, when does it turn into public assembly? Because I think there's kind of that, you know, is it 50 people where it becomes public assembly and not a farm anymore? Like how does that change of use work? By definition of building code, a business, um, this is, and these are buildings that are regulated with occupancy permit. A business is anything 50 persons and below for, for assembly purposes. Uh, above 50 persons would be an assembly use in the building code so the AG structures it depends on how there's an opinion by the Attorney

[00:57:14] General you can have an occasional assembly inside there looking back in time the opinion that was done there just kind of like made that you go in you sweep the barn out you have an event in there and then it goes right back to being used as a barn after that after that occurs it doesn't say how many times in the year just says you know occasionally and it also does use the word infrequent too that's from Attorney General Cuccinelli once you start getting into large-scale events and you have the AG exemption the the one concern that we have is that we can't tell you whether the building's safe we don't

[00:57:51] know if there's adequate exit facilities we don't know if the building's too big that it did need fire protection or not need fire protection you know every one of them does it's you know it's all situational based on how the building is built what it's built out of all those kinds of things so that's that's when we we go and we look at the ag exemption requests we look at the building for what they're primarily using it for okay and it should be for farm correct it should be for farm use yes okay so um thank you wally i appreciate it so for staff um zoc has this for a long um time like i think from now until the end

[00:58:29] of December. Is there any way to do a phased approach? Because I am concerned with the language going to the board for just a year, the board and the planning commission for just a year and ZOC having six plus months to take a look at this. Is there any way to shorten the process where the board doesn't have to see it at the end of the year, you know, where we could do it maybe

[00:58:55] in the summer and spring and not have such a long zoc process i guess the main point i want to say is that the seven months that we had allocated for zoc review that also includes staff's time drafting the text so we had hoped to take it in like maybe six chunks we would draft it take it to zoc they would have comments and questions and we could bring it back to the next meeting

[00:59:31] so that's why we had we hadn't built in seven months because we would not be able to draft it all and take it to zock and just wrap it up very quickly i'm not sure if that answers your question are you suggesting that we bring part of it back to the board sooner you're going to ask that again yeah i mean is that possible or to the you know the planning commission would be next and then they'd have their their public hearing yeah is there any way to kind of shorten the process i think she's asking to phase it to phase it phase it yeah could you do that yes of course so it is

[01:00:09] possible the issue becomes that then staff uh and i will say most of the the team is here there are others that are out here that help as well but we would be having staff prepare packets for zoc and then planning commission at the same time and trying to juggle that and then even once Zaka's done if we start going to the board before we're done with the Planning Commission.

[01:00:29] Our packet process and drafting process is very intensive, so the quality of what we put out, I would be concerned that we'd be able to juggle all of that, handle it all, and get it to you in a time that's really faster without it causing you to ask us more questions and give us more feedback that we would just spend additional time revising and kind of end up at the same finish line at the same time. Okay, thank you. Ms. Bricksman. Thank you, Madam Chair. I'm still a little stuck on 23 and 30 since we're doing a

second round so on 23 we're talking about guest activity and this is at a lodging establishment so are those establishments also doing like weddings

[01:01:08] and and birthday parties and and those sorts of things yes okay so is it just because it's a different category of use that we might change the hours like if they're the same type of event why would we do different hours like if that's the concern we're proposing the same hours same okay for all of those types of events yes okay okay um and i guess uh there seems to be an issue

[01:01:45] with how much product is actually coming from coming from the farm that is sold through right and I think that the term process and processing has become a bit of an issue uh I guess can you talk me through that a little bit and I guess if we were to say something to the effect of you have to have 50 percent of the hops and your beer has to be grown on your farm like how how do we regulate that like how do we check that even if we try to do that I think that would be very

[01:02:24] difficult to regulate and we probably would not want to be that prescriptive okay in the regulations so but but are we recommending any sort of regulations as to how much it how much product is actually from the farm like are you asking related to the abc uses say sure brewery sure i believe right now the the it would just simply be uh continuing to demonstrate that you are an agricultural operation which is required by state law anyways yeah okay and then how do they

[01:03:02] demonstrate that they're an agricultural application like can i be selling beer like that's pro that's made somewhere else but then i have some flowers that i sell from like does that count how do you how do you determine that i would respond that that is uh the direction that we're seeking from the board regarding this and also i would also point out um that the abc licensed uses and agricultural operations with agritourism are two completely separate different uses.

[01:03:35] And I know a lot of discussions tend to kind of commingle the terms. Say those two terms again, please. The rural ABC uses. So that's the farm, winery, limited brewery, limited distillery. And then you have agricultural operations.

[01:03:51] Under state law, agricultural operations get agritourism uses. The ABC uses don't get agritourism automatically. They may qualify to be an agricultural operation if they meet whatever test is established through this process.

[01:04:08] But if they don't, they get the permissions that they are afforded, I guess, under the zoning ordinance and state law just as the ABC use. Okay. Thank you. Mr. Kirshner. Thank you. Just two follow-ups. The first is the setbacks that the chair was talking about on the spring feature.

[01:04:25] I remember this discussion really, really well, and I think it probably does warrant some look at this by someone with, you know, not just guesswork, but my guess is 100 feet is probably sufficient.

[01:04:41] But part of also what we did was to increase the protections, for example, in areas that were outside the MOU by making it 100 feet because you could basically, I think, do stuff much closer to the spring feature before. And I think what you reported, if I'm correct, is that you looked and the 100 feet that we were recommending did not have any impacts on anything that we currently have in place.

[01:05:07] That was one of the questions I asked. I think you came back with that in your opening. Is that right? Yes. All right. So that's, but we don't know what a 300-foot impact would be at this point. I bet you

that was going to have some impact. Correct. Yes. Okay. Yes, for areas outside. Outside the MOU. Obviously, it already exists inside, right?

[01:05:23] Correct. Okay. And then secondly, we have not looked at if it's usual and customary to serve wine at events on wineries throughout the state or in Loudoun. I mean, I think kind of you hinted, it is pretty usual and customary to do so.

[01:05:43] I agree. I don't follow where the question is going because... Well, is it usual and customary, one of the requirements that... Yes, certainly. So if that's usual and customary, we have to be careful how we regulate and make sure to look at both the economic impact as well as whether or not it substantially impacts the operations involved, correct?

[01:06:08] Yes, it would have to be in accordance with those 15.2, 2288.3. I just want to point that out because obviously we want to be really careful how prescriptive we are here, again, to run up against a foul state law. I probably have a tendency to believe that we're pushing the limit pretty hard on some of this stuff.

[01:06:24] and I have talked to a number of the folks in the industry just from my colleagues, if they're not allowed to have regular events and we begin regulating or limiting them to what we're doing and some of the other, they will go out of business. So I just want to let my colleagues know that that is a very real thing.

[01:06:40] So before we start being highly prescriptive in some of these manner, we need to consider the impacts, and we really don't know the impacts, and I don't think those are idle threats. I think if you're running a winery, it's because you love it, not because you're getting rich. I've been in agriculture all my life.

[01:06:58] Raise your hand if you're getting rich in the wine business. No one's going to raise their hand because it's just not true. So if they're going to continue to exist and it's something we want in Loudoun County because in many ways I tell people, and I'm very proud of this as a member of the board who represents folks in the West, we are the Napa Valley of the East, if not better.

[01:07:20] And so we need to work to preserve that. Thank you. It's D.C.'s wine country. I've been told that. Mr. Turner. Thank you, Madam Chair. So we need to study to find out if there are structures or operations that are going to be impacted if we expand it to a standard 300-foot radius.

[01:07:37] We don't know if there are impacts, conformity impacts. If that's what you as a group want to do, we could certainly find out what the impacts would be. Actually, I would also like a 200-foot gradient.

[01:07:53] I'd like to know, I mean, you should, and I don't want to add work unnecessarily, but it seems to me you should be able to just draw a radius and say, okay, what is impacted by a 100, 200, 300-foot radius, and give us some information on that, because I agree.

[01:08:08] If nothing's impacted at 100 feet, then let's find out what's impacted. Raising the whole issue of nonconformance, because this is going to come later on when we talk about setbacks. So let's say, for example, we picked 300 feet, and it immediately made some structures or operations within that 300 feet nonconforming.

[01:08:27] We just finished a discussion about the risker and added language that makes us able to call existing structures in the risker not nonconforming. Can we do the same thing here, or is somebody,

anytime we impose a new restriction, are we going to make them nonconforming?

[01:08:44] We can certainly add that same language that we added to the riskier, and I just want to make sure you all know we are completely aware that this board and TLUC are concerned about creating nonconformities. And don't feel like you have to make a motion for every single thing that we talk about, because we're aware of that globally, and we will address that in the draft text.

[01:09:06] Okay, thank you. I want to talk about the difference between destruction and building. So if something is currently classified an agricultural structure and they suddenly decide two nights a week to hold to build a bar in there and hold events at the bar and they're called a structure, that would actually be a building subject to the building code at that point.

[01:09:28] Who decides? Who decides whether it's a structure or building? What criteria they use? And would this fall under the new zoning compliance team to say, no, this is not a structure. This is a building. - I'll start while Wally's coming up.

[01:09:44] For purposes of zoning, there is a difference between a structure and a building. And I think in zoning, a building is enclosed and is for human occupation, whereas a structure could be things that aren't enclosed like fences, potentially, sorry, trestles, water towers, monopoles.

[01:10:08] - A barn. - Yes, I believe in zoning that would be called an ag structure. When we make the decision on exemption, we're limited to a pretty small criteria. So it's the storage, handling, production, display, sampling, or sale of agricultural, horticultural, floriculture, or civiculture products produced on the farm.

[01:10:31] The sheltering, raising, handling, processing, or sale of agricultural animals or products. Business or office use related to the farm operation. The use of farm machinery equipment for maintenance and storage of those vehicles. the storage of supplies and materials, and the implementation of best management practices associated with the farm operations.

[01:10:52] That's the measurement. So you put a bar in, and you're running a bar. Well, if it's there, and you're not taking it out and putting your farm operation back in every time you use it, it's now an assembly building. Got it. Thank you.

[01:11:08] Okay, I'm going to ask questions, and then we're going to go to speakers. And just so to give you guys, get ready, it would be Mark Miller, followed by Amy Hinkle, followed by John Carey, who is remote. A couple more questions, though. So we talked before, you talked very briefly about tiny homes.

[01:11:26] You said, you know, people can't live here because it's not inexpensive to live in Loudoun County. But isn't this like a chicken and an egg moment? It's not, it's expensive to live here. So that's why we want to have tiny homes so that they can live here.

[01:11:41] So to say, like, you know, people are not living here because it's expensive, right. That's why we want to have the home so that they can live here. So, you know, it's kind of hopefully if you build it, they will come. And we want some of the people who work the farms and the wineries and breweries, we want them to live here and not have to come in from Winchester and other places for obvious reasons.

[01:12:06] So that's why I want to continue to have the discussion. I will also say, though, that the reason I want it to be different is because technically a tiny home is not on wheels. That's called a mobile home. And so I didn't want the tiny home definition to be one that was throughout the entire county because we

are going to later on discuss tiny home communities in eastern Loudoun County, and it couldn't be on wheels.

[01:12:32] So that's all that was right there. I did have one. Oh, to Ms. Bricksman's question, I think, again, this is why it's important to give people from who were my colleagues who serve on the finance committee some time.

[01:12:49] What we've learned and what I've learned through this process is that you literally cannot grow enough beer. Enough. I'm sorry. You don't grow beer. You literally cannot grow enough ingredients for beer to make beer here in Loudoun County.

[01:13:06] And so you want to grow as much as you possibly can. And when possible, you want to import from either the county or the area. But it is impossible to have enough ingredients to even have 50% of your ingredients that you grow here go to beer.

[01:13:22] The discussion we were having is you can't have a business called Agri-Anything and have no agriculture. So you have to have something that you're growing on there that hopefully should benefit Loudoun's economy, whether that is honey, whether that is flat, whatever that might be.

[01:13:41] The goal is to benefit the economy, and the goal is not to make sure that something is grown that benefits the economy, because we know that unlike wine, you cannot grow, you can't have all the ingredients and grow all the ingredients in Loudoun County to make beer. That's at least my understanding.

[01:14:06] So, having said that, who is that? Oh, salt and water. Okay. We are going to start our public speakers. Can you hand me that please? I didn't see that person. We're going to go first to Mark Miller who is one of our planning commissioners and we appreciate him being here and then we'll go to Amy Hinkle followed by John Kerry followed by Miss Rashid Uzma Rashid who is the rec who is on the soil and water conservation board so also an elected official so good evening mr. Miller thank

[01:14:42] you for being here ready when you are sir good evening thank you for having me as you said Mark Miller I'm in the Planning Commission representing the Catocin district and I was also one of the two planning commissioners who were at all of the the stakeholder committee meetings through TLUC and I came today to say I've long been long been known that I've been a a critic so to speak of past stakeholder groups for their effectiveness or lack thereof I would

[01:15:17] like to say though that this stakeholder group was without question one of the if if not the most effective and positive groups we've had. I've been around the county for many years. The people that were participating were expert in their field, and I was able to learn by sitting and just listening from both sides of every argument, two, three, four sides sometimes.

[01:15:40] And everybody makes smart and educated points. And for all of you, for all of us who are on the committee, some of these things are well outside of our frame of knowledge. So I would encourage all of you, especially those that were not participating in those stakeholder groups, to take into account what people here tonight will say, and to take into account what happens through ZOC, and then when this comes to the Planning Commission.

[01:16:04] My request of you today is, as an individual from the Planning Commission, not speaking on half the entire body, is please make the ROYA as least prescriptive as possible. Past ROYAs have been

exceedingly prescriptive, which doesn't let the Planning Commission or ZOC to that degree do its state constitute a job. So is the the more broad base it could be, the more opportunity we will have to focus on helping make this the best possible Western Loudoun zoning ordinance amendment that we can.

[01:16:35] Finally, just a couple points to consider. I know Chair Randall touched on it earlier. We've talked a lot tonight already about events. The one thing that would be very helpful to everyone involved is to define what an event is. through all the discussions through to the stakeholder committee we really never came to a decision on what constitutes an event and so we can do that I appreciate it thank you thank you so much thank you for your service as well this single just give me one second delegate McAuliffe hi how are you stand

[01:17:07] up please welcome to the boardroom delegate did you want to speak because Because you were not signed up. I'm not signed up. Happy to say so. Okay, well, not right now. Have a seat. But I will call you very soon, sir.

[01:17:27] Thank you so much. Just give me a sec, Mr. McCullough. Thank you. Ms. Hinkle, how are you rated when you are? Wonderful. Good evening. My name is Amy Hinkle, and I speak tonight on behalf of the Loudoun Wineries and Wine Growers Association. And I'm also the owner of Lost Creek Winery, a farm growing grapes here in the county and making wine since 2012.

[01:17:49] Tonight, we're going to hear a lot of voices, concerns, perspectives, debates. That's healthy. We welcome it. But I want to start grounding us in something simple, what Loudoun wine is and what it has become. Forty years ago, Willowcroft Farm Vineyards planted the first vines in Loudoun County.

[01:18:09] From one pioneer to now 57 wineries, over 1,000 acres of vineyard, nearly 1 million visitors each year, and over 50 million winery revenue built on agriculture right here in Loudoun County. In the last 10 years, the percentage of medal-winning wines in Loudoun has grown from 32% to 85%.

[01:18:31] That's not incremental. That is transformation. Proof that Loudoun is not just an emerging region. We are a world-class wine region with a distinct terroir. But here's what those numbers don't show. They don't show the precision behind selecting a vineyard site.

[01:18:49] We spend years selecting these sites, where there's slope for drainage, southern exposure for sunlight, soils like granite to force these vines to struggle. Because great wine is not made in easy places, they're made in the right places. And many of those sites are within the Mountain Overlay District.

[01:19:08] And those numbers also don't show the April 21st of this year with the late freeze that cost several of our farms, growers, 50% of their harvest. Farming is hard. The only way these farms survive, the only way they save farms, is through their tasting rooms, their events, and their connection with the community.

[01:19:27] Before you tonight is a record of 1,200 letters from Loudoun residents who support us, not lobbyists, from neighbors, from people who want us to still be here in another 40 years. Ms. Hinkle? Thank you. Thank you so much.

[01:19:43] It goes fast, I know. Thank you. Thank you. John Kerry, who's online, followed by Uzma Rashid, followed by John McAuliffe, Delegate John McAuliffe. Thanks to the board for all the great questions so far. My name is John Kerry.

[01:19:58] I'm a homeowner in Paris, Virginia. We all agree that Blue Ridge is a precious natural resource and a major economic driver for the region because of all the ecosystem services it provides. I want to talk about one of those key services, clean water. Loudon's own groundwater study has warned of a prolonged and worsening drought with potentially serious consequences for everyone.

[01:20:20] The threat is high enough that Delegate McAuliffe successfully passed legislation funding a major regional groundwater study. We urge that Loudon limit commercial development and events in sensitive areas of the Blue Ridge until that study is done. We also oppose weakening protections in mountain overlay districts, such as reducing the spring setbacks from the original staff recommendation of 500 feet before it became 300 feet.

[01:20:46] Why is this so important? Consider that the water supply for the town of Paris depends on two wells and a large watershed that stretches up through Loudon County to the Blue Ridge. The town uses an average of 5,900 gallons a day. The developers of a proposed resort on Paris Mountain in our watershed say that it used 9,000 gallons a day.

[01:21:06] That figure alone is alarming, more than 50% of the entire village of Paris. But when I looked at actual data from the hotel, restaurant, and event industries, it shows the real number would probably be much higher, probably three times what Paris uses.

[01:21:22] Some of that water will return to the watershed and recharge the groundwater. But let me ask you, who among us wants to drink water that flows out of the septic field of a hotel and restaurant? Indeed, we face not only the threat of a reduced water supply, but potential contamination, especially since the Virginia Department of Health has already assessed our wells as being highly susceptible to contamination.

[01:21:46] None of us wants to see a situation where a town loses its water supply. We thus urge that Loudoun increase protections and limit commercial development and vents in the sensitive areas of the Blue Ridge. Thank you. Thank you, sir. Thank you. I appreciate it.

[01:22:03] Ms. Rasheed, you will be followed by Delegate John McAuliffe. Good evening, ma'am. Good evening. Thank you, Chair Randall and the supervisors for allowing me to speak regarding this Western Loudoun zoning ordinance amendment. My name is Ozma Rashid.

[01:22:19] I'm one of the Loudon Soil and Water Conservation District directors. And I've been hearing from the district staffs, their concerns about dealing with the concerns from the clearing, grading, and runoff issues related to development of the mountains.

[01:22:34] The Soil and Water District is always willing to assist, but we've been finding that there are those that are trying to exploit the loopholes that will lose the allowances for actual farming infrastructure in the county. We should be careful to keep venues from naming non-agricultural uses as farming to get around having to comply with the normal zoning code that the county has deemed appropriate.

[01:22:59] In particular, the district staff is very concerned that our farm plans are being used to avoid zoning violations with the county. We would like to continue to be a partner with the county staff, but just be aware that we're not a regulatory body, and I would like to point out and thank Supervisor Tekroni for her efforts in addressing these issues, so I would like to add my support on your behalf to that.

[01:23:26] So thank you for taking the time to listen to me, and we would like to have the district continue to work with the county on these issues. Thank you. Thank you, and thank you for your service. John McAuliffe, you'll be followed by Peter DeLisa. Good evening, Madam Chair, members of the board.

[01:23:47] This is an introduction for most of you who don't know me yet. I'm John McAuliffe. I represent all of Western Loudoun, Northern Fauquier, as well as the Aldi suburban area. So I'm very thrilled to be here. I'm not here to tell you what to do. I know sometimes legislators think they ought to do that, but that's actually not what I'm here to do.

[01:24:03] I'm just here to introduce myself and tell you a little bit about my own story because this is actually my industry as well. So I run a little bed and breakfast in Warrington, Virginia, which is in Fauquier. And my journey to getting that open about a decade ago was a special use permitting process.

[01:24:21] That special use permitting process involved two trips to the Planning Commission, two trips to the town council. It cost me, I think, around \$20,000 back then. And it was for a five-room bed and breakfast. We're up to seven now, so big things. In a rural small town, in a historic home.

[01:24:38] And obviously that's not what we're dealing with today, but the story I'm telling is just to share that 10 years later, we're still the only one there. No one's opened another one in town. And so as we try to figure out what the right approach here is, and we have to make sure we have the resources, we have to make sure that we're conserving water, we have to make sure that we're protecting all that is so wonderful about Western Loudoun is making sure we do find that right balance between the two pieces of this puzzle.

[01:25:06] So like I said, not here to tell you what to do, just here to say hello, and thank you for all the hard work on this and everything else that you do. Thank you. Thank you, Mr. McAuliffe. And Deputy McAuliffe, I also want to thank you because you were somebody who did support us keeping our local land use and zoning options.

[01:25:24] We did lose them as far as housing, but you did support us keeping them, and you were very supportive of us this past term, so we appreciate you very much. Peter DeLiso, followed by Moore Wash Copeland, followed by Nancy DeLiso. Good evening.

[01:25:44] My name is Peter DeLiso, and I'm one of the owners at 868 Estate Vineyards. I'd like to speak in support of TULUC recommendation number 20 and make private parties and events related to product sales as accessory uses for farm wineries, breweries, and distilleries.

[01:26:01] I have three main points. First, we are farmers. We farm 120 acres in Loudoun County. Our crop is grapes. we turn those grapes into wine. And like many agricultural producers, we must sell our wine product directly from our farm in order to survive. Second, events are not incidental.

[01:26:24] They are essential. We sell wine by bringing customers to our property. We do that by investing in our land, our views, by hosting private events and gatherings. These events are an integral part of our business. They are not something separate. They also support local charities, create jobs, generate the revenue we need to operate. This is a break-even business at best, and in many years, we lose money. Without events, our farm is simply not viable.

[01:26:59] Third, the concern being raised is not addressed by limiting the number of events. We understand there have been complaints about a small number of venues, noise, late hours, traffic. That is

not us. In over 13 years of hosting events, we have never had a single complaint. More importantly, these issues can and should be addressed through enforcement of existing noise, lighting, and traffic ordinances. Capping the number of events does not solve these problems.

[01:27:30] It simply places unnecessary burdens on responsible farmers. Farming is already a challenging business. We contend with weather, frost damage, invasive species, spot and litter flies, a distribution system that makes on-site sales critical.

[01:27:49] I respectfully submit. Mr. DeLisso, your time is up. Thank you. That's okay. Thank you. Thank you so much. I mean, supervisors. Loudon, if you don't get through all your comments or if you just want to, You can absolutely email us your comments that you have with you this evening.

[01:28:04] In fact, we would like that very much. Mara Walsh-Copeland followed by Nancy DeLiso. Good evening, Ms. Walsh-Copeland. After three rural zoams, it's time for your staff and citizens to get off the rural uses roller coaster.

[01:28:31] You'll hear nothing tonight from speakers that hasn't been fully considered by your staff's 10-year review of all public input documented in staff reports. Your attorney's legal analysis documents your zoning authority to regulate local land use decisions that clarifies incorrect interpretations put forward by some stakeholders for over 10 years.

[01:28:55] Loudoun can set permissions for events as done by other counties for public safety and welfare. Businesses can hold events with proper permits. The business cost of compliance should never supersede public safety.

[01:29:12] Bowdoin does have authority to set consistent hours of operation and set consistent setbacks and parking ratios that are needed for the protection of children and patrons and trespass, noise, and road issues. Rural uses holding events with outside activity areas should all be held to the same setbacks, not 2006 holdover default 25 feet.

[01:29:37] All three ZOAMs requested to protect our mountains and public safety for large assembly uses. And the preliminary inventory shows motions one and two are needed to establish compliance review to resolve existing violations.

[01:29:52] Set the directions so it cannot be overturned again during ZOC or PC review as in 2014, 2021, 2023, and 2025. and the Rural Uses Roller Coaster tonight.

[01:30:10] May the fourth be with you. Thank you, Ms. Wash Copeland. Nancy DeLiso, followed by Tolga Baki. Good evening, ma'am. Hello. Good evening. My name is Nancy DeLiso. I'm one of the owners of 868 Estate Vineyards. I spoke to you a number of weeks ago, and I shared that 95% of our wine is sold directly through our tasting room and our events.

[01:30:34] Today, I want to speak specifically to the community value of those events. In addition to multiple art shows, book signings, craft events, and celebrations of life, at 868, we host three major festivals annually. Over the past nine years, these events have raised nearly \$200,000 for Loudon-based charities.

[01:30:55] This isn't just business activities. These are a fundamental engine for our county's nonprofit partners, including A Farm Less Ordinary, Cancer Can Rock, and Loco Music, Inc., which supplies musical instruments to community programs and schools in our area. Each regulation that caps attendance, adds

administrative hurdles, or restricts the frequency of these gatherings directly translates to a reduction in charitable dollars from us.

[01:31:21] When we are forced to scale back an event or absorb new regulatory costs, it's our nonprofit partners who feel this loss as well. These organizations rely on our 120 acres, our infrastructure, to reach donors in a way they simply cannot do in a traditional office or banquet hall.

[01:31:39] These festivals support dozens of local musicians, food vendors, small home-based creative businesses, and part-time workers who live in and pay taxes in Loudoun County. Our property is well-suited for these events with 120 acres, frontage on a main road, ample parking, significant open space.

[01:31:59] and we've operated these events for nearly a decade with zero noise complaints and in complete compliance with fire and health departments. The current system works, and additional restrictions are a solution in search of a problem, one that carries a very real risk of stifling our ability to provide philanthropic support to Loudoun's community partners.

[01:32:20] I do not support staff recommendations for motion number 20 regarding capping private parties and events, but I ask you to support the original motion that was adopted. - Thank you. - Thank you. - Thank you, ma'am. Tolga Bakke, good to see you.

[01:32:35] You'll be followed by George Ann Overman. - Madam Chair, members of the board, good evening. I'm Tolga Bakke with Hillsborough Winery and Brewery, and I'm wearing this shirt today, not ironically, just because I don't really like taking sides. We are long time actual members of the Farm Bureau, and we frequently attend many of the Piedmont Environmental Council's events, including the last one on AgriVolt Takes, which was really awesome, actually.

[01:33:00] So I support a vast majority of what these groups fight for, which is to keep Western Loudoun rural, protect our farms, and preserve our beautiful landscape. But their current leadership is misguided and misleading their supporters with fear tactics over events and public safety, which, let's be honest, even the Sheriff's Department can't authenticate.

[01:33:20] So they're pointing our local farms as the enemy when we should be their strongest allies. Every single event that we hold is designed for only one purpose, which is to attract new customers and sell our wine and beer directly to customers, period.

[01:33:36] That's it. And any artificial limits on these events amounts to the county literally standing between us and our ability to sell our products. Sure, there's going to be a few bad actors, right? There always are, just like you've got bad drivers, you've got bad lawyers, you've got bad supervisors.

[01:33:53] Joke, I'm kidding. Now, this party excluded, obviously, but the vast majority of us are good neighbors, and we shouldn't be saddled with overly aggressive new rules that limit our right to sell our products. So, I strongly support Motion 20 as originally passed.

[01:34:12] It correctly treats events tied to product sales as normal business. We urge you to reject staff's recommendations for new permissions and standards that limit frequency and scale. So I am still wearing this because I do believe in protecting our mountains, and I do also feel very strongly that that's exactly what I'm doing out on our farm.

[01:34:32] I just don't like a phrase like this to kneecap what it is that we're all trying to do collectively. Cheers. Thank you. Thank you. Thank you very much. Georgian Overman, followed by Mary Hypes. Good

evening, y'all. I'm Georgian Overman with the Loudoun County Bed and Breakfast Guild. I wanted to talk about Motion 28.

[01:34:49] Motion 28 says that to qualify for a building code exemption, a farm building would have to be used for agricultural production. This is contrary to what you just heard about building codes exemption. It's much more extensive than that.

[01:35:05] And it will have an adverse impact on B&B ends that host events in barns. Most of these use their barns for other than agricultural production. Storage of farm equipment, farm offices, processing of other things besides agricultural products.

[01:35:23] I also, because Supervisor Turner mentioned it, happened to bring with me site plans. This is the cover sheet of a site plan, and it's eight pages long. It costs \$100,000. That's about a minimum cost.

[01:35:38] You'll see I'm leaving this with the secretary here. She's going to make copies for all of y'all to see. so there it is and the other thing i'd like to mention is that supervisor kirschner read the farm winery substantial impact statute the substantial impact statute is repeated almost word for word for limited breweries and limited distilleries so those protections extend not just to the farm wineries but to those other uses as well there has to be the finding of a substantial

[01:36:11] impact. There has to be the review of the actual impact on the business that is being potentially regulated. So it's really important that you all realize that, that you need to do the same careful review of those businesses that you do for the farm wineries. So thank you so much.

[01:36:36] Thank you. Thank you very much. Mary, I think it's Hypes, followed by Tia Ehrman. good evening ready when you are good evening and thank you for your time my name is Mary Hypes about nine years ago my husband and I relocated to Northern Virginia with our three teenagers as we reached as we search for a place to call home we had a few non-negotiables a strong educational system and a genuine sense of community we were fortunate to find both when we settled in the Little River District in Loudoun County our children have grown and gone on to

[01:37:11] pursue their collegiate and professional paths, and I am confident that these priorities helped shape them and their success. As we became empty nesters, I found myself looking for something meaningful and enjoyable outside the house after 20 years as a stay-at-home mom. What I found was more than just a job. I found a local agribusiness that truly embodies the same values that brought our family here in the first place. These businesses support our community in tangible ways every day. They employ dozens of local high schoolers, giving them many of them their first jobs, working with their schedules so that they can prioritize their education, participate in

[01:37:51] extracurricular activities, and gain valuable work experience. They provide a welcoming space for our community to gather. They give back consistently, supporting school groups, charities, fundraisers, and local events. They're not just businesses, they're community partners. They don't just operate in the community, they invest in it. Supporting motions 23, 34, and 50 would have far-reaching consequences impacting our students, our families, and countless others who benefit from these agribusinesses. We're not just talking about capping events or amending hours of

[01:38:26] operation. We are talking about taking away opportunities from our students. We're talking about removing the support system of our schools and non-profits. We're talking about weakening the very

sense of community that drew many of us here in the first place. Their impacts are woven into the fabric of this community in ways that are both visible and deeply personal.

[01:38:47] I urge you to consider the broader impact of the many lives touched by these businesses. Thank you again for your time and consideration. Thank you. When we take a break, I'm going to try to find you because I want to understand what you just said.

[01:39:03] Can I actually have a motion on those motions? I have a motion on those items. So find me before I walk out the room so I can understand what you just said to me. Okay, thank you. Tia Ehrman, followed by Steve Bazo. Good evening, Ms. Ehrman. Good evening, supervisors.

[01:39:20] My name is Tia Ehrman. I'm a land use planner for the PEC here this evening to share our concerns for the safety and welfare of Loudoun residents. When it comes to event-focused venues, PEC supports a tiered system with daily limits for people on site based on size and location of the parcel.

[01:39:36] There is a world of difference between 200-acre parcel on a primary road and a 10-acre parcel on a dirt road surrounded by homes. Pretending these are the same over-regulates large operations and ignores the outsized impacts of small operations and hurts the community. Virginia counties have broad authority to protect the health, safety, and welfare of their residents first and foremost, and to require operations calling themselves agricultural with ag exemptions for structures to have agriculture as their primary use.

[01:40:04] Many counties utilize that authority, in particular when it comes to large events. In Albemarle County, wineries, breweries, and distilleries must prove ongoing bona fide ag production of product used on site. Same for Clark, King George's County, and many, many others. In Albemarle, daily visitors are limited to 200.

[01:40:21] In Clark, all events over 150 people require a special event permit with on-site county review. In Fakir, general events are limited to one per calendar month with a max of 150 attendees. General hours of operation are limited to 8 p.m., and parcels under 20 acres cannot host large events.

[01:40:40] King George's County uses a tiered system for limited special events, and their ordinance clarifies that non-agricultural events, including weddings, are provided by event venues, not agritourism venues. I could go on. There is a great variation in how counties regulate these intense venues all within the bounds of state law.

[01:40:59] The presence of these busy venues in a residential region must be balanced with safety and the welfare of the residents. Thousands of residents not protected by HOAs stand to be impacted by these proposed changes, and I'm asking you to at least consider the sanctity of their homes.

[01:41:15] Unlimited events with unlimited people 25 feet from yards where children and dogs play is unreasonable, and we can do better. Thank you, ma'am. Thank you. Steve Basel, followed by Todd Hinkle. Good evening, sir. Hi, welcome.

[01:41:32] Thank you for having me here tonight. I'm Steve Bozzo. I'm the owner and winemaker at Bozzo Family Vineyards, which is a small boutique farm winery on Route 9 near Hillsboro and not too far from Percival. On May 1st, I sent a letter to every one of you sitting here today and maybe some who aren't. And I'm only going to touch briefly on a few points in that letter and then move on.

[01:41:51] On events and event assemblies, I also urge you to approve the motion that was approved by TELUC. I think most of the complaint activity that I've read through, and I've read through all of it, deals with parking, lighting, and noise. And I urge you to deny reconsideration that staff has requested, with respect, and also request that you deny, if it's raised, a motion on assemblies, event assemblies.

[01:42:18] The reasons are in that letter. For us, events equal on-premises wine sales. It's the only reason we don't. Every contract we have for an event requires a wine purchase. 92% of our revenue comes from wine sales on site, so we do everything we can to encourage people to visit us.

[01:42:35] My own view, which differs from county staff's view, is that Title 15.2 is the zoning code title. It allows the state to grant the counties and other political subdivisions authority to provide zoning. The limitations in that are on zoning, not on alcohol uses, so I disagree with staff's perspective.

[01:42:58] In addition, there's been no showing of substantial impact on the public health, safety, or welfare, and that includes a review of the Kimley-Horn work product, which is touted by staff repeatedly, and it includes the Loudoun County Sheriff's Office complaint histories, which were investigated, unlike Kimley-Horn, and it includes the Department of Planning and Zoning itself and its complaint histories, which were investigated.

[01:43:20] None of them show any substantial impact. There might be another way to show it, but they don't show it. Finally, specs, special exceptions in all MOD areas is overreach. The county adopted an ordinance two plus years ago that said that highly sensitive areas were risky and that's why you had special exception requirements.

[01:43:41] However, somewhat sensitive and moderate were not. - Your time's up. - Thank you. - Thank you so much, I appreciate it. I know the time goes really fast, I know it does. Todd Hinkle, you're going to be followed by Mike Borgang.

[01:43:57] Good evening. Good evening. My name is Todd Hinkle, owner and winemaker at Lost Creek Winery. We've heard about the freeze on April 21st, but it's worth revisiting because it speaks directly to what's at stake. That morning, temperatures across Loudoun County dropped into the mid-20s.

[01:44:13] By sunrise, the damage was clear. Some vineyards had lost half their crop. Others had lost everything, but not all was lost. On the mountainside slopes, that outcome was very different. Cold air flowed downhill and settled in the valleys below, sparing vineyards at elevation.

[01:44:28] My vineyard in Bluemont, parts of it which are within the MOD, came through without any damage at all, as did those of my neighbors. That contrast underscores a simple but critical point. Site selection matters, and it's not just about frost protection. Those same slopes provide ideal sun exposure, helping grapes optimally ripen.

[01:44:49] During heavy rains, heavy summer rains water drains off quickly and what remains moves efficiently through the rocky soils. Over the course of a season those conditions lead to more concentrated fruit and higher quality wines. Wines that are increasingly recognized both regionally and nationally. Because of this there are active efforts to establish federally recognized American viticulture areas within Loudoun County. Formal recognition that the land itself plays a defining role in the quality of what we produce. As our wine community continues to mature there will be growing interest in responsibly developing farmland along these mountain sides. It's not about large-scale clearing or overdevelopment. It's about placing vineyards where they can succeed

[01:45:29] while maintaining long-term stewardship of the land. That's why I'm concerned about motion number 11 particularly, but also three through six. They all risk limiting the very agricultural activities that have allowed this industry to grow and gain recognition without applying similar constraints to residential development i would argue that farmers and vineyards owners have a strong long term interest in sustainability perhaps more so than building large homes to capture those same pristine views so i share these thoughts as potential that we've realized through thoughtful land use that and what we can stand to lose without it and i respectfully ask the board to

[01:46:04] allow our community to continue to grow thank you sir thank you very much mike vorgang followed by Nate Walsh. Good evening, sir. Good evening. My name is Mike Vorgang. I want to thank the board for having us here tonight. Thank you for the work you perform with our communities.

[01:46:23] I'm going to be very open and honest about my experiences, very candid. I spent eight years in the Marine Corps as an infantry officer, combat wounded veteran, and I fought PTSD for about 20 plus years. These past six years, a series of events occurred in my personal life that were more traumatic for me than anything I experienced in combat. I could wrap my mind around combat, around the things that occurred overseas. I volunteered to join the Corps. I knew what I was getting into. I didn't understand why things were occurring to me that I didn't ask for.

[01:46:54] About two years ago, I got a job as a bartender at a local farm brewery. Shortly thereafter, my daughter followed suit and became a food runner there. For the first time in forever, I felt valued, appreciated. The love and support we get from our team, not just our team, but our customers has been overwhelming for me and my daughter.

[01:47:16] That love and support we get is directly related to the happiness and the experience we provide our customers. And it's because of that I cannot support any motion that limits special events or gatherings. That profoundly impacts our ability to perform as a business.

[01:47:34] We're not really in the brewing business. We brew beer, and we do it really well. We're really in the business of providing people with an experience and making them happy. please allow us to continue to do so. Thank you. Thank you, Mr. Borgang, and thank you for your service, sir. Nate Walsh, followed by Gregory Steuben. Good evening, sir. Evening. My name is Nate Walsh. My wife, Sarah, and I own Walsh Family Wine in Percival, and I've worked in Loudon Wine since 2008. I'm here tonight because the zoning changes being discussed are going to determine

[01:48:12] whether my industry survives into the next decade, and I can ground that claim in numbers. A cost and profitability study commissioned by VDACS, which is publicly available, shows that in order to be profitable, Virginia farm wineries need 30 to 40 acres of vines, which can be sold at full retail pricing, which will require, quote, auxiliary draws from food and events.

[01:48:38] The average Loud winery is growing, but is not yet half the size of those requirements. Additionally, the same study shows crop yield requirements for profitability. the minimum number of which Loudoun County has missed on in four of the past five years due to drought. We won't hit it this year either, as you have heard, after the frost, which the VVA estimates to have destroyed 40 percent of our crop, which is a \$3.6 million loss in crop value shouldered by people in this room. The growers who absorbed that loss represent, alongside beekeepers, The only sector of Loudoun Ag that is not in decline.

[01:49:17] I mention these numbers to illustrate the difficulty of these businesses. It is maybe to our detriment in this conversation that wineries display a veneer of luxury. We've chosen a very challenging business due to its ties to the insecurities of farming.

[01:49:33] So how do we bridge that gap? We close it by bringing in new guests with wine club parties, weddings, dinners, educational events, fundraisers, baby showers. These are not amenities to farming. They are the difference between a working farm and a foreclosed one. If you restrict how we can operate through limits on these events, guests, or sales channels, you are not regulating this industry.

[01:49:55] You are effectively ending it. Thank you. Thank you. Thank you, Mr. Walsh. Gregory Steuben, followed by Lacey Hoover. Good evening, sir. Good evening, Madam Chair, members of the board, the public.

[01:50:12] My name is Gregory Steuben. I've been a Loudoun County resident since 1994, patron and supporter of Loudoun Farm breweries and wineries for the past decade. Last year I became an employee at a local farm brewery and I've witnessed many joyous events for the community at large. From birthday parties to baby showers, corporate gatherings to charity fundraisers, retirement parties to veteran memorials and celebrations of life. Some of the most community-driven events I've witnessed and have had the pleasure of facilitating our end-of-season sports gatherings for local high

[01:50:48] schools. On behalf of my local farm brewery, I would like to say I do not support Motion 20 regarding clapping private parties and events. Rather, I ask you to support the original motion adopted. We want to be, and are, deeply connected to the community we serve. We would like to continue to provide a space for social gatherings without limit on assembly. Thank you for your time and consideration. Thank you, Mr. Dubin. Thank you. Lacey Huber, followed by Jennifer

[01:51:19] Breaux. Good evening. My name is Lacey Huber. I'm representing my family's business, Stone Tower Winery. We've been farming in Leesburg for over 50 years and growing grapes since 2009. Today, we have 95 acres of vineyards on over 1,000 acres of land. At its core, Stone Tower is an agricultural operation with significant land stewardship responsibilities. The hospitality and events side of our business is what allows us to sustain our large family farm and remain economically viable. That viability is not separate from rural preservation. It is essential

[01:51:58] to it. Loudon's previous approach to preserving the West has worked because open land must have a reasonable economic use as a viable alternative to selling or developing. In 2023, legislation was passed to strengthen the agricultural requirements for Virginia Farm Winery licenses and address any bad actors using those farm wondering licenses to operate as event venues.

[01:52:22] Those regulations are now in place and established businesses must come into compliance by 2028. That same year, the Virginia Department of Housing and Community Development created an Agritourism Event Structure Technical Advisory Committee, which included a Loudon Fire official among the stakeholders to address concerns about safety of public use of farm structures. That committee established statewide safety regulations for USBC exempt farm buildings which are now in effect. New regulations on events at farm wineries would duplicate those that already

[01:53:00] exist. It just does not make sense for Loudoun to add regulations as the impact not only to wineries but to the thriving weddings and events industry in Loudoun would be huge. Please protect the viability of farm wineries and rural businesses by supporting the stakeholder recommended outcomes of

the TLEC motions before you. In doing so, you are also helping protect the open spaces and rural character that benefit all of Loudoun County. Thank you.

[01:53:28] Thank you. Thank you, Ms. Huber. Jennifer Breaux, followed by Britton Rogan. Good evening. Good evening. I'm Jennifer Breaux, and I operate a multi-generational family winery here in Loudoun, Breaux Vineyards. We are farmers first, and we're respectful, community-minded neighbors with no complaints to date since our opening in 1997. Tonight, I want to bring attention to the Loudoun County Comprehensive Plan because it is the framework that you are expected to follow.

[01:53:55] It was developed over several years with input from residents, stakeholders, staff, and prior boards to guide how this county grows while preserving its rural identity. The plan defines the rural policy area as an enduring rural landscape of working agricultural lands, rural economy uses, and open spaces. And it makes clear that land use policy is intended to limit residential development so that the land remains available for agriculture and for rural economy uses, including vineyards, farm wineries, and the hospitality uses that support them.

[01:54:27] That language was intentional. The plan was not written just to protect the rural landscape, it was written to sustain it, and it was written to grow it. The comprehensive plan also directs county to permit flexibility for the sale of farm products and to promote rural tourism and hospitality uses and it is equally clear and states that the county should protect farming and farmers from nuisance complaints and reduce conflicts. Some of the proposed language and motions have gone directly against this comprehensive plan language. The comprehensive plan language is important because it recognizes that agriculture comes with normal activities

[01:55:02] those activities should be supported and not restricted. All of this was built deliberately over time to prevent the incremental loss of farmland. When our framework is constrained, viability is reduced. And when viability is reduced, land does not remain agricultural. It transitions to the highest bidder. The plan itself acknowledges that risk. And so the decision before you tonight will determine whether many of us continue as to operate as farm wineries or whether we begin to close our doors. And yes, events matter. I asked the Loudoun County Board of

[01:55:38] Supervisors to remain consistent with the comprehensive plan and support the industry's positions as outlined in the May 1st, 26th visit Loudoun memo. Thank you so much. Britton Rogan followed by Bob Ruppi. Good evening. Good evening, ma'am. Good evening, Madam Chair and the Board of supervisors. I have horses here in Loudoun County, and I also own a brewery. So not only am I pro-ag, I'm pro-beer and pro-business. I'm a resident, a neighbor, a horse person, and I'm a mother.

[01:56:13] I spoke to you recently about the negative impacts that the neighboring property is having on my home, my family, and my horse business. After reviewing your current zoning discussions, I'm here again because my situation highlights a clear gap in how the county regulates the intensity of use.

[01:56:31] What we're seeing is a by-right agricultural use operating at a level that is no longer consistent with the size of the parcel or with the surrounding properties and with no ag. On less than 15 acres, this neighboring operation is regularly bringing hundreds of people on site and transporting additional people by shuttle daily. That level of activity functions like a high capacity commercial or special event use, but it is not subject to the same performance standards.

[01:57:03] The impacts are measurable. The increased traffic on rural roads, early morning, by the way my family was awoken at 5.15 this morning, and late night activity, the smell of sewage, noise, trespassing, and conditions incompatible with adjacent uses that include my residents and my horses. Recently, I have lost prospective clients specifically because the surrounding environment no longer meets the expectations for a safe, consistent agricultural setting. The board is asking for economic impact. That is direct economic harm. I appreciate that the board is evaluating

[01:57:42] hours and event limitations, but those tools alone do not address the core issue, intensity of use. The key issue is missing. There is no limit on how many people can be brought onto a small property each day. There is currently no enforceable standard tying visitor volume to acreage.

[01:58:01] Without that, small parcels can operate at the same intensity. Thank you so much. Thank you. Thank you very much. Thank you, ma'am. Bob Ruppi, followed by Gordon Lytell. Good evening, sir. Madam Chair, Board of Superpowers, thank you for this opportunity to speak.

[01:58:18] My name is Bob Ruppi. My wife and I, Lori, we operate October 1st. one vineyard. Our vineyard is in the MOD in Bluemont. We are Virginia Farm Winery. We operate a tasting shop in downtown Leesburg. We've been growing grapes and making wine in Loudoun County since 2006. I'd like to take a moment just to frame Virginia wine and Loudoun wine through the lens of long-term consistency and investment in this area. For the past 40 to 50 years, both the Commonwealth and Loudoun County have shown remarkable bipartisan support for our wine

[01:58:55] growing community. There has been a steady and clear understanding that wine growing sits at the intersection of agriculture, rural economic development, state and local tourism, all important for sustaining Commonwealth's economic growth, prosperity, and quality of life for citizens. The consistent investment has taken many forms, education, small business development, research, and ability for wineries to farm grapes, operate, and welcome visitors.

[01:59:24] When guests come to our place in downtown Leesburg, they ask, how has Virginia wine gotten so good? This is a common question, and I have two things that I say. First, I talk about this consistent long-term support for this industry, the investments that have been made consistently over a long period of time.

[01:59:43] And second, I talk about site selection. The Hinkles talked about that earlier, so I'm going to slide past that a little bit. But it is the foundation of growing quality wine. The results of these combined efforts are regularly being recognized well beyond Virginia.

[01:59:59] I have a chart diagram. This long line at the top is Virginia. This indicates the growth looking at 2024 to 2025 in direct-to-consumer wine sales. Down at the bottom is Napa.

[02:00:15] okay we've invested a lot in this industry we're seeing results um comparatively across the nation thank you mr rupee your time is mr be one thing the next time somebody asks you how's virginia wine so good your answer is it's not virginia wine it's loud and wine yeah that is your answer okay okay thank you tell them charlotte that charlott'sville wine is trash tell them that I'm going to pay for that at Baco. I'm going to pay for that at Baco. I am.

[02:00:54] Gordon Lytell, followed by Luann Gutemuth. Good evening, sir. Good evening, Madam Chair, members of the board, staff members. Thank you for your time and the work you put into this process. We

really appreciate it, having us tonight. My name is Jay Lytell, and I'm a resident of the Little River District of Loudoun County.

[02:01:12] I own my own business, but like many, I needed a supplemental income to help support my family. My wife and I recently adopted my grandson, which has significantly increased our expenses. My wife is retired and stays home with him, so I made the decision to take on a second job.

[02:01:28] I wanted to work with a company that had structure, clear rules, processes, and expectations. I looked at several places and openly chose to join the hospitality industry at a local Loudoun County brewery. Working there has given me the flexibility to help provide for my family and still being present.

[02:01:48] It helps cover the additional costs, and it comes with raising a child and allows me to support my grandson in the things he enjoys. I do not support staff recommendations for Motion 20, capping private parties and events.

[02:02:04] Rather, I ask you to support the original motion adopted. Beyond the financial side, it also is something I generally value. We celebrate birthday parties, promotions, sports wins, and everyday moments where people come together. I take pride in being part of that and in being an ambassador, not just to the brewery, but for Loudoun County.

[02:02:26] I appreciate the board taking the time to listen and consider how decisions like this impact not just businesses, but families like mine who rely on these opportunities. Thank you again for your time and everything you do for Loudoun County.

[02:02:42] Thank you, sir. Thank you very much. I want to say your name right. Luann, will you tell your last name for me, ma'am? Guttermuth. Guttermuth, thank you. And you'll be followed by Donald Walker. It doesn't say Donnie, it says Donald.

[02:02:59] Donald Walker. Ready when you are. Good evening, Chair Randall and members of the board. I'm Luann Guttermuth. My husband, Mike, and I own Good Spirit Farm, a small family-run, family-owned farm winery in Round Hill. Good Spirit Farm is a long-held dream come to life.

[02:03:19] one that we were thrilled to pursue in Loudoun after retiring from federal and corporate jobs. We chose to invest in Loudoun because of the land, of course, the terroir, the beauty, and as importantly, because of the county's support for agricultural businesses, support that helped create the highly respected wine region that you've heard spoken about tonight, with the significant economic benefit it brings.

[02:03:48] I ask that you continue to support rural businesses by supporting industry stance as outlined in the May 1st memo from Visit Loudoun. Good Spirit Farm is a small producer. Economies of scale are not in our favor.

[02:04:05] Mother Nature is not always kind. We're farmers. Despite that, we want to keep going. We believe we're contributing to something important, keeping land in agricultural use, maintaining open space, producing Loudoun-grown, Loudoun-Main wine, and creating space for people to come together, mingle, build community.

[02:04:30] Holding events at our winery is essential for our financial viability. Without it, we won't stay in business. It's been our pleasure to be the setting for a variety of events, milestone birthday and

anniversary parties, bridal showers, company meetings, and also meetings of nonprofits and community groups.

[02:04:49] It's a priority for us to be a good neighbor, and we welcome them to Good Spirit Farm. Please help us to preserve agricultural land and to share our rural landscapes with others. Please support industry stance as outlined in the May 1st Visit Loudoun memo.

[02:05:08] Thank you. Thank you. Donald Walker, followed by, just give me one second, sir, followed by John Ellis. Good evening, Mr. Walker. Ready when you are. Good evening, board. To make it easy, we call my son Trey, since my family will still be here for many more years.

[02:05:27] I grew up in Waterford and Western Loudoun, and we're finding out now I grew up in the Mountainside Overlay District. Everything is now pretty much a, there was a small hill is considered the MOD, so it's quite difficult. And I think supporting a cumbersome Mountainside Overlay District regulation for residential uses will only continue to provide only mansions that are not fitting like traditional homes in our wooded areas.

[02:05:54] I want to go on and say that I support going back to a 100-foot setback. I think that provides a very good protection for our public and our waterways. I have a stone schoolhouse that was built about 1860, directly over the spring. I'm not aware of any issues it's caused or dried up any wells.

[02:06:12] I also found out that one of our complete builds that a lot of people were at a ribbon cutting floor turned out to be 45 feet from a spring feature. Again, it's caused no issues. Activities near spring feature will not dry up any wells, and I don't think that anybody should be drinking from them, but we do need protections from fertilizer runoff. I also support all activities that are not tree removal in the Mountainside Overlay District. I support administration approvals in the Mountainside Overlay District.

[02:06:44] we have 1200 vacant lots left i don't know how many driveways the board wants to see special exceptions come through so people can get their houses built on these lots i fully support fences and all similar items not needing a ridiculous grading permit in the mountainside overlay district i think that's too too much of a burden i support driveway repairs not needing again a cumbersome grading permit in the mountainside overlay district i support all activities in the mountainside overlay district that are not disruptive and not needing a special exception which by the way is harder than the grading process and probably the only thing in this

[02:07:24] building that's more difficult i support making sure we try to keep mr walker i'm sorry your time is up thank you so much i appreciate it john ellis followed by um todd goldane good evening mr good evening supervisors um i just want to say a few words on behalf of the communities of people who live around our wineries breweries and distilleries first of all we i don't know of anybody who does not love all of our wineries breweries and distilleries we want them to succeed

[02:07:57] we want them to have events the issue that many people have is with scale and with actually conformance with existing codes in some cases we live my my wife and i live within a mile of two two establishments and with a hill in between on Saturdays and Sundays of most weekends during from spring to fall we it sounds like there is competing see who's competing to have make more noise. We cannot play our own music in our own backyard because we cannot hear it over the what's

[02:08:36] happening, what we're hearing from those other establishments. We are fine with that. If it's a couple of days a week, we can live with that. If it's more than that, if it's every day of the week, it becomes

a big problem. The noise, obviously, is a concern. I can't tell you. I have no means of telling you whether they are actually conforming with the standards. I would like to know.

[02:09:06] But I would also ask businesses to voluntarily make sure they're compliant. These are issues we want to live with these businesses and we want them to succeed. We also want to live a reasonable standard of living ourselves in the same area.

[02:09:25] So the issues for us are not about whether these businesses should be here, whether they should have events. We want them to do that. these issues are minimizing the impacts they have on neighboring farms and neighboring residents and so far. So again, it's about scale and intensity, and that's what we would like to see addressed.

[02:09:44] Thank you. Thank you. Thank you, Mr. Ellis. Todd Goldane, followed by Lawrence Malone. Todd, are you here? Todd's not here today. Thank you. Lawrence Malone, are you here today?

[02:10:00] Yes, ma'am. Okay. And your, sir, will be followed by Chris Van Black. Good evening, sir. Thank you.

[02:10:19] I speak on behalf of Friends of the Blue Ridge Mountains. I urge you to strengthen, not weaken, the zoning protections for our mountains. Many of the uses permitted by the current zoning ordinance are incompatible with the steep slopes and dense forests, regardless of how carefully they are sited.

[02:10:36] Public safety, public health, and long-term strength of Loudoun's economy depend upon protecting the mountains from development. Blue Ridge Mountain Road is at capacity. Additional non-residential development will increase traffic, intensify parking demand, and create pressure to widen roads and pave more parking, thus attracting more traffic, an unending cycle.

[02:11:01] The result will be increased congestion and more accidents. Ensuring safety of our roads must remain one of your highest priorities as you consider Western Loudon Zoning Ordinance. Our mountains are essential to the health of our community.

[02:11:17] These forests remove thousands of tons of greenhouse gases and produce millions of pounds of oxygen. They filter runoff before it reaches our streams and ultimately the Chesapeake Bay. Expanding non-residential development in the mountains will erode this natural capacity to clean our air and water.

[02:11:38] If nature no longer performs these functions freely, taxpayers will bear the cost, spending millions to replace what we once had at no cost. Our mountains are vital to Loudoun's economy. Visit Loudoun has clearly documented the importance of our natural environment to the tourism industry.

[02:12:00] Every new parking lot, commercial building, or retail use on these slopes brings us closer to degrading the very landscape that draws our visitors. Members of the board, you are thoughtful, capable leaders. You have the insight to understand the long-term consequences of your zoning decisions and the courage to act.

[02:12:21] Thank you. Thank you. Sir, may I ask a question? So if I want to talk to PEC, I know where to go. If I want to talk to a representative of the wineries, I know where to go. If I want to talk to a representative of the breweries, I know where to go.

[02:12:37] For the people who are wearing Protect Our Mountains shirts, is there, like, a point person to talk to? I suppose I would be the point person, yes. You'd be the point person, yes. Okay. I'm the executive

director of Friends of the Blue Ridge Mountains, which is our organization.

[02:12:54] Okay, thank you. That's good to know. Thank you so much, sir. Thank you. Chris Van Black, called by Matthew Brown, who's going to be remote. Good evening, Mr. Van Black. Good evening. My name is Chris Van Black. work as a urban and agricultural conservationist with Loudoun Soil and Water Conservation District, serve as a board member with Loudoun Farm Bureau and Lovettsville Market Co-op, and of course, I live and farm oats, wheat, and hay in Lovettsville. As the ag and conservation sector coordinator for the Walrus stakeholder meetings, I got to see how much work went into fine-tuning the various zoning ordinance around ag processing, farm worker housing, and equine operations.

[02:13:32] The changes laid out in the draft motions are the results of days and days of hard work by stakeholders and staff and the results will be positive changes that will help numerous farming operations. Personally, the ag processing amendments will solidify the ability for those of us that farm multiple parcels to process the crops that we grow and also collaborate with neighboring farms for things like grain cleaning, produce washing and aggregation, milling and cold storage.

[02:13:57] thank you as part of our work at loud and soil and water we regularly work with farmers and landowners to plant riparian buffers establish forest on sensitive environmental areas and protect our surface and groundwater through rotational grazing systems livestock waters and cover crops there's one person on the board who's done that agricultural activities like orchards and vineyards are and should absolutely remain permitted in areas of mountainside but The parking lots roads and large lodging structures are not farming and should not be considered agriculture when it comes to protecting some of our most sensitive environmental areas.

[02:14:36] Our mountain sides are critical to groundwater recharge as well as being the last large areas of contiguous forest canopy in the county. The mountains are priceless for habitat and climate benefits and given the calls we regularly field the districts for concerned neighbors dealing with offsite impacts from developments on the mountains, I would ask that there be no loosening of the existing mountainside protections, especially around springs, steep slopes, and ridgeline. More impervious surfaces clearing and grading on the mountains will only exacerbate our growing groundwater supply issues in western Loudoun. Thank you. Thank you, sir. We have exactly 30 minutes to go for public speaking.

[02:15:11] Our next speaker is remote. It's Matthew Brown, followed by, in person, Megan Gallagher. Good evening, Supervisors. I'm Matthew Brown. I'm a consultant to Virginia's wine and hospitality industry. I'm also a member of the Piedmont Workforce Development Board and the coordinator of the Virginia Wine Coalition, which is an economic development organization that's focused on supporting Virginia's wineries.

[02:15:40] As you know, Loudoun's farm wineries generate millions in revenue and support directly and indirectly thousands of local jobs. Data from the Virginia Tourism Corporation will show you that wine travelers spend over \$1,400 per visit and are among some of the most satisfied visitors in the state.

[02:15:58] So this is not something that happened by accident, but was rather built over decades. And any changes that make it harder to operate a farm winery will not just hurt Loudoun County as a whole, but will also have harmful impacts on the industry across the Commonwealth.

[02:16:14] As you guys know, foreign land lost is foreign land lost forever. But farming, of course, must be allowed to be profitable in order to survive. And this includes supporting agritourism and private events.

And as someone serving on our Regional Workforce Board, I can tell you that the jobs that these farm wineries create across all skill levels in our rural communities are truly irreplaceable.

[02:16:35] So I ask that you please keep these jobs in mind as you move along the decision-making process, and I thank you for your time. Thank you, sir. Megan Gallagher, followed by Avis Rinshaw. Good evening, ma'am. Hi. Thank you very much for having me.

[02:16:52] I'm Megan Gallagher. I live in Middleburg. I moved there four years ago from a family farm in our family for 40 years. And for the two, and then I lived there for 25 years. I was raised there and lived there 25 years as an adult. But for two years before I moved back home, I was privileged to live at Willowcroft Vineyards when it was just getting started and had a tiny tasting room.

[02:17:15] And this discussion would have been absolute Greek to what Lou Parker was trying to do at the time. Where I grew up, I was blessed. It was a beautiful, peaceful property bordered by neighbors also involved in traditional agriculture. The vineyards that existed on our road weren't that close, and nobody had special events at the time.

[02:17:36] And now you need to balance the growth of that industry with a need for it to diversify. But I do not think that giving a blanket unlimited amount of special events for these, as they say, ABC uses on farm properties without standards and review, at least to the scale and size, will retain Loudoun's rural culture and its quality of life, particularly when the impacts from smaller scale operations with high intensity special uses exist.

[02:18:11] So I really ask you to deny motion 20 and to look for establishing the standards in motion 32 and 33, not necessarily as specs, but at least some place to review how these size of properties are looked at.

[02:18:31] Falkier County has very stringent control on the size and number of events, as does Rockingham County, number three in the state for ag. They've just said they're not putting as much emphasis on small properties becoming entertainment venues than on larger ag properties that can absorb the impacts of them.

[02:18:53] Thank you. Thank you. Thank you, ma'am. Avis Renshaw, you'll be followed by Krista Cato. Good evening, Ms. Renshaw. Good evening, board. I'm Avis Renshaw, and I currently serve as president of the award-winning Loudoun County Farm Bureau, where we advocate for ag-based businesses.

[02:19:10] We are here tonight because you need to decide on how to appropriately zone the two rural districts in Loudoun. Why is there disagreement with staff's suggestions? Because some parties want you to prioritize and exclude their businesses from standards presented by staff. Who should you listen to? You should listen to the aggregated Aggregated and apparently aggravated voices of your rural constituents from years of making their thoughts and rationale known through county instigated collection processes and your appointed representatives on various boards and commissions These inputs were coalesced by your paid consultants and your county staff. They represent the will of the people

[02:19:47] The zoning for data centers did not benefit from you specific standards Learn from that really big mistake and vote for parity among neighboring parcels and residential expectations With tiered standards opt for transparency for current and future residents and businesses Words matter and mutual understanding of those words matter Define agriculture and agriculture products and ag production and

agritourism according to state definitions No one I know in legitimate bona fide AG has a problem with that Leave staff's recommendations for those definitions on the consent agenda.

[02:20:25] We're a dill and rule state. How much easier than pie is that decision? Business popularity comes and goes. Equitable zoning now will go a long way towards a neighborly future, no matter what rural business is next in vogue. Unlimited parties and events with unlimited attendees is not usual and customary for most ag-based businesses.

[02:20:45] Whether you're an Eastern or Western supervisor, these votes, these rural votes, can level the playing field, can keep your name above the fray, and can distinguish you as fair and future-focused in your position. And for you Eastern supervisors, my son works at a brewery that he says is the best brewery in Lowney.

[02:21:02] Thank you. Ms. Mitchell, I did catch how much easier than pie is that. I did catch that. Yeah, she almost bumped up for pie. Krista Cato followed by Robert Wilbur. Good evening. Good evening and thank you for the opportunity to speak. This evening I hope you leave with a clear understanding that farm wineries are working agricultural operations and that on-site sales and events are essential to keeping those farms viable. My name is Krista Cato, owner of Two Twisted Post Winery, a family-owned and operated

[02:21:38] rooted in agriculture winery. At its core a winery is a fruit farm. Vineyards work in a year-round labor-intensive and weather-dependent arena. Roughly every five acres supports a full-time job, and most employees live in Loudoun supporting Loudoun families.

[02:21:57] This past April, the severe frost destroyed approximately 75% of our crops, while fixed costs, wages, land, and taxes remain unchanged. Agriculture alone is not sustainable here. Hay generates about \$50 per acre annually, far below property taxes and operating costs. And even fruit production often does not cover labor.

[02:22:22] On-site wine production keeps the farm viable. We are concerned about proposed regulations that cap attendance, parking, and frequency of farm-based events. These events, as you've heard, are a core revenue stream that offsets agricultural risks and support local jobs.

[02:22:40] Limiting them directly reduces farm viability. When farms lose their increased revenue streams, they don't just close, they sell. We're already seeing farmland turn into subdivisions, into subdivisions, increasing traffic and long-term costs. A winery hosting weekend events is not the problem, it's an alternative. We want to continue farming, pass this land to the next generation, and preserve the agricultural heritage that this country values. As we, we ask the board to ensure

[02:23:16] that any policy is moving forward protect the economic viability of farms like ours so we can continue to operate and keep this land in agriculture. Thank you. Thank you. Thank you. Robert Wilbur, you will be followed, sir, by Sarah Brown. Good evening. Good evening, members of the board. I'm Robert Wilbur. I work for Loudoun Soil and Water Conservation District. I'm also a Virginia State Certified Conservation Planner as well as a Virginia Nutrient Management Plan writer for agriculture. I'm glad we're all on the same page about motion five or the recommendation five about the spring setbacks that we want to avoid the way that potentially you may end up with development

[02:23:55] immediately next to a spring. I think that's super important. And I had the thought of why can't you have the best of both worlds? If it's just in the mountainside, keep it at 300. In those neighboring areas,

maybe that's 100. Just something to think about. But I'm going to spend the rest of my time on why I think 100 it should be more than that. So I am a soil scientist by training and I think one of the key pieces of the MOD is that it actually calls out that the soil map units in it are connected to major groundwater recharge areas, especially map unit 89. From a cursory

[02:24:31] glance through, you'll see that there are a lot of springs within that map unit. What that means is that this is a question about groundwater and surface water quality. That is super important in all of western Loudoun and its fractured geology. Best practices for nutrient management plans puts the setback for all springs and wellheads at 100 feet. That assumes you have no environmental sensitivity factors. Those same environmental sensitivity factors are the backbone of what makes up the mountainside overlay district. You have sensitive soils due to their location

[02:25:07] over fractured bedrock. A huge chunk of the soils meet the highest class of that sensitivity. You also have slopes. Anything over 7% slope, we are advised to exercise extreme caution in anything that could become a pollutant to surface or groundwater. Some even go so far as to say doubling the setback to surface water like a spring. So thank you. That was interesting. Thank you. Thank you very much. Sarah Brown, followed by Martin Graves. Good evening, Ms. Brown. Good

[02:25:41] evening, Ford. I'm Sarah Brown. I live at Oakland Green Farm. I operate a beef cattle operation as well. I have operated and lived at a B&B, an event. It was one of sort of the original B&Bs in the county when my mom started it in the 1980s. So I have hosted events. I have grown a little bit through the process of how we as Loudoun County host events, and I've seen some good changes, and I've seen some misses.

[02:26:14] Importantly, I really love our wineries, like I really, really do. And I'm not going to name any names, but they know who they are. I've hosted events there at wineries. I have been the beneficiary of their charitable hosting events for local schools, et cetera.

[02:26:31] I get that it's important. It's important for them, and it's important for our communities as a whole. And I enjoyed participating in the TLUC discussions about this. I wasn't privy to all the conversations, but I heard a lot of it, and I was surprised when the unlimited number came out of that process.

[02:26:51] I feel like there should be a tiered approach to how we can do this and accommodate most of what we want. I've listened to my friends and neighbors talk about their wineries on 50 to 100 to 1,000 acres.

[02:27:10] Great. We need to address wineries or event locations that are on much smaller lots. And I don't see that that has been addressed. And I think that there's some gradations that can be achieved in that. I mean, part of this process is to address those very few bad actors because those are the ones who have pushed the limits and set precedent for others to come behind them and do the same.

[02:27:35] We know the impacts can be dire and they can have felt, you know, unlimited people. It's not hard to get to a health, safety, and welfare concern. Thank you for your time this evening. Thank you so much, Ms. Brown. Martin Gray is followed by Trinity Mills. Good evening, sir.

[02:27:53] Madam Chair, board, thank you for allowing me to speak to you, expressing my concerns. I've been a resident of Western Loudoun for over 30 years, and I support ag 100%. I was FFA in high school. I did vocational horticulture, and I do support it.

[02:28:12] But the problem is twofold in Western Loudoun. We need to put a pause until we figure out really what the issue is and how much water we really have. Because in 30 years, it may make no difference whether you have a winery or a brewery because there won't be any water.

[02:28:31] And you guys will be forced to find the money to pipe water out there. Big concern. Put a pause on all of this until you really understand the water situation in Western Loudoun. Once you have that, you can make an intelligent decision, okay?

[02:28:47] The other thing is intensity of the events is an issue. I deal with a winery, a cidery, a brewery, and another brewery all within the same location, okay?

[02:29:04] You can come out to my yard anytime you want to. There's no life anymore. All you hear is noise. We go out with earbuds now. I called the police about noise ordinance. They said, oh, the decibels are from inside your house with your windows closed.

[02:29:21] Hmm, interesting. And trying to drive down that road, most people now come down the road I live on because the main road, Foggy Bottom, is too dangerous. And we have a little state road that goes through there that Loudoun County doesn't even allow the school bus to go down, okay, because of how small and tight it is.

[02:29:42] But everybody in the neighborhood has to go through there because on the weekends you can't go down that road. There's no control, and size matters, and how much they're all clumped together affects the quality of life.

[02:30:00] But even that, setting that aside, you guys really need to pay attention to the water. Thank you, sir. That's number one. The rest can be worked out. It really can. Thank you, Mr. Graves. But the water cannot. Thank you. Thank you. Trinity Mills, you will be followed by Samuel Lynch.

[02:30:17] Good evening. Good evening, board. I'm Trinity Mills, speaking on behalf of Loudoun Wildlife Conservancy. I'd like to first thank the Board for understanding the importance of supporting the Proactive Zoning Enforcement Initiative. Furthermore, the proposition to conduct an analysis of the non-residential properties is similarly critical to rectify long-standing issues that have been documented to negatively impact resident well-being and quality of life, as well as environmental conditions in Western Loudoun.

[02:30:43] The safety and well-being of our residents must be at the forefront of considerations as you make your decisions tonight. Standards in Western Loudoun affect all of Loudoun. Regulations in the mountainside overlay district protect sensitive environmental features which provide ecosystem services felt countywide. For instance, mountain springs feed our streams that connect to the creeks and rivers that we rely on for more than just water.

[02:31:04] Reduced buffers for source water, decreased protections in sensitive areas, increase the likelihood of harmful runoff, making its way into the water both we and non-human residents all over Loudoun County rely on. Arbitrarily reverting to a decreased setback for source water does nothing to mutually serve residents and the environment in the long run.

[02:31:22] The same can be said for increasing the minimum thresholds for land disturbance, requiring a grading permit, and eliminating county oversight for impervious surface repairs in highly sensitive areas.

All of these changes have the potential to negatively impact the water quality of Loudoun's already impaired groundwater and stream system.

[02:31:39] Western Loudoun is where natural landscape thrives in the county, and our mountains are a tremendously important part of what makes this county special. The area of M.O.D. encompasses almost all of the DCR-designated ecological core habitat that is left in Loudoun County. It is essential that you make decisions which serve the interest of our quickly disappearing wild spaces for residents all over Loudoun that benefit from the ecosystem services that they provide, as well as for the critters who deserve to have their home protected, too.

[02:32:07] Thank you. Thank you. Thank you very much. Samuel Lynch, followed by Chris Suarez. Good evening, sir. Good evening. My name is Samuel Lynch, and I'm a Loudoun County resident who also works at a brewery here in the county. I want to share briefly what this opportunity has meant to me.

[02:32:24] Since graduating, working at a brewery has been much more than a job. It's been a launchpad. I've developed skills across hospitality, operations, and production. I've received leadership experience much earlier than I ever expected, and have attended industry conferences, built a network, and grown both professionally and personally.

[02:32:41] My story is not unique. It's happening every day across Loudoun's rural policy area. What makes Loudoun special is the balance that is built, supporting economic opportunity while preserving the character of the rural West. It doesn't happen by accident. It happens because there's a real working rural economy.

[02:32:58] That economy includes agriculture, vineyards, equine operations, tourism, and small businesses like breweries, wineries, and farms that welcome residents and visitors alike. These businesses create jobs, they generate income, they keep land active and productive, and they contribute to the quality of life that makes people want to live and work in Loudoun County.

[02:33:18] I'm one of those people. This opportunity has shaped my career and future. So I'm here tonight to ask respectfully that you continue to support the framework that allows these businesses and people like me to grow and succeed. Thanks for your time and consideration. Thank you. Thank you, Mr. Lynch.

[02:33:34] Chris Shoraz, you'll be followed by Peter Weeks. Good evening, sir. Good evening, Chair Randall and members of the Atlanta County Board of Supervisors. Thank you for the opportunity to speak tonight. My name is Chris Suarez. I am speaking as the chair of the Atlanta County Brewers Association. First, I want to thank the members of the Transportation Land and Use Committee who have worked so hard on this zoning rewrite for the last two years.

[02:33:55] Your dedication and willingness to listen to means a great deal. As a regular stakeholder at TLUC meetings, I'm truly grateful the board has made time to hear directly from our industry. As the chair of the Atlanta County Brewers Association, we fully support the industry's position on the motions outlined And in the May 1st, 2026, Visit Loudoun Memo.

[02:34:15] Our limited breweries are more than businesses. They're gathering places where Loudoun residents and visitors come to relax, celebrate, and proudly show off our county to friends and family. We hire local Loudoun residents. We pay our taxes, and we help preserve open land by giving it productive, community-oriented use.

[02:34:35] Instead of furthering residential development, our venues exist to support this community. That support goes well beyond our doors. right now we are running a beer with benefits a special beer available at 12 breweries across the county to raise money for echo echo is a local non-profit it's more than just a small same that's just a small sample of the cherry events that and community giving our members do every year safety remains our number one priority chair randall you said you wouldn't be able to sleep with yourself if you pass a rule that included ended up harming someone we as owners

[02:35:10] and operators feel the exact same the safety of our guests staff and neighbors is non-negotiable our limited breweries already meet and comply with the commonwealth strict agriturism safety and operation requirements a few bad actors should not lead to the broad new new regulations that punish the responsible majority we strongly urge the board to enforce existing zoning rules rather than create overly restrictive ones that hurt the many good operators that contribute so much to to Loudon. Thank you for your time and considering the voice of our industry as you move forward.

[02:35:44] Thank you, Mr. Torres. Peter Weeks, you'll be followed by Benicia Shah. Good evening, Mr. Weeks. Thank you. So tonight, I want to focus on the MOD. We share the mountains with Clark and Falkir County. Interestingly, they do not permit by right non-residential development on the on the mountainside of the Blue Ridge and Paris Mountain.

[02:36:10] Why does Loudoun County lag behind in protecting our mountains? This is why developers target Loudoun to build incompatible enterprises and will continue to be encouraged to do so if we weaken the MOD ordinances. Isn't there a lesson to be drawn from the proliferation of data centers?

[02:36:29] Most Loudouners don't want more data centers, and they also don't want more development in our mountains. My bullet points. We've gone from a 500-foot setback from streams and springs to 300 feet, our current ordinance, and now they're asking for a 100-foot setback in the MOD. This is a matter of public safety to protect our drinking water by keeping the current ordinance. Do allow fences associated with residential and agricultural production uses on the MOD without the need

[02:37:05] for a grading permit. Also, we support proactive zoning compliance for non-residential covered activities within the rural policy area, including an analysis of current facilities as a matter of public safety. We support Supervisor Tacroni's motion to require a minor special exception for all non-residential covered activities in the somewhat sensitive and sensitive areas of the MOD except for bona fide agricultural uses. Also require non-residential covered activities to show that a minimum of 50 percent of the existing forested areas are retained on site. Thank you.

[02:37:45] Thank you for the supporters in the room and in their yellow shirts. Thank you again. Thank you, Mr. Weeks. Manisha, did I see her not here? Did she leave? No, I don't think I saw her today. No? No? Okay. Alicia Oberleeson, are you here? Okay. O-B-E-R-L-I-E-S-E-N? There we go.

[02:38:15] That's a hard one. Thank you. Good evening. Good evening. My name is Alicia Oberleeson. I grew up in Loudoun and I've operated a business in Percival for 27 years. I'm currently a Paris, Virginia resident. You're hearing a lot from Paris tonight. As a business owner, I understand and support thoughtful growth, but Loudoun's competitive advantage is that it still has what other places have lost, open space, mountain views, history, and rural character. While current businesses seem to largely keep this intact, large-scale non-residential development impacts

[02:38:50] our greatest asset in a permanent way. By way of example, the village of Paris, within walking distance of Loudoun, is already facing threats from proposals in Loudoun County that raise serious concerns, including, but not limited to, the destruction of historic property, dangerous traffic impacts, and perhaps most importantly, water supply issues. One resort pre-application proposes water use, exceeding the village's current daily consumption, as you heard earlier, while remaining just below regulatory thresholds. Yet more realistic estimates suggest demand could approach nearly three times the current usage. This water does rely on, in part, the springs that

[02:39:28] are in the mountain overlay. This is an area where water supply is already considered vulnerable in both quality and quantity and residents have recently received oil water advisories. Reducing protections increases these risks and limits the scrutiny needed to prevent irreversible harm. If protections to the sensitive overlay mountain districts are rolled back, this kind of development is made easier and consequences of this will not be theoretical. Changes to setbacks from springs and streams, tree clearing requirements, and by right development can directly impact property values, tourism, small businesses, groundwater, and public safety across multiple

[02:40:07] counties. Once these resources are compromised, they cannot simply be restored by future vote. Rolling them back invites conflict, potential litigation, and long-term consequences. Keeping them in place protects Latin citizens, economy, reputation, and neighboring communities.

[02:40:24] I urge you to vote to preserve these resources specifically in regards to new larger development. Thank you, thank you, thank you very much. Uh, we have time for I'm going to extend and say two more speakers and the next speaker is Kate Search. Meet, I think I saw her and then the last speaker because we go for 90 minutes. It's Douglas Smith. Good evening, Miss Search. Me, good evening, good. Good evening, my name is Kate Zershmied, and our family has farmed Gray Country Farms, Bluemont Vineyard, and Dirt Farm Brewing.

[02:41:03] for 33 years in Bluemont. What an evening of impassioned comment. This room is filled with entrepreneurial farmers, well-funded lobbyists, and residents of the communities we all share. This is a pivotal moment, the culmination of years of comments, staff recommendations, and stakeholder discussion.

[02:41:25] Many of you have mentioned balance, but now is the time for bold action. Rather than balance away Loudoun's rural economy by piling on regulatory burdens, I urge you to unleash the creative spirit inherent in farmers who make their livelihood stewarding the land and to meet the needs of residents with rapid response.

[02:41:48] You can vote yes tonight to drive home farmers' right to farm in all of Western Loudoun, including the mountainside overlay, unburdened by over-regulation or special exception. You can vote to support Motion 20 to let farmers craft their farm products and beverages, sample and sell them via unique events and tastings without capping our revenue potential.

[02:42:13] You can also vote to support a rapid response solution to noise, traffic and lighting issues. So residents county-wide can know their concerns be heard and addressed with timely corrective action. This step alone will address the vast majority of complaints about events and show strong support for our communities.

[02:42:37] This is a historic moment. I'm confident that you will go beyond balance and take bold action to guide staff to enable our farms and communities to thrive for generations to come. Thank you.

[02:42:53] Thank you. Supervisors, there would literally only be four more speakers after Mr. Smith and I think because we had two, a planning commissioner and an elected official go, the people who were still on the list through number 45 were told that they would be able to speak. So I'm going to let those first 45 go. It would take six more minutes, so I'm going to do that. Mr. Smith, you'll be followed by Bill Waite, followed by Richard Rasmus. Good evening, sir. Good evening board members. Appreciate the opportunity to speak. I second your praise of the

[02:43:28] staff here for working so hard on all these difficult topics. I'd also survive some of the stakeholder meetings, especially the July one. But I'm here basically to say I appreciate the recommendation from staff to not approve number 20, the unlimited. I think we all know about Cox Farm just over the county line in Fairfax County. Big property, which is where we talked about earlier tiered things they have a big property their nearest neighbors are 800 or 1,000 feet away they're not impacted by the noise and the dust just those of us trying to drive on braddock or pleasant valley road when you can't get through during halloween or christmas or any other time

[02:44:06] i think that's what i'm trying to say here is the board has an obligation not only to look at what the business impact is in lowland county but look at not just the dozens of businesses that might be affected by our decision but the hundreds of people that maybe can't afford to do t-shirts like some of the group might be here tonight trying to push their point, but you have responsibility to the county residents who live next to these properties to protect their way of life. I started in Sugar Glen Rund, I moved Ashburn Farm, now I'm in Aldi. I'm keeping moving west because of the noise and congestion. Maybe someday I'll move out of the county because of the noise and congestion and the problems that we're having because of the businesses

[02:44:43] as you heard during the TLOC session, the bad actors who are not being enforced properly by the rules that we have. Your job here is to protect all the citizens, not just the business interest. Thank you. Thank you, sir. Bill Waite, followed by Richard Rasmus, followed by Jim Bingo. Good evening, sir. Good evening, Chair and members. I'll try and I'll shorten this up in recognition of the time. My name is Bill Waite and I'm here to speak directly about what is at stake for the public safety and the fiscal responsibility with the last-minute

[02:45:17] motions that were introduced. Allowing unlimited events, attendance, extended hours, and reduced setbacks ignores several years of public input and your staff's recommendations. Residents and first responders have consistently asked for some scale or balance and these motions remove it. The consequences are immediate, rural roads are narrow and unlit, not designed for heavy traffic, Large and late-night events increase the risk of accidents, impaired driving, and delayed emergency response.

[02:45:52] Reduced setbacks push back these impacts closer to homes and make crowd control and safe access more difficult. There is a real economic cost. Increased demand on law enforcement, EMS, and road maintenance falls on taxpayers and can outweigh the added revenue.

[02:46:12] At the same time, declining property values in affected areas weaken the county's tax base. This is not growth, but a cost shift. Separately, I urge you to support the motions requiring a minor special exception for non-residential covered activities in sensitive areas in the MOD.

[02:46:32] This is a practical safeguard, allowing case-by-case review to ensure safe access, appropriate scale, and compatibility. It also ensures land disturbance is properly evaluated, protecting steep slopes for instability, reducing erosion, and preserving groundwater recharge that supports Western Loudon's drinking water and long-term public safety.

[02:46:57] This is a clear choice, increased risk and hidden costs, or balanced and responsible approach. I urge you to reject unlimited expansion motions and support policies that protect public safety physical stability through balance. Thank you, sir. Thank you. We have three more speakers. It would be Richard Rasmus, Jim Bingle, and the last speaker will be Jeff Tehr. Good evening, sir. Good evening. My name is Richard Rasmus, and I live in Hamilton. I'm here on behalf of the Loudon's Future Pack as the owner of a 22-acre farmstead that's been in the family for 40 years and as a stakeholder participant in the T-Luck process.

[02:47:37] Five years ago, a brewery purchased a 17-acre illegal dump site overlooking our home. The plan was to build a huge three-structure farm brewery with parking for 265 automobiles and eight buses 1,000 feet from our home and even closer to our neighbors.

[02:47:56] I've had friendly and constructive interactions with the several property owners over the years and plan to continue in that spirit with the new owner. However, friendliness is no substitute for binding and forcible zoning protections on hours, noise, traffic, parking, lighting, public safety, or event intensity.

[02:48:15] Without reasonable standards, a use like this represents less of a farm operation and more of a rural bar and event venue loophole that enables a level of intensity not contemplated when the county first created the standards for alcohol-oriented operations in rural areas.

[02:48:36] This is why Recommendations 20, 23, 32, 33, 34, and 50 in particular are so concerning to us. Absent common sense limits on the size of events and guests or frequency or the size of the property and its proximity to neighboring homes, zoning amendment process will have ignored years of legitimate residential input.

[02:49:00] Please support staff's recommendation to require event-specific and property-size-related standards for private parties and events in rural areas, such as have been adopted in other northern Virginia counties. Please support occasional proactive enforcement and an inventory of existing non-residential uses, and please require that on nights before work and school days, Sundays through Thursdays, guest activity hours end at 10 p.m. Thank you. Thank you, sir. Will you say those numbers one more time for me? Which numbers? The numbers you just said you'd like us to. Oh, 20, 23, 32,

[02:49:38] 33, 34, and 50. I thought maybe you're talking about 265 parking lots. No, no, no. I will repeat Thank you. Thank you so much. Two more speakers, Jim Bingo, followed by Jeff Tehr. Good evening, Ms. Bingo. Good evening, Chair Randall, and thank you for letting us all speak.

[02:49:59] I'm Jim Bingo with the Piedmont Environmental Council, speaking on the MOD motions and board guidance. We continue to promote greater protections than generally proposed in the motions for the sensitive MOD and think that the area deserves more county oversight, not less, of any building, structure driveway fix not have further commercial development and maintain the existing setbacks from ridges and springs associated with that it's better to preserve 50 tree cover in the area to preserve the integrity of the mod ecosystem if grapevines are suitable for the area we don't

[02:50:36] oppose their production with a farm plan but associated development should not be on sensitive MOD areas where impervious cover will reduce groundwater recharge and increase runoff and the slumping of soils contributing to even greater erosion.

[02:50:52] We don't support the proposed reduction to MOD setbacks from springs and ridges. The limestone overlay district does have spring setbacks at 100 feet, but if there's a 15 percent slope or more, then it goes to 200 feet. But there, they don't have slopes that are greater than 25 percent and in stable soils that we need to think about. So the underlying reasons, those soils, are for the sensitive, what create the sensitive, highly sensitive, and extremely sensitive area designations. The earlier discussion that you had was very

[02:51:31] helpful. 100 foot setback in the non-MOD area and 300 for the steeper slopes and unstable soils in the sensitive MOD seems reasonable as a concession. It is a valuable asset, the MOD, that deserves a waiver-based case-by-case approach if there are challenges on a property instead of blanket changes that have been proposed. Thank you.

[02:51:57] you very much. And our last speaker is Jeff Tare, T-A-R-E. Good evening, sir. Good evening. Thanks for 45. I really appreciate it. Be quick. Good evening, Madam Chair, members of the board. My name is Jeff Tare. I am a Loudoun County resident, and I've spent the past 20 years working commercial real estate here in our community. Over that time, I've seen how many people that I work with experience Loudoun for the first time. Many executives visit through venues and businesses that could be impacted by these decisions. They have a great experience and I've seen that lead

[02:52:33] to families moving here and businesses expanding into the county. The impact goes well beyond the property itself. Thank you for the work you're doing. Land use decisions are complex and they matter in so many ways, so I really appreciate all the effort that goes into this. I want to offer a perspective from the financing side of the market because zoning decisions don't stop at the parcel lines. They directly impact where the properties remain financeable. When property becomes non-conforming, lenders immediately see risk. Values adjust downward, and refinancing becomes more difficult, sometimes not available on standard terms, which makes it

[02:53:11] more expensive in general. It also affects existing loans. Most require ongoing zoning compliance. If a property is deemed out of compliance, it can trigger a technical default, and even if the owner has never missed a payment throughout the life of the loan, grandfathering helps but it's not the same as conforming zoning it's viewed as fragile and that uncertainty alone impacts value and access to capital in the market at that point i leave with this zoning decisions don't just shape land use they shape financial outcomes and long-term investment in this county i'm not here to oppose thoughtful planning i simply ask that these

[02:53:51] financial ripple effects are part of the conversation moving forward as you continue this dialogue with the community thank you for all your work thank you thank you sir i appreciate it so that is all of our speakers um supervisors that's what we're going to do now so um i have well spent the entire weekend in this building and in doing so um and mr thank you mr turner for all of your assistance uh i have put the motions the different questions in in three blocks

[02:54:25] I asked Mr. I think it's Mr. Malone to repeat his numbers because he was the only one that gave a number of 33 that is in the block that no one else had talked about. But the numbers, not so much, the

items are in three blocks. The first block is item numbers that the TLUC agreed on 5-0 or depending on if Ms. Glass was here, 4-0-1.

[02:54:57] The staff agreed on there were no issues from what we have kind of named the conservationist community, meaning Sabra Loudoun, Friends of the Blue Ridge, Piedmont, Loudoun Farm Bureau, RADC, we've kind of all together called those the conservationist group, and there were no issues from what we would call the business community, the wineries, the breweries, those types of things.

[02:55:28] So this first block of motions, I'm going to say, I'm going to go on and do this motion before we take a break, because I don't, I can't see from, with the exception of literally one person tonight that mentioned one of those items, which is item 33, there have been no no issues or no discrepancies or no problems with this item, with these numbers.

[02:55:51] And so I'm going to make that motion, and then I will talk about the other two blocks of motions after we take our break and how we will handle those other two blocks of motions. Is that okay? We're good? Yeah? Okay. So yes?

[02:56:07] Yes? Okay. So I move the recommendation of the Transportation and Land Use Committee that the Board of advisors, direct staff to amend the Loudoun County's ordinance in accordance with the Transportation and Land Use Committee recommendations, numbers as follows.

[02:56:24] number 7, 9, 12, 13, 14, 17 through 19, so 17, 18, 19, 21, 24, 25, 30, 31, 33, 35, 36, 38 through 49, 52, and 55. So that is the motion. Is there a second? Motion is made and seconded.

[02:56:57] Okay, a couple of things I did want to say tonight because there's some things I heard that were kind of not, well, concerning. In the amount of research I've done, and please know that I don't for one second believe my research touches anyone's experience in farming in Loudoun County or your knowledge about water.

[02:57:21] My research is just that. My research is not your experience. My research is not your generations of farming and your families and all the things you've been doing. That is not, I say all the time, that's not my love language.

[02:57:37] So all I can really do is research it and try to deal with the numbers in front of me. I don't know the experience. And so I'll say that right up front. But my research did show something I want to just slightly push back on. to the 2024 Ag Census, Loudoun County was one of the only counties in Virginia that actually added farmland. We added 6% more farmland than we had before. I actually credit all of those. I mean, you know, say Rural Loudoun, John Ellis can drive me crazy, but we're 6% stronger in farmland. And so there is something that is going well in Loudoun

[02:58:17] and the things we're doing, and I have come to believe that how you regulate land is economy. Land and economy go hand in hand. I've come to believe that. And so for these motions, Mr. Turner and I sat down yesterday for quite a while.

[02:58:39] I have sat down with staff. I have made phone calls to some of you. I believe that these motions, how they were presented, how they explained, and the input we have received, I do not believe that any of these motions will have a negative effect on any part of this discussion.

[02:59:01] That's why I'm moving these motions in block. Anybody else for these? Sure. Yeah. Go. For you, Chairwoman. Did you say 15 too? Did I say 15? I said -- I did not say 15. I said 14. No, I didn't say 15. And if I

didn't say it, it's because -- it is not because it didn't pass 5-0 or 4-1. It's because some

[02:59:36] industry or some citizen had a major pushback. So if I saw those, I didn't include them even if we pass something 5-0 or 4-1. So if I go look at the cheat sheet, number 15, I don't have any idea why it didn't say 15.

[02:59:53] It was on your list. It is on my list. We're going to add number 15. Been here all weekend, really tired. Madam Chair, Madam Chair, can you say that? Whoa, whoa, whoa, whoa, whoa, whoa, whoa. I was still in Mr. Crony's time. Thank you. Yeah, that was the mobile food trucks.

[03:00:10] Yeah, so we're at 15. Okay, you want me to go through them again? Yes, can you say the numbers again? little bit slower please. Thank you. 7, 9, 12, 13, 14, 15, 17, 18, 19, 21, 24, 25, 30, 31, 33, 35, 36, 38 through 49, 52 and 55.

[03:00:49] I did, 52 and 55. May, I was going to ask about. Whoa, whoa, we're in Mr. Sains' time. So I'm assuming you didn't say three and four because of one groups.

[03:01:06] Because three and four have people have the, what I named the conservationist groups had some concerns. So that's why three and four. It's not whether it passed TLUC 51 or 401. It is whether it passed that and if there were no concerns.

[03:01:27] So I did not say three and four. That is true. Or five as well. Okay, thank you. I just added 15. I just did add 15. I did add 15. Yes, you did. 51.

[03:01:47] 51 can be added. 51 has nothing there. 51 can be added. Are you done? 51, Ms. Glass. Thank you, Madam Chair.

[03:02:02] And by the way, welcome back, Ms. Glass. And I know you were watching us on TV, riveted by all the TLUC meetings, and we did miss you. Welcome back. Thank you, Madam Chair. I just want to thank staff for the work that you've done.

[03:02:18] I also want to thank those who participated, the residents who contacted us regarding this very important matter. Your opinions and your comments really gave us a lot of feedback so that we can get this right.

[03:02:40] Thank you, Madam Chair. Thank you. Ms. Bricksman. Thank you, Madam Chair. I'm happy to support. I just had a question about 19 because that was a 3-2 vote at T-Lock with Kirshner and Randall. But yeah, she said 19. She did it the first time but not the second time.

[03:02:56] You were correct. 19 was part of it. 19 was part of it. It was a 3-2 vote. You said it the first time. No, I said 17 through 19. I said 17 through 19. I did. And it was in your email as well. It was in my email. Yeah. No, I said 17. I think it was a 3-2 vote the first time but then we had the second vote on there and i think it passed something like that uh let me go let me go to 19. yeah i let me go to 19. i'm confused about it i said let me go to

[03:03:29] 19. can we stop my time please is that okay madam chair i did say 19. guys just let me go to 19 for a second please i know 19. stop miss brixman's time retain existing private property and special events permission, but add clarifying language to the respective definition and standards to clearly differentiate these types of event uses and ensure they are used in a manner consistent with their intended purpose.

[03:04:02] I believe what happened there, Mr. Kirshen, tell me if I'm wrong or right, that you added a friendly on that one, and that's why I thought. It's been a lot.

[03:04:18] We can take out 19. manager well let me just get let me just get to miss brixman i'll come to you in a second miss brixman i i guess it's pretty um i don't know it's very vague to me so i'm with number 19 or all of it maybe staff could clarify what number 19 means if that's okay so this was just to offer clarifying language to differentiate private parties from special events because in the zoning ordinance they are two different things so that's all that this was doing to offer more clarification on that difference the difference between private parties and special

[03:04:56] events yes so like a private i'm sorry our zoning ordinance has two has separate definitions for those things yes yes so the so the private parties are specific to like lodging uses and those are by invitation only and a special event that can occur on you can have 10 of those per calendar year and those can occur on any property you get you get a zoning permit for each one. You should get a zoning permit for every special event? For every temporary special event yes. Okay okay all right I guess I guess if we're

[03:05:36] gonna have clarifying language that we will review again I think I'm okay with leaving it on. That's exactly the note I have in on that one too we're reviewing this for clarifying language is exactly the note I have. And we'll review it when it comes back yeah I guess that's exactly and Planning Commission can chew on it a little bit okay all right that is exactly the note I have on that one okay okay I'm fine with leaving it in then thank you Mr. Turner I just want to turn your light on please I just wanted to clarify so the ones that we that chair Randall just identified were agreed to by county staff recommendation and the business community and the conservationist community so it was three green

[03:06:13] yeses on the stakeholders. It didn't take into account the T-Luck vote, the final vote. It just said to the county staff and the two stakeholders agree, and they did. That's the only thing that these ones have in common. Okay, so, Ms. Brixman, that was a good catch for that very reason that you talked about, but I'm going to leave 19 on there. I'm going to read it one more time, everybody okay? Okay, ready staff? Ready everybody? It's been a really long weekend. Okay, 7, 9, 12,

[03:06:53] 12, 13, 14, 15, 17, through 19, 17, 18, 19, 21, 24, 25, 30, 31, 33, 35, 36, 38 through 49, 51, 52, and 55.

[03:07:23] I made the motion. Mr. Turner seconded the motion. All right. All in favor, please say aye. Any opposed? That motion will pass 8-0-1 with Ms. Umstead being off the dais. Okay, supervisors, when we come back, the next tranche that we have are motions that pass TLUC, either 5-1 or 4-0, but citizens, and again, I'm sorry with the protest.

[03:07:53] It's the conservation group and the business group, and I know I'm splitting you all in ways that I shouldn't, and I apologize. it was just for the purpose of how I was thinking about it, somebody had some issues enough that I actually didn't want to put those on the consent list.

[03:08:11] And so we'll go through those next. I do realize and I do hear that the numbers that are the most troubling, that we've gotten And the most requests or the most statements are item number 20 and item number 32.

[03:08:33] So I was going to take those two up separately anyway, but I think that we probably could get past this second tranche, especially after some discussions I have at break, and then we will go to the 1, 2,

3, 4, 5, 6, 7, 8, 9, 10, 11, 11 that really were very much more contentious. That's how I plan on doing this. And so that's what we're going to do. All

[03:09:08] right. We're first going to take a, we've been on the stage for three hours. We're going

[03:09:13] to take a 15 minute break and we'll be back in 15 minutes. Thank you very much. Okay.

[03:41:49] we are back supervisors we can do one or two things here i i have a feeling that most people who are here and most of the discussions we have had are really about um items on our list item 20 item 32 items um 23 34 and 50 which are the items of um of hours of operation we can we can we will we will go through everything else we will but in some ways it makes sense to

[03:42:24] while we still have some wits about us and to take the ones we know are the is the the issues that people have been most concerned about and then we can go back and do all the other ones and we then obviously we have to go back and do all the other ones but those will go fast faster if items 20 item 30 items item 32, and the items that concern hours of operation are dealt with first.

[03:42:56] So, and that's, again, 23, 34, and 50. So, if staff's okay, I'm going to do that. I'm going to, I'm going to, we're going to do those three, okay? We're going to do items 20, item 32, and then together, items 23, 34, and 50, all deal with the same thing and that's hours of operation okay all right so i have a motion on hours of operations which is 23 34 and 50. mr crony i think you have a motion on 20 is that

[03:43:33] correct you do not have a motion on 20 mr crony and mr kirschner do neither of you have a motion on 20 because i thought you did no i don't need a motion i thought you all were i motion 20 has a lot of okay how about this while you all figure it out wherever you are I'm gonna go and make my motion that on hours of operation okay which will

[03:44:05] dispose of items 23 34 and 50 all right the red one the red piece of paper bottom motion ready red piece of paper oh my god red piece of paper bottom motion items 23 34 and 50 i can't am i being unclear i'm not being unclear all right i moved at the operating hours for agritourism agritourism events livery stables equestrian event facilities

[03:44:43] bed and breakfast inn bed and breakfast homestay country inn and farm winery commercial winery limited brewery, and limited distillery, and their excessive uses, I'm sorry, and their accessory uses, private parties, and events, with the exception of an enclosed or partially enclosed equestrian barn, that's the exception, operate under the following hours, Monday

[03:45:14] through Thursday, 8 a.m. to 11 p.m. Friday and Saturday, 7 a.m. to midnight. Sunday, 9 a.m. to 9 p.m. That is the, oh, I further move that staff develop a process to allow the previously listed uses to extend Sunday hours of operation to also include 7 to 9 a.m. up to four times a

[03:45:47] year per establishment. That's my motion. Is there a second? All right, thank you. All right, so this is what I'm trying to do. I understand that we need to be liberal with the hours that we provide, and I believe this is doing that. I also know that there are people who have lived in their homes before the wineries and breweries arrived, and they also need to have, I think,

[03:46:21] a day or maybe even two days where their whole day they don't wake up and go to sleep to winery and brewery noises. I have heard from some of the larger wineries and our breweries that there have been times through the year that they may want to have a special event, whether it's a strawberry

picking that starts at eight in the morning or a 5k run or whatever. So to take care of that, I have put in and I further move that will allow them four times a year to operate

[03:46:58] from 7 a.m. all the way through 9 p.m. But that won't be the norm. The norm is Sundays 9 to 9 and then Mondays. And I did Mondays 8 to 11 because I'm literally trying to get kids out of the way and into schools and on buses and things like that. And then Friday and Saturday i i much more liberal times uh 7 a.m to 12 midnight so i did hear all the feedback that everyone gave on these hours with respect and i i heard the feedback with respect i do not believe

[03:47:37] that taking two hours off of Sunday which is all that i've really done here everything else is almost the same i've actually added an hour to Friday and Saturday because it goes to all the the 12 noon before it was 11. So I added an hour to Friday and Saturday and I took an hour off a Sunday night or two hours off Sunday night. I don't believe taking two hours off a Sunday night is going to completely ruin our wedding venues. I just don't believe that. And I do believe that people have the right to at some days have things go down and not go hearing music all the way to

[03:48:13] 11 o'clock or 12 o'clock at night thus the reason for this motion miss bricksman thank you madam chair um i guess the Monday through Thursday the the staff recommendations was was 7 a.m may i ask staff why 7 a.m was selected for opening so 7 a.m the current hours of operation for like private parties in the zoning ordinance now is 7 a.m to 12 midnight so that's we were basing off of that

[03:48:49] threshold i'm sorry right now it's 7 a.m to 12 midnight for every day or yes for private parties associated with lodging uses every day yes okay so we're actually reducing that with this motion we're reducing by an hour for five days a week and and Sundays i guess more than an hour no four days a week well we have we have Monday Tuesday Wednesday yep and Sunday okay um and i i guess

[03:49:28] the only other thing i'm thinking about uh is the Sunday i i agree with pretty much everything the chair said but my wedding was on a Sunday before Labor Day so um would it be staff would it be difficult to write an ordinance that allowed them to stay open later on Sundays if it's a three-day weekend that would not be difficult we could we could do that that's the board's will madam chair would you accept a friendly that would allow establishments to have be open later on a

[03:50:06] holiday weekend on Sundays if the if the holiday falls on Monday the holiday falls on Monday that's fine i'll accept that from all right thank you those are all my questions thank you Mr. Crony um i'm also going to ask to see if you would accept a friendly amendment to 10 o'clock um Monday through Thursday so 8 to 10 p.m that that is what staff recommended um is that what it is right now eight to ten Monday through Thursday i mean eight to eight seven to ten

[03:50:40] sorry i mean for private parties at lodging uses it's 7 a.m to 12 midnight every day yes yeah and staff recommended 7 to 10 p.m right Monday through Thursday am i correct that's correct we our recommendation was just based on people having to get up and go to school and work the next morning

[03:51:03] yeah yeah um okay i'll take it and then we'll see if it passes and if it doesn't go back we'll go back so okay Mr. Kirstner just to clarify before my time starts what was the friendly to amend the Monday through Thursday down to 10 pm all right so my questions um are as follows madam

[03:51:36] chair if i can direct my so i do think um two questions first of all number 50 which has to do with the question events i'm assuming we're not this does not in any way i want to make sure staff understands that change that non-public facing activities are not going to be impacted by this that's right

that's literally in the motion did i miss that i'm sorry well i should have said we could have said differently it says exception of an enclosed or partially enclosed equestrian barn and it should have said it could have said non-public facing activity that's fine so the the only other question i would have madam chair um is the sunday i think um i do i am

[03:52:15] concerned that some horsing events will begin early on sunday and also some weddings and whatnot will need to go a little longer i think 9 p.m is probably too early i would ask if Madam Chair would move that to 10? I would not. I think that I think that this is reasonable. I have had all the discussions and I understand the request and I have told I have told the people who have to. I would not. I would not. I think and you you put in here language in terms of enclosed equestrian. What if it's an enclosed venue? Usually enclosed equestrian doesn't have a lot of traffic. An enclosed venue would. I'm not going to. Nine o'clock is where I'm going to stand

[03:52:55] on Sundays. Okay. I think that's probably going to limit a number of the, you know, I think people have weddings on Saturday and on Sunday. They do. And a wedding that ends at 9 p.m. is probably not the most attractive for a venue when they're having their whatever is going on. So would you change the Sunday to 8 a.m. for certainly for the equestrian? I would not. I think I wouldn't.

[03:53:20] i will i would not no the sunday time no i would not all right well i think with that said i may not be able to support this as limited as is on that sunday i understand um i i don't disagree with supervisor tracrony's motion to the 8 a.m to 10 p.m but i think uh on sundays um the weekends the centers essentially i think for most of these businesses are equivalent to or sundays are equivalent to Saturdays in many, many ways in terms of how they operate their businesses and the demand for it.

[03:53:56] So I think we will severely be limiting them if you end it at 9:00 p.m. So I would probably not support the motion just because of that, but if the chair would change her mind and move it to 10:00 p.m., I think I could support it. I will not, but thank you.

[03:54:15] And if it fails, Madam Chair, I will make the same motion with the 10:00 p.m. Okay, then if it fails, you should do that, but I will not. Mr. Sainz. Thank you, Madam Chair. That was very nice, Mr. Kushner. All right, so the motion that passed at a TLUC, that was 7 a.m. to, is it 11 o'clock p.m.?

[03:54:44] And that was for every day, or was that just Fridays and Saturdays and Sundays? It was for Friday, Saturday, and Sunday. Okay, and then for Monday through Thursday, what was it? 7 a.m. to 10 p.m. 7 a.m. to 10 p.m. Okay. And then how would staff interpret the last further move by the chair regarding the 7 a.m. to 9 a.m. up to four times per year per establishment? Would establishments need to get registered? How would we do that? I think we would have to work through

[03:55:21] that process and developing that process, whether that'd be during a permit process or some kind of that we can verify the four times per calendar year that they're doing that okay all right um all right i respect the chair as she knows a lot but i will not support the motion okay miss um glass thank you madam chair um i'd like to ask staff what was your suggestion for the date the

[03:55:55] time for Sunday? We were suggesting 7 a. m. to 10 p. m. for Sundays. Madam Chair, may I ask you a question?

[03:56:16] Sure. What was your reasoning for the time that you have, the 9 a.m. to 9 p.m.? I think my reasoning is this. As much as we have to support our businesses, and I think we are supporting our businesses. And I think many of these motions do that. I also think people's homes and where they live

have to be respected as well. And many of these homes were bought before the businesses went in place. And they didn't expect to have any of this around them. And they deserve to have a

[03:56:52] day where they don't have literally the majority of hours in the day where they're dealing with the things that the businesses bring. I don't think 12 hours on a Sunday is unreasonable at all. When an establishment closes at 9, is it that all of the customers are gone by then, or has everything finished up? We were thinking of it as, we had included language like guest

[03:57:30] activities yeah that would allow people to still clean up you know after we're after the business closes at nine or ten you're not turning the lights off hey you don't have to go home but you got to get out of here exactly all right thank you so for closing i would say this supervisors i literally added time on friday and saturdays it's more time on friday than saturdays but i will say again, we have focused, and I understand we focus, and we should, a lot on the businesses

[03:58:06] that we're talking about. And we should. But a person's home is also an investment. And sometimes a person's home is their largest investment. And I do believe that they have the right to have enjoyment of their property as well. And so to say that 12 hours on one day a week it's too little. Seems to me that we are only focused on one side of the equation and I think it's important to focus on both sides of the equation. Now I will also say this, when it goes

[03:58:46] to ZOC and when it goes to the Planning Commission, I do think a discussion, a tiered level would be a discussion I think would be appropriate because if you look at a stone tower or a Great Country farms sits on 400 acres that's not the same thing as something that sits on 10 acres it's a big difference and so I'll have that discussion about the tier level and I think that's a that's a fine discussion to have but but my starting point would be nine nine o'clock to nine o'clock on a Sunday adding times on Friday and Saturday and and on Sunday that bride and groom can go start their

[03:59:25] honeymoon one hour earlier like I am Laura said I like that uh that was my closing I know I was I have a point of clarification yes ma'am after this goes to ZOC and after it goes to planning commission these hours could change after this goes to ZOC and this planning commission this whole document can change everything can change so they can have the discussion of a tier program and I welcome that discussion everything could change we've seen that before so all right I I made the motion seconded by Mr. Turner.

[04:00:03] On people who say aye. Aye. Opposed? Nay. I think that was 5-3. Nay. I think that was 5-3. If you're nay, put your hand up. 5-4-4. Jeez, here we go. I'll make a motion.

[04:00:19] Okay, just to say it, 4-4 in a motion, a 4-4, a tight vote fails a motion. So we can come out of this with no motion. Same one, just changing the numbers. No, I'm not. I believe what I believe.

[04:00:35] I'm not changing it. No, Madam Chair. You can make a motion. We can make a motion, right? You can make a motion. Mr. Kirsten, would you like to make a motion? I would. Make a motion. I'd make the same motion you made with the change to the Sunday time from 8 a.m. to 10 p.m. There's a motion on the table.

[04:00:52] Is there a second to that motion? Point of clarification, Madam Chair. Does his motion include the friendly from Supervisor to Crony and the friendly from me? Yeah, I'll include both those friendlies. All right, thank you. There's a motion on the table that with all the friendlies in his adds two hours to Sunday time from 8 a.m. to 10 p.m.

[04:01:10] One on either side. One on either side. Would I like to have an opening? Was there a second? Ms. Bricksman's seconded it. I think I've basically discussed it before, but I think that one extra hour does make a difference. Just getting people out of there.

[04:01:26] 9:00 p.m. is just a little bit too early. I appreciate what Madam Chair has said in terms of people around, but that's why we have the noise ordinance, and we really need to crack down on the noise ordinance, and that's why we need to do that noise ordinance proactive enforcement that we've talked about. But if there's issues with noise, that needs to be dealt with.

[04:01:43] And so, otherwise, I would encourage my colleagues to support this. Again, if it gets changed and they have different suggestions when they come back, we can review it then. Thank you, Madam Chair. Anybody else? Mr. LaTourneau. Yeah, I'll make a blanket comment. I'm not -- I'm going to be pretty flexible on these motions because this is a resolution I've intent to amend.

[04:02:01] Sure. Yeah. Honestly, if you listen to the discussion tonight, you'd think that this was the final vote on a final ordinance. a single ounce of text that's been drafted no so I'm not gonna get that wrapped around the axle whether we're an hour here or there at this stage in the process I might in a year and a half yeah but right now I'm not yeah so that's that's true yeah that's what he was yeah that's why I said it when it goes to the Planning Commission in the ZOC it could change because this is a Roya but my statement before I go this is Roya mr. de Terno's right but but the Roya

[04:02:36] Victoria gives guidance in our language, and so it's not obviously a final vote, but the guidance matters, and I don't want to give the guidance that 8 to 10 on Sunday's guidance that I want to give, although I understand what you're saying, and for the most part from here on, I'm sure I'll be pretty flexible as well, but I feel really strongly that people get to enjoy their homes without having 8 o'clock to 10 o'clock on a Sunday.

[04:03:05] Would you like to have a closing, Mr. Kirshner? All right. I want Mr. Kirshner to make the motion, Ms. Pricksman seconded, I'm happy to say aye. Aye. Opposed? Nay. So that motion will pass with Ms. Umstead being out and Chair Randall voting against the motion.

[04:03:21] All right. Let's go to motion number 20, which is going to be the funnest motion we have tonight. We just got a text of somebody who wants to sell us solar.

[04:03:40] They're from Hawaii. Okay. All right. I thought, so number 20 is established for farm wineries, limited, I'm not reading a motion, I'm just telling you what it is. Established for farm wineries, limited breweries, and limited distillery uses, the ability to hold private parties and events related to product sales that is usual and customary for these businesses in the Commonwealth of Virginia, as assessed reuses with no limitations on the number of such provided that they are consistent with the alcohol laws in the Virginia code

[04:04:17] and then to enable enforcement of existing noise, parking, and lighting ordinance for such product and event sales. That motion passed 3-2. Mr. Crony and Mr. Turner opposed the motion. And then it says refer to number 5 in this item.

[04:04:35] And when you go to number five, I don't know why it's referring you there. I really, really don't. So that's what the motion is right now. Not the motion. What number was that again? 20. I can't repeat things 10 times.

[04:04:53] Well, there's a lot. There's a lot. There is a lot. But this one was a big one. And so I don't have any motion on this because I was under the impression that one of my colleagues did. So with no motion or nothing else, the packet motion that we had, which is 3-2 of Turner and to Crony opposed, is what we'll go through.

[04:05:20] Staff did have a recommendation, which was basically... Give me a sec. Mr. Crony? I know staff did not recommend including this in the final motion. Am I correct?

[04:05:36] Correct. But did you have something before I go to staff? I don't have anything except to remove it. I would recommend removing it. So that would be my motion. You would recommend removing it? Yes, sir. My understanding in the discussions before the meeting here was that staff is comfortable with pulling 20 completely because two subsequent motions establish the limits that they're seeking.

[04:06:00] Okay, I'm going to staff. That was a plan of clarification. Staff can answer that in just a sec. I'm going to go to Mr. Kirshner, then I'm going to go to staff. Mr. Kirshner? I would make the motion that's in the back that was originally made by T-Luck Judge, or Judge, Madam Chair. It's a long day. What do you want me to, is that what you want me to do now? No, I want to find out what staff's going to do first, what staff wants to say first.

[04:06:18] So our recommendation was to basically allow recommendations 22 and 32 in the staff report to guide, to be the direction regarding this issue and to not include Recommendation 20.

[04:06:48] But basically, our recommendation is allow the relevant TLEC recommendation as approved by the Board of Supervisors to guide staff in the drafting of language for private parties and events, specifically excluding TLEC Recommendation 20, which shall not be approved. So you want to use, no, he didn't say he said 32, right?

[04:07:10] 22 and... 32. 22 and 32 is what you said. All right. So let me just say this back to you. You, and what Mr. Turner just said, you would just not use this at all. Correct. This motion at all. You believe the two other motions fulfill the need of this motion. Yes. All right. I think my colleague doesn't agree with that. Is that right, Mr. Kirshner? Absolutely not. Okay. I oppose those Okay, so at this moment, then what I'm going to do is first, no, I'm going to go to you.

[04:07:47] I'm sorry, I did not oppose 22, sorry. No, number 20, I'm going to go to you for a motion on number 20. That's what I'm going to do right now. So I would just make the motion that is in the packet, which is to establish for farm, winery, limited brewery, and limited distillery uses the ability to hold private parties and events related to product sales that is usual and customary for their business in the Commonwealth of Virginia as accessory uses with no limitations on the number of such provided that they are consistent with the alcohol laws of Virginia Code and enable enforcement of existing noise parking and lighting ordinance for such product sales and events.

[04:08:25] I will second that. Discussion on that motion, Mr. Kirshner. Yeah, Madam Chair, this is basic. This is almost identical to the language in the Farm Bill itself. It's very similar. It basically says that they can, and I think really the discussion is surrounding whether or not, as you heard many of those from the industry say, is having these events is part of what's usual and customary in the selling of their product.

[04:08:52] And that's, I think, essentially what the statute says. And I completely disagree with staff on this. I think they are incorrect, and no offense to them, but when you, I've gone over and I've poured over

that statute and this industry has been acting this way and practicing this way and how they have events on a regular basis, whether it's wine tastings, whether it's a small gathering, whether it's a business outing, whether it's a wake, whether it's a wedding, you name whatever it is, and they sell their product. That is how they stay in business. If we even speak about limiting these and their ability to do that, we are going to ruin the wine industry,

[04:09:28] brewery industry that we have grown accustomed to and enjoy in Loudoun County. It is a very dangerous path that we walk down if we begin limiting the number of events or even talking about it. I mean, let's say we could even thread the needle. That would mean we would have to talk to every single one of our 45 or 50 wineries, one of our, all of our farm breweries and say, will this work or won't this work for you? I mean, it's not like a, the B&Bs and the, or depending on the size of your establishment and that sort of thing.

[04:10:00] They depend as a full-time business on the ability to sell their wares on site. You heard Mr. Bozzo talk about how he says we sell 85% of our stuff to the customers who come, and he's no different than any other one of these establishments.

[04:10:19] So if we start limiting the number of events, and when we call events, you know, what is an event? But the events can be all kinds of different sizes and whatnot. So we basically think we know, if we vote no on this, we think we know better than A, what the farm bill says, what the statute says, and B, how to actually stay afloat and run a wine and winery business.

[04:10:49] And I think we don't. We don't. Very few of us up here have agricultural experience. I have a little bit. I've never run a winery or a brewery or distillery or anything along those lines. But they're working on a very fine margin. And when we start even talking about taking those away, we run on a very thin ice.

[04:11:11] Now, with that final set is, I think all of them are willing to be regulated when it comes to the noise, the traffic, and even some aspects of the parking and that sort of thing. And again, that is 99.99% of the complaints that we have here in this county. And that's the part we should be focusing on.

[04:11:27] Thank you, Madam Chair. Thank you. I grew a cucumber. And then I called Ms. Winshaw to tell her I grew a cucumber. Ms. Bricksman. Thank you. I have grown cucumbers, tomatoes, and peppers. Strawberries failed.

[04:11:45] Oh, heck no. So two questions for staff. Is this what these venues can do now? They can hold these three types of venues can do unlimited right now.

[04:12:02] No, they do unlimited now, but that's not what they're supposed to be doing based on the zoning ordinance and the zoning administrator's interpretation. what's happening now is they believe they can have unlimited events but what they're supposed to be doing is getting a special event permit and they're just not doing it they're not getting a site plan and the sure neighbors the issues that they complain about are noise parking and traffic the fundamental issue that staff has is some of the uses don't have a site plan

[04:12:36] there they have access roads that they've created that we don't have mapped there are buildings out there that were built specifically for an event venue but they tell us it's a farm building and get the exemption which means we haven't examined it to see if they have appropriate egress but we are going to

do that with our inventory correct when we do our inventory that has already been improved we will be checking on all of those matters it hasn't been approved yet we'll talk

[04:13:13] about that on june this on june 2nd we'll talk about that okay okay um just i want you to know the fundamental issue it's not just noise and parking sure that bothers that bothers neighbors right but it's public safety it's a public safety and i agree i agree that we should that we should look at that we should have folks coming into compliance but it fears it feels very patriarchal to me to tell a business how many times they can have events at their business when their business

[04:13:44] is built to have events and host potentially parties and anyway so I'm not debating it I'm not debating anymore I'm not asking any more questions sorry not to be rude Ms. Birgit but I understand what you're saying and I do want those issues fixed I want the I want the you know the driveways and the roadways fixed I want the fire codes to be enforced but I'm going to support the motion because like I said I don't feel comfortable telling a business how many events they can have do I want to come back later and have all have everything inventoried and have

[04:14:22] everything brought up to code yes and I'd like us to help those businesses do that but to me it feels a little bit like then what do we say you can have 10 events you can have 50 events if you're this big you can have 40 events i it just feels it feels over regulated to me so the zoning ordinance currently allows 10 of those special events per year okay okay thank you mr um to crony okay so unlimited events with unlimited guests flies in the face of public input that we have heard for

[04:15:00] 10 years now. Our comprehensive plan strategy 3.1 says ensure compatibility of rural economy uses through the evaluation of scale, use, intensity, and design of development proposals in comparison with the dominant rural character and adjacent uses. This flies in the face of residential and adjacent uses. I'm sorry, unlimited events on a 10-acre brewery. That is not okay. I don't know it could ever be okay. That is a very intense use. I have a motion that I'm going to make later

[04:15:37] about tiers and, you know, some industry members don't support that. Well, the tiers are to look at the intensity and scale of the use to create small, medium, and large tiers. This basically lets anybody do unlimited events with unlimited guests. I don't really understand that. And yes,

[04:16:02] There is a public safety issue. There's public assembly that's going on here. It is primarily for events and not necessarily farming. Once you get to a certain amount of people, remember, weddings have 400 people. Is it okay to not have building codes and fire safety codes in these establishments that have 400 people? Is that okay? That is not okay.

[04:16:28] I think we really need to look at the balance, at our comprehensive plan, adjacent uses, at public safety, and the welfare of the public.

[04:16:46] I think all of us care about that responsibility. I take that responsibility very seriously. Establishments in the East that do these kind of events, they have all the building codes and fire safety codes. And I think the public would expect that going into these establishments.

[04:17:03] so i have a question for jason hobby are we allowed to look at state code i'm looking at state code here right now are we allowed to go ahead and do regulations on events yes we are the state code i believe it's the section that's been referred to as the farm bill but it's not the farm bill it's the 15.2 2288.3 which deals with farm wineries and then um three colon one which deals with limited breweries and 3.2, they all say, yes, they say usual and customary

[04:17:40] activities. They talk about usual and customary activities. They say that they shall be permitted unless there is a substantial impact on the health, safety, or welfare of the public. And that's been our position. You cross a certain threshold. I don't know if it's, I mean, that's the purpose of this amendment is to flush this out. But, you know, is it the frequency? Is it the number of attendees at the event. Once you cross a certain threshold, personally, I agree with Supervisor DeCrony, there are concerns regarding safety of fire safety, building safety, et cetera, that I think

[04:18:17] is justification pursuant to those statutes that I referenced to establish permissions and standards regarding the events. Mr. Letourneau. So when we talk about event, in staff's mind, are we talking about an establishment that's essentially open and serving customers all day, which happens at sort of intervals and flows, or are you talking about a specific event like a wedding in which 200 people show up at the same time and 200 people leave at the same time? Because those have a very different impact on the surrounding area. Which is it that staff is referring to? The latter, more or less.

[04:18:55] the latter so when we say that you're permitted in the current zoning ordinance today to having 10 special events that does not mean a winery or brewery could not be open with customers all day it just means they can't have more than 200 or 300 or whatever at a singular event is that our position or staff's position okay so then when i look at that that's very different than what mr cursor just said because that would not that wouldn't have the same effect then if the businesses are still open it would potentially limit weddings and things like that which is still

[04:19:28] significant we have to think about when i looked at the two alternative areas 22 and 32 they're silent on a limitation on events so explain to me what the approach would be then correct i i know a lot of the framing tonight has been you know we're going to put all of the businesses out of business but we have not drafted language regarding any of this yet and so there's there's still a process that we have to go through inventing this language right now i don't think any of us could tell you what the what the right number is or the approach that we would have to

[04:20:06] take and then when i heard miss burkett it sounds to me that the number of events permitted could be 365 and there could still be value in that process because staff's concern is more about understanding the facilities themselves what the capabilities are what the what the you know population can can be held within that sort of thing so is it less about really you know regulating the event per se and more about just the process by which we're understanding what's happening in the

[04:20:40] facility i think it's a little of both and ensuring that people come in to get the review so that we can make sure the safety measures are in place that are commensurate with their occupancy. It's a little, it's a little both.

[04:20:58] So, Mayor Absoe, Mr. Kirster closes. What I'm interested in hearing then is if we don't do something, then what exactly is the approach that we would take to addressing that staff concern, which I think is legitimate? You want to ask Mr. Kirster that?

[04:21:15] Are you asking staff that? No, it's probably not. Okay. So, there's two things. I'm sorry. I look right past you. I apologize. Mr. Turner. I think Ms. Burkitt's comments really resonate with me.

[04:21:32] So essentially, if I dumb this down too much, tell me, but essentially the choices between allowing operations as they are ongoing right now to continue ongoing with virtually no limitations other than the ABC laws or establish some kind of performance standards for these industries.

[04:21:55] Is that the binary choice? Yes, more or less, yes. Okay, thank you. That's a no-brainer. That's easy. That's easy. Allow the industry to go on unchecked or establish reasonable performance standards.

[04:22:12] And I'm not getting into specifics because we're just doing our, by the way, Roy is a resolution of intent to amend. I don't know if anybody's defined that for the audience here tonight. I guess in fairness to recommendation number 20, there are three items that would be performance-based for the uses, the noise, the parking, and the lighting.

[04:22:33] So that's currently included. That's currently included, but the intent is if we get rid of 20 and we leave in whatever the other two were, 22 and 32, then that gives you the latitude to develop industry-specific performance standards around their operation.

[04:22:50] Great. That's all I need. I would add on to what Brian was saying. That's my concern with 20 also. I mean, the first part deals with the unlimited number of events. But then the second part seems to indicate those are the only three aspects of those events that would be allowed to drive.

[04:23:05] That's right. And I have not bought that argument from two years ago, that it's just about noise, lighting, and whatever the other one is. No, it's not. It's about generalized performance standards, about your operation of your business, which have basically not existed. So here to four. Thank you.

[04:23:22] Mr. Turner just asked, is it the binary, and you can do anything you want to just as long as you follow the ABC laws, and you all basically said that's true. Don't they have to follow the fire marshal laws as well?

[04:23:38] Yeah. Don't they? I mean, so you're saying unlimited events, unlimited number of people. Well, if the fire marshal says the top-off number of people you can have there is 200, do they not have to fire the fire marshal laws?

[04:23:54] Yes, they do. I'm not asking you. I'm asking the fire marshal. Come on down. Here he is. Do they not have to follow, and if they are, do they have to follow the fire marshal laws, and what happens if they're not following the fire marshal laws?

[04:24:11] So the crux of that whole argument, Chair Randall, is based off of the building official. If the building official deems that it's a building and he issues an occupancy card, that occupancy card has a value that the fire marshal's office will thus enforce. Okay. So then you said we'll thusly enforce?

[04:24:29] We can enforce after that. Yes, ma'am. Okay. So you're saying only if that's a building? Yes. Only if it's a structure? That's correct. Mr. Turner, I'm going to need you to let me actually have my time. What happens if it's not a structure, if it's outside? Then I do not have enforcement value.

[04:24:45] There's no enforcement in that? No, ma'am. All right. Thank you. Of course. You're good. Thank you. I'm going to go back to the question I asked earlier. I understand what Mr. Laterno said, and I said that earlier, with the exception of, and I think this is a valid exception, which is why when it goes to ZOC and the Planning Commission, we'll work this through more.

[04:25:07] The fact that if it's an event, people usually come and go at the same time. That's kind of what makes it an event. Otherwise, that same facility can have an event all day long, and on Sundays from 8 o'clock in the morning all day long with that same number with those same number of people there no matter what so what we're actually talking about is what makes an event um and i don't think that i've had that answered well what makes an event and until i know that that answer i'm not

[04:25:43] going to decide that i am going to limit a business if i can't identify what makes an event But I do believe, absolutely, that the sale of products is what will keep a business going.

[04:26:02] And if I limit the sales of the products, then we're going to start losing business. And truthfully, I understand what you're saying that right now it's happening. Right now, something's going well. We just added 6% of farmland. Something must be going okay.

[04:26:19] So I'm not sure why we're going to break it, why we're going to hurt a business that's already thriving in our county. Again, it's Arroyo, so it'll come back. Mr. Galindo, you have your light on.

[04:26:36] I do, because I wanted to address your earlier question. Okay. If I may ask the fire marshal to potentially come back up. Sure. Because I think he could answer this better. I think the fundamental issue is not as—you were hinting at this, but just to be clear for everybody. It's one thing if it's a structure, but if it's an ag-exempt building that does not require permits, does not have an occupancy, regardless of how big, small, how many people can fit inside of it or not, it would not, I don't believe it would have to go through the same level of fire marshal approval, follow the rules, that sort of thing.

[04:27:07] Can you give me an example of what that would be? A barn. A barn. Yeah. So order of precedence on things. The building code. Yeah, I was talking to the mic, sir. I'm sorry. The building code is going to set the requirements for how the building should be built and performed. Okay. Once that is done and the occupancy permit is issued, then the statewide fire prevention code takes over on the ongoing maintenance of those things through the life of the building.

[04:27:33] So the fire code and the building code don't run concurrent in the development part. It's the building code first. That approval gets established, done, occupancy issued. Then the fire code takes over for the maintenance of that. So that's how the code flows through.

[04:27:50] If it's an ag-exempt building, we never do a building review on it. We never establish an occupancy. We never establish an occupant load. Because the building's open. Yeah, once you give it ag-exemption, it's exempt from all the provisions of the building code, which then exempts it from all the provisions of the fire code.

[04:28:11] It does the same thing. Okay, do you want to say something? No, I'm just trying to support if there's a problem. I don't know that I understood, but okay. Mr. Kirsten, would you like to have a closing? Yeah, just a couple of things.

[04:28:27] Do we know how many of our 13 farm breweries don't have the necessary occupancy permit that you speak of? Do you know how many? I don't know. So we don't even know if any of them do. Yeah, I don't know. How about our 45 or 50 wineries?

[04:28:44] Do we know how many of them don't? I don't personally know, no. So we've not even done an analysis on this, and yet we're talking about regulating the number of events, and we're talking in hypotheticals is exactly what we're doing. This is exactly what the statute talks about.

[04:29:00] I'm going to read the statute one more time, Mr. Hobie, and I'm going to ask you a couple questions about this. Local restrictions upon such activities and events of farm wineries license in accordance to Title IV to market and sell their products shall be reasonable and shall take.

[04:29:16] Now, let me ask you this question. Are these events marketing their products? Do you disagree with that or not? It's a form of marketing their product and selling their product, correct? I agree. Okay. So

they have to be reasonable. So we agree that the events that they're having are marketing, so that falls under the statute, and they have to be reasonable.

[04:29:36] Do you agree with me, and it sounds like staff does, that it's done in the normal course of what they kind of do across the state, correct? Or at least certainly in Loudoun County, they're having these events, correct? Based on the testimony tonight, yes.

[04:29:52] usual and customary activities. So listen to the next part of the statute. Usual and customary activities and events at farm wineries shall be permitted without local regulations unless there is substantial impact. That word substantial is significant, isn't it? Substantial impact on health, safety, and welfare of the public. So no local, and then it goes on and talks about noise and music and stuff like that. So we're marketing in these events, am I right? And it says we can't regulate those unless we can prove substantial impacts on health and safety. And yet we haven't

[04:30:28] even done an analysis of if any of these buildings don't have permits or not. I'm in shock. I am literally in shock that we're talking about regulating one of the most important businesses, the Western Lowne, and we don't know the problems that actually exist. Now, if you look further in the statute, no locality shall regulate any of the following under subsection E. I'm just reading the wine one. I'm not even going to the others because they're very similar. And that says the on-premises sales, tasting, or consumption of wine during regular business hours within the

[04:31:03] normal course of business of the licensed farm winery. Do you agree that during these events they have on-premise sale, tasting, and consumption of wine? That's the language you spoke with. I addressed that earlier. That deals with what Virginia ABC regulates. That is our position on that. It says localities can't do it. The arm's length transaction, the actual sale, and there is a case, I forget the name of it, it's referenced in one of the cases mentioned in this, it was actually a Loudoun County case where the court said Loudoun County tried to impose a bottling

[04:31:41] requirement on alcohol that was sold and the court said no, that is affecting the sale. That is separate from regulating the land use. The special event is the land use. But the two are tied together right mr cursing your time's up sir your time's up all right so we're going to vote i do have a point of i don't know what i would call it if this motion is to pass and when it goes to the zock and to the roya can we add in there before it comes back to us and we say a final yes or no that there is some look at the water can we can that be something the zock and the planning

[04:32:15] commission looks at if that's what the board would like us to add we're happy to add that language the language of the royal is directing staff and the rest of this process to implement the guidance they all give us tonight so if there's a motion made to give us guidance pro con do it don't do it that is setting the path that we continue to move down supervisors do you mind if i take uh because i'm outside of my time and ask ask mr kirschman if he wouldn't mind when when it goes to zock and the planning commission that they take a look and

[04:32:54] and consider water issues. Well, yeah, that's fine, Madam Chair. Okay, thank you. Point of clarification, Madam Chair. Yes, point of clarification. The motion is to retain item number 20 over staff objection. The motion is to retain item number 20.

[04:33:14] Yeah, which staff does not want to retain. The motion is to retain item number 20 because we are the governing body. Okay, that's fine. I wasn't saying they had a vote. I was just suggesting that staff

does not want to keep 20 and the motion is to keep 20. Mm hmm. Correct. I'm sure for a clarification with the same. Yes. So could we add in friendly or is there another motion that will actually to some points made earlier to Mr. Kushner's point do an inventory. But that's gonna happen anyway. That's that's in June 2nd anyway. An inventory is coming. An inventory is

[04:33:51] coming. That's happening anyway. You might have standing to do this. Mr. Kirchner. Yes. No I don't have any closing. I already did. You already did your closing. Would you want to hold this into after the inventory is done? I think it could be done. I mean, this is, I mean, they could go through the process. It's Aurora. Okay. All right. All right.

[04:34:11] Mr. Kirsten made the motion. I seconded the motion and with a friendly amendment to when it goes to the planning commission, the ZOC and the planning commission to take a look at water uses as well. Um, and knowing that an inventory will be coming, um, to the board on June 2nd. All in favor say aye. Aye. Aye. Opposed? No. Okay. If you're a no, raise your hand or four no two three four no miss miss miss miss class would you vote i did not i am miss glass i'm gonna need you now you're the tiebreaker now and now you're the tiebreaker

[04:34:48] you're not you're a no no i you're an i oh wait okay if you're an i raise your hand okay that motion will pass five three one with miss miss miss i'm stepping up today's um mr was that five 231? Yes. Mr. Crony, Mr. Turner.

[04:35:20] Mr. Turner. Who was the other person? Oh, Mr. Turner voting now. Okay. Doing that, does that take 22 and 32 off the table? No. Not to complicate things.

[04:35:36] Well, it does complicate things a little bit. How does it not take them off the table? Well, 22 is simply the motion from TLAC regarding separating agritourism from the cultural tourism use and basically creating, establishing agritourism requirements in the ordinance, so that's fine.

[04:36:06] Number 32, I mean, you're welcome to argue this, but I would say that this is still relevant and we still would want to establish those requirements.

[04:36:23] 32 is the one that Mr. Crony, you wanted to have a discussion about first, right? 32. Okay. I know you support 32, but isn't that the one you said to me today that you really want to have that discussion? I'm trying to have the discussions you guys want to have first, and the people want to hear so we can clear the room out because we're going to be here for a long time.

[04:36:43] And they may not want to all stay with us all night long. If you want to, you can, but don't jazz hands. You don't want to stay with us all night long. Don't jazz hands that. So do you all have any issue if we go to 32?

[04:37:00] Not at all. Okay. All right, what do we got? Mr. Turner. Okay, I'm going to read 32. Develop a consistent framework and format for use-specific standards across all commercial winery, limited breweries, limited distilleries, and farm winery uses that are appropriately tailored to the industry and impacts of these uses, which standards may include but are not limited to dimension, setback, size, abuse, and are partial hours of operation, noise, exterior, lighting, roads, and access, food service and landscaping, buffering, and screening.

[04:37:36] That was a 3-1-1 motion. Mr. Kirshner opposed it. Ms. Glass was absent. Do you have any comments you want to make on this before I go to Ms. DeCrony for a motion?

[04:37:55] Do you have any comments you want to make? This would simply be developing use-specific standards for each of these uses. you know, currently there are use specific standards in the ordinance for farm wineries and limited breweries. 31 establishes limited distillery use specific standards, but this would just basically be, you know, us taking in an effort to relook at how those are laid out right now and and making suggested amendments to to those provisions. Okay, thank you. Yes sir. Let me just be

[04:38:30] clear with staff so if 32 passed you could establish use specific standards for all those things you mentioned except since we just included 20 limited on the number of events i would agree with that yes so you have performance standards but you can have an unlimited number of events based on what we just passed yes okay thank you thank you that was really helpful mr kramish like to make a motion so yeah i think i think this this motion is even more important because now there are unlimited events um that the board majority just approved so i think it is important

[04:39:06] to look at um roads and access um some of our roads are gravel um and you know i think i think we need to do performance standards regarding road and road access and state code allows us to look at parking requirements road access requirements road upgrade requirements outdoor amplified music. So these are all, you know, standards that the counties are, have clear authority to look at. So I think it's important that we look at standards.

[04:39:42] Mr. Grant, would you like to make a motion? Oh, okay, sure. Well, it's a staff motion, or it's a staff item. So 32 is develop a consistent framework and format for use-specific standards across all commercial winery, limited brewery, limited distillery, and farm winery uses that are appropriately tailored to the intensity impact of these uses, which standards may include but are not limited to dimensions, setbacks, size of use in our parcel, hours of operation, noise, exterior lighting, roads and access, food service, and landscaping, buffering, and screening.

[04:40:19] Second. Motion to be made second by Vice Chair Turner, Mr. Crony. So I just said it. I think that since there'll be more events, more intense uses, we really do need to be looking at use-specific standards that help, you know, mitigate the use with looking at adjacent uses.

[04:40:45] So with the neighbors, help, you know, take into account the impact of the neighbor. Okay. Anybody else on this one? Mr. Kirshner. Sure. I have some of the same concerns, but I would like to support this one, but I would like it to be, if I can add in a friendly, Mr. Crony, Supervisor Crony, that what we look at is consistent with existing state code, specifically the 15. 2 et al. that has been previously listed.

[04:41:16] I think most of what we cite in here probably can -- some of it can be, such as the noise and the exterior lighting, et cetera. But I just want to make sure that we put in here and we clarify that it's consistent with the state code 15.2 at all.

[04:41:32] Is that okay with you? I want to make sure it includes parking, road access, road upgrade, and outdoor amplified music. So I just need clarification from Jason. Would that include all of those since the county can regulate that? if it's consistent with state law right I don't think staff would bring forward something that's not consistent with state law so I don't know that it needs to well I did with all due respect and it's out of my time but this is my friendly I have I've clearly disagreed with you at this point in this meeting so I'm just asking that it be consistent with state law that we put that in the

[04:42:08] motion yeah I mean it would be so yeah yes I'll take it perfect mr. Turner you the second of the motion will you accept that no man okay well then that won't That won't go through, then the seconder of

the motion has to accept it as well.

[04:42:25] Mr. Kirsten, you're still in your time. Oh, yes, I am in my time. You're still in your time. So if we're not going to put in here, if Mr. Turner doesn't want to accept a friendly because he doesn't want to put basic language in here to make sure that what we're looking at is consistent with state law, that troubles me.

[04:42:44] I mean, I understand he trusts staff on this one that the farm bill, as I've been calling at, as Mr. Hobie pointed out, or Section 15.2 at all, doesn't apply to some of these things that we're talking about, but if it does, if it does and you're not worried about it, then you should accept it as a friendly.

[04:43:02] So what we're basically doing here is we're going to look at performance standards in a number of different areas, some of which I think are probably really, really good, but we're not going to be willing to say, yes, but we have to do it consistent with state law under 15.2. That's really troubling to me. There's obviously a clear difference of opinion of the way I'm reading it.

[04:43:24] I think the way the industry reads it, I think the state level, the industry, the state level is reading it. But most of these things, I think, can be done. I would like to be able to support this motion, but if it doesn't say it must be consistent with state law, that bothers me, and the fact that one of our supervisors will not support, will not allow that language, suggests to me that, indeed, we're willing to go outside what the state law says in a Dillon rule state.

[04:43:49] All right. Mr. Croning, you're not yet. Mr. Letourneau. Let me just ask a quick question, Mr. Rogers. Mr. Rogers, is it possible for two attorneys, both in good standing and know their career and know their job, to read a code and come to different conclusions?

[04:44:16] Absolutely. It happens every day in court. Thank you very much. Mr. Letourneau? you probably said what i was going to say actually which was just that if we're that unsure that staff is following the law then we have bigger issues than what's here that need to be addressed in a performance review that is not where i am so i will respect my colleagues opinions but also i'm not going to look at staff and say that you're not following state law that's not something i'm going to do or else i'm going to address it as a personnel matter right it's on mr i'm sorry mr

[04:44:50] Turner. Thank you, Madam Chair. This is a first. I've been a supervisor for six years. It's the first time I've ever been accused by a colleague of advocating that the staff violate state law. It's a first. It really astounds me that that is tolerated by this board and this chair. Thank you.

[04:45:10] All right. I think we're tired and it's late and we've been here for a long time. So there are some things that we're just not going to respond to because we don't have to respond to everything. And I think two very reasonable attorneys can read state code differently and come to a different opinion.

[04:45:30] And I think everyone would benefit by taking a big deep breath and getting through a whole lot more of the package that we have tonight because we've got a long way to go. We've got a long way to go. So the motion was made by a supervisor to crony.

[04:45:49] by the way, I'm supporting the motion. I do think to look at all these things is appropriate and fine. I actually, had I seconded the motion, just so you know, Mr. Kirshner, I wouldn't have accepted your friendly either, because I do think that, I'm a great Mr. Letourneau, I think that we have a fairly large,

fairly well educated, very smart legal staff and you are an attorney, but they're a land use attorney, that's what they do.

[04:46:26] And so I would have actually done, I would have not accepted that friendly as well. Not because I don't think you know what you're talking about, but because I think that, you You know, that on legal issues, I don't think our staff's going to lead us down the road that's going to end us up in court.

[04:46:44] So, all right. Mr. Crony made the motion. Would you like to have a closing? Yeah, thank you, Chair Randall. So this was put into legal form, this motion. So it has been reviewed by our county attorney's office. If state code doesn't mention it, then we can go ahead and come up with regulations.

[04:47:06] So I'm hoping that most of these can be looked at for all of these uses, you know, it went through the proper legal process, and I'm glad that staff agrees that we do have the legal ability to set use specific standards, especially with unlimited events now.

[04:47:30] So I really do want to look at all of these standards and how we can, you know, reduce the impact on adjacent uses. So I'm happy that, I hope my colleagues will support this.

[04:47:45] Thank you. Thank you very much. Mr. Crony made the motion. Mr. Turner, second the motion. Please say aye. Aye. Opposed? That motion will pass 7-1-1 with Mr. Kirshner opposing the motion.

[04:48:00] and Ms. Umstead being off the dais. Okay, supervisors, I think we probably hit the hardest ones and I'm going to go back to the motions that were, I've got so many pieces of paper up here, just give me a second please. I'm going to go back to the motions because we may not, we may be able to do some of these in bulk now too, that did pass TLUC but that maybe had some discrepancies with

[04:48:32] some of the industries. So those are motions 3, 4, 5, 8, 15. We've already taken care of 23. We've already taken care of 50. 15 was in the first. 15. Yeah, it was. I keep, I put in the wrong place. So then let's go back to motion number three, because I don't remember even what the issue was with what was going on here.

[04:49:05] It was 5-0, and with number 3, our conservation community had some thoughts about it. This motion was, and I'm going to go on and make the motion, and then we can have the discussion. It was a 5-4 motion to allow minor encroachments of no more than 600 square feet of land-disturbing activity within the highly sensitive areas of the mountainside overlay district for a non-habitable residential accessory structure by administrative approval if in accordance with set standards.

[04:49:41] Motion to second it. I think the issue here might be that it's in the highly sensitive mountainside overlay district. be the issue. That that might be what the conservation community is is pushing back. I understand that. Can you tell me how much 600, give me an idea of what 600 square feet is. That is not helping. A standard two car garage is you know for 500 to 600 square feet. Okay and how many of those could be on the on the on the in the mountainside? I mean how many of those could be there? I mean it's a

[04:50:19] very small structure and it wouldn't matter if there's a very small structure and there's one or two of them. It would matter if it's a very small structure, and there's 100 of them. So as you read this motion, how many would be allowed?

[04:50:36] As I read this motion, you would be allowed 600 square feet total disturbance. So if you have a 600-square-foot garage, you would be allowed one garage. In what? Okay. I'm highly sensitive. Okay, but.

[04:50:52] Antigous. Well, I'm saying, so one landowner, I'm saying, how many of them would be allowed? How many structures that are 600 square feet could be placed on the highly sensitive overlay district?

[04:51:10] This would allow it as an administrative approval. Right now, if you wanted to do something like that, you would be required a special exception to get that approval. I'm not answering this question right. Okay. I'll answer it. I'm not asking my question well. Are you asking if it is one per lot or more than one per lot?

[04:51:28] Yes. That would be part of the administrative approval. How many could be allowed? We would want to limit that to one per lot, 600 square feet of disturbance per lot. Okay. Thank you. Mr. Kirshner. Yeah, this part comes up.

[04:51:46] My staff deals on a regular basis and myself with all kinds of issues dealing because of the very stiff restrictions. And this is still going to be pretty stiff and pretty strict, but it allows us to go through the administrative process more than the specs.

[04:52:02] So if someone has a 50-acre lot and they want to put a little garage on it, they've got to go through the whole process and staff is going to establish administrative approval. And if that approval is you can't disturb more than 600 on 50 acres or whatever the size of your lot is, that's what it's going to be. My question was how many per lot?

[04:52:18] Right. And I think they'll establish that as part of their administrative approval, and I think that would be sufficient. One per lot. Yeah. Thank you, Madam Chair. Okay. Thank you. Anybody else on this? Who seconded this? You seconded this? All right. All in favor, please say aye. Aye. Any opposed? Number four. Madam Chair. Yes. Do you think we could just do four and five together since they're both 5-0? Sure. You want to make motions, Ms. Rixman?

[04:52:45] Actually, Mr. Croni, you want to make it? Oh, okay. You want to work, so that, so the answer is no. Oh, never mind. I'm going to say number four. I motion, I make, I'm going to move that we add a relief mechanism to allow for not, and again, this This was not -- the conservation community had concerns about this one.

[04:53:07] For non-habitable residential assessment restructures to be located within the mountainside feature protections by administrative approval if in accordance with set standards. That's the motion. Motion is made and seconded. This did pass 5-0, and I honestly don't see an issue with this one.

[04:53:23] I don't. Does anybody else? All right. I'll be able to say aye. Aye. Any opposed? All right. Five. I can speak to a minute. Just a minute. Let me...

[04:53:39] Oh, Ms. Crony's going to make a motion, but not the motion in the package. I have a recommendation for this. Right. Just a minute. Let me... I think she sent the motion. It's the motion that you sent, right, Mr. Crony? No, no.

[04:53:55] I was just going to do 300 on the mountainside and 100 feet outside the mountainside. So just what people suggested, the residents. Okay, so you make the motion, please? Okay. I move to revise the spring feature protection setback to 100 feet outside the mountainside and 300 feet inside the mountainside, so I have to get rid of that,

[04:54:30] and to establish a regulation requiring that the spring feature protection only apply to areas within the designated setback, regardless of whether those areas fall within the MOD. Second discussion

on that motion. So you just changed the motion. You just changed the motion. Okay. I just changed. I'm only saying that because we had a discussion earlier about bringing a motion that we hadn't put out today. Okay. Okay. All right. Cool. I'm just saying. Okay. Okay.

[04:54:55] Okay. No, I know. But I didn't know that we could do this. Okay. Go. This was an idea from the public. And it's a great idea to keep keep the 300 feet inside the mountain mountainside and 100 feet outside the mountainside because because we know on the mountainside there's sensitive soils and there's groundwater recharge, so it provides an environmental benefit, and that way we're not reducing or weakening existing standards. Okay. Mr. Kirshner? So, Madam Chair, I might make a suggestion on this. Sure. Because we

[04:55:30] had a long, I mean, there were some comments, and I think we should take those comments seriously, but we're, again, giving direction on this. My recommendation would be to stick to the current motion but with the caveat that those recommendations for hire come back to us and the reason I say that is we went kind of back to the 93 we don't know if 300 is the right number we don't know if 100 is the right number maybe 200 is the right number in the mountainside we're just kind of picking the number kind of a random number and I think or we keep the motion that you've made and maybe we add a friendly that that would and maybe that

[04:56:09] goes without saying and maybe staff can answer me that there's some flexibility for the planning Commission and ZOC to kind of look at what is the appropriate number because we're just kind of stabbing in the dark right here. I want more science behind this, honestly. I don't want to choose 100 or 300. Maybe it's 500. Maybe it's 50. I don't know. We had a fairly lengthy discussion and I'd kind of like to know how staff would see this motion in terms of the flexibility going forward that even though it gives guidance, how do you see that flexibility? Is there something we can add here that originally it was passed by finance or excuse me by the fluck and then it

[04:56:46] came to the full board and they wanted to revert it back to 300 but they also were curious about discussion is that how the discussion could be led well certainly if you add it into the motion that you know the 300 or the 100 foot is is something that we would explore further we could do that um if you put a specific number in there we're going to proceed with that number through to the Planning Commission and ZOC, but you know, in our, you know, working through that draft language, if Planning Commission feels that a different number is necessary, we could.

[04:57:20] Would you accept a friendly to change it to explore between 100 and 300 on Mountainside as to what's appropriate? Commission, yes. Yeah, so they can look at that? Not necessarily ZOC. I'm the seconder and I won't accept that. I'm going to stick with Mr. Crony's motion and know that, and I think you're friendly, you try to make the first time is the Planning Commission can look at this.

[04:57:41] Okay, we can do it that way. But I'm going to stick with Mr. Carney's motion. You will accept that friendly as suggested by staff to look at the proper? I won't accept that friendly. But we already know that. I thought you said you would accept the first one. I didn't know it. I apologize, Madam Chair.

[04:57:58] I know. You won't accept that allowing the Planning Commission to look at it? I will, but I'm going to keep Mr. Carney's language and then say yes. Yes, and that's fine. Yes. But then add to that as a friendly, so I'm changing my friendly. Yes, that's fine. All right, thank you. Does staff understand that? Yes. Thank you.

[04:58:14] All right. We good? Ms. Crane, do you want to have a clue, Mr. Paterno? Yeah, now I'm confused because isn't the Planning Commission going to look at everything anyway? The NZOC. So then what's the point of the – so I – this is one where – well, yeah, but we're giving them a specific number now.

[04:58:32] I actually agree with what Mr. Kirscher said in the first place, which is that this is too prescriptive if we don't know what the numbers should be. It's probably somewhere between 100 and 500. So if I were writing this, it would be tell the ZOC and the Planning Commission to examine this issue and come up with a recommendation.

[04:58:49] That's it. It wouldn't be it's 100 here, it's 300 here, whatever. So I'm not going to support this language because it's too specific. And I understand that the motion already had numbers in it. So, you know, yeah, yeah. So, okay. All right. So, Mr. Cunningham, are we in closing?

[04:59:07] No. Okay. All in favor, please say aye. Aye. Opposed? No. Okay. That would pass 7-1-1 with Mr. Laterno saying no, and I'm stepping up to this. Have we done eight? We haven't done eight, right? And this, again, this is past 5-0.

[04:59:26] Oh, my God, this one, this one, guys, yeah, we only have to do six. But eight, Mr. Kirchner, this was the one that was kind of, I thought, really obvious. So you want to make this motion because it was kind of one that you really cared a lot about.

[04:59:41] Yeah, I've been dealing with this for a while. Allow for the replacement, repair, resurfacing in the existing driveway that has experienced washout from weather, storms, or other similar natural causes within all mod areas without the need for a grading permit if it creates less than 5,000 square feet of land disturbance, is located entirely within the existing driving footprint, and is in accordance with the set administrative approval criteria.

[05:00:01] Second. No discussion, I don't think. No discussion, me either. Discussion. Anyone have any interview with this one? All in favor, please say aye. Aye. Any opposed? That motion passed 8-1. Okay, we've done 23. Six? It feels like we didn't do six in the...

[05:00:24] Six is actually in... Six wasn't in a unanimous vote. That's why it's not there. It's in your third grouping. It's in my third grouping. Thank you. That's why it's not there. Ten's in my third grouping also. I'm only doing things during the second grouping right now. So the next one should be 26, right?

[05:00:42] Because we've done 23. Correct. Okay, so it should be 26. These are the easier ones, guys. 16 is in the third grouping the third grouping is things that did not pass unanimously we're on 26 16 did oh okay I'm sorry all right you want to give a

[05:01:16] motion for 16 mr. Crony revise the sourcing requirement of food and our ingredients being served in a rural restaurant to require a minimum percentage of the menu menu items served at a rural restaurant to include ingredients produced and processed from the parcel upon which the use is located on or another property engaged in agricultural production in Loudoun County and or a Budding County.

[05:01:43] Second. So this just provides flexibility to establishments wanting to do a rural restaurant. Yeah. Yeah. It just says, actually, it basically says if you're going to do a rural restaurant, use some Loudoun County-grown food.

[05:02:01] That's what that basically says. It does provide some flexibility. Yeah, that's what that basically says, and I'm all for that one. Yep, you too. Yeah. All in favor, please say aye. Aye. Any opposed? All right.

Number 26. I think number 26, oh, I know.

[05:02:19] I had, I further move on number 26, and I will go on. I did send it to you. I will go on and read it and tell you why. Create parking ratios for accessory parking for private parties based on maximum private party capacity and permit field parking, provided all field parking is on the land of the owner-operator of the facility hosting the event.

[05:02:49] So that's obvious. Basically, if you're going to have field parking or extra parking, the parking has to be on the land of the people. You can't have parking on somebody else's land. That's all I'm saying here. That's pretty obvious, right? No? What if you're leasing land?

[05:03:06] Well, okay. I mean the land that they're operating under. Well, yes. What I mean is not on the neighbor's land, unless the neighbor. Yeah, without permission. Without trespassing. Yes, no trespassing. There you go. All right.

[05:03:22] All the people, please say aye. Aye. Okay. That motion will pass, 801. That was 26, 27. Mr. Kirshner, you and I, this actually didn't pass.

[05:03:39] You and I opposed this, Mr. Kirshner. I don't know why. That was a cleanup motion, but it wasn't a, it wasn't, was it? Okay. Yeah, because I opposed it and I don't even remember.

[05:03:58] Separate the term agriculture as it currently exists in the zoning ordinance into the use classification agriculture and the use agricultural production so it's confusing and this is a cleanup oh clean up motion that's that's correct basically eliminate some confusion in the in the ordinance right now so it's not confusing yeah okay do i have a second um i think my issue with this one i'm sorry must have been seconded by miss my miss glass you have a you have an opening

[05:04:34] I was just saying, and Brian reiterated that 27 is a cleanup motion. So it's not in two places. It's eliminating the confusion. Okay, because my discussion on this was around the word bona fide, but I can do that in another place.

[05:04:54] That's fine, because that's fine. If it's in two places, I can ask that question in another place, so don't worry about it. That's fine. Anybody want to, Mr. Kirsten, you'd like time for this one? Yeah, I think I remember why I opposed this. looking at some of my notes here from the industry. And I'd like to know staff's position on this.

[05:05:16] When we start to define agriculture and agricultural production, that's not currently defined, correct? Correct. Okay. So this would essentially create some form of definition? Yes. And we were -- you'll see the recommendation 28 is, you know, we talk about agriculture production which if you recall we also opposed we talked about uh using the definition from the state for agricultural production right so is that what we're doing here yeah we're going to do so we will use so there is a so there's a definition in state law for agriculture production versus agriculture is that right so we're kind of separating those correct and we will use the state

[05:05:55] definition for agricultural production yes what we what are we going to do i think the concern from the industry is what are we going to do with that definition? Because I think they continue to feel, and as I've pointed out, as I've argued apparently unsuccessfully at times and successfully at other times, that there are a lot of things under the state law that do not allow us to regulate, for example, agricultural production.

[05:06:16] I think that's one of the concerns. So how is this agricultural production definition going to be used if it's not going to be used to regulate? So I just want to clarify what Brian said. there currently is a definition for agriculture in the zoning ordinance and it applies to both the use category and a use.

[05:06:36] And that's what causes confusion and problems when we try to administer it is because again, it's that dual definition. And so the first part is making agriculture the use category and then agriculture the use is agricultural production.

[05:06:57] Beyond that, again, we are in the ROYA phase. What I'll say is what staff kind of envisions is agricultural production is the lowest, most basic form of agriculture.

[05:07:14] It's growing stuff in your backyard, growing stuff for hobbies, raising chickens in your backyard. That's agriculture, probably applies both in western and parts of eastern Loudoun County. So it's just a very basic permitted use.

[05:07:31] But agricultural production, that would be agriculture or agriculture? I'm sorry, that's agricultural production. Okay. So growing or raising something. And that's not defined in state law is what I'm hearing you say. I believe agricultural production staff is going to use the definition for agricultural production that is in state law.

[05:07:56] All right. I guess my concern, and I don't know where I really stand. again, this is like, this is Aurora. I think I'm a little concerned about separating these out. I kind of understand what staff is doing here, but I may just vote no simply be, I mean, it's going to pass, I'm sure, but I think I'm going to vote no because I am a little concerned, again, if we're going to now define ag production as a separate category, then that kind of opens it up for a level of regulation, which I don't know if we really have the power to do that. That's what I've been maintained all along. Thank you. So agriculture production, is anyone growing anything

[05:08:33] basically, correct? Yes. Okay. All right. Agriculture, is that related to somebody growing something that they are going to sell? No. Agriculture is the use category, so that's the umbrella term. Okay. Then they are two different things. All right. Then I'm going to support this motion now. Okay. Anybody else? All right. All the people say aye. Oppose.

[05:09:04] That motion will pass 7-1-1, with Mr. Kirshner opposing the motion. Number 34, which was, that passed 5-0, establish guest activity hours.

[05:09:20] I move to establish guest activity hours for commercial winery. But we already did this, yeah, I'm sorry, we already did this, because we already did this. 37, how's that my motion?

[05:09:37] 34 was already done, 37, and we've already done 52, so we're getting there on this part. 37 was revise the agricultural education and research use so that it is no longer subject to the use-specific standards for agricultural support uses standalone and under Zoning Ordinance Code 4.08.04, And instead, it's only classified as a use under the education use category, subject to the use-specific standards of zoning ordinance 4.05.03.

[05:10:16] Oh, my God. We are so down in the weeds on this one. I don't know. The conservation of this group said no on this one. I'm not quite sure why, though. So this particular use was called out in two separate categories, And we couldn't basically tell you what the difference between why it would be regulated in one section versus another.

[05:10:37] So what we're doing here is just putting them together. Putting them together into one. Okay. I don't know what the issue is in here. All right. It doesn't matter. All right. Of course it doesn't matter. Did anyone second this? I did second. All right. Seconded by Mr. Sains.

[05:10:53] All the people who say aye. Aye. Any opposed? All right. We've done 50. Let's go to the last two. Well, maybe the last three. 53.

[05:11:08] This actually may be a bigger one, guys. Separate outdoor or major recreation into two separate uses, outdoor recreation for less intensive recreation uses and major recreation for more intensive recreation uses and develop a scale-use specific standard that reflects the intensity level of the different recreation uses.

[05:11:34] I think this is actually good. Motion made and seconded by Mr. Crony. This is the tiers. The business community had issues with this one, and I do not know why. I've got a friendly second, don't you?

[05:11:50] You have a friendly second on this one? I think so. The stakeholders, the business stakeholders generally support it, but suggested there be two intensity levels to the proposed outdoor recreation classification, so they want to further subdivide outdoor recreation into two intensity levels. The business community wants to do that?

[05:12:06] Yes. Really? Yes. really we're on 53 yeah yeah that's the same okay that's fine with me that's fine with me i made the motion who seconds the motion you second okay you we wouldn't do the specific way that's what that was that's what zoc yeah yeah that's what zach and pc would do but i think that's interesting that the business community wants to further divide which could actually

[05:12:38] regulate more but okay sure all right um mr mr brixman uh thank you madam chair i guess so the second or sorry the friendly was to have outdoor recreation for less intensive uses broken down into two separate which was the one the business community wanted more major or outdoor i got it stakeholders generally support but suggest there be two intensity levels for proposed outdoor

[05:13:12] recreation classification. Okay. Why wouldn't we just say passive and active like we do in the rest of the zoning ordinance? These are all active rec.

[05:13:29] Staff are these all active rec? Yes. Could you give me some examples of what active rec would be in our rural policy area? Right now how it's currently there's not a lot of division. An amusement park could be outdoor recreation and a

[05:13:48] baseball field could be outdoor recreation so. That makes sense. What we're looking at is sorry go ahead. What we're looking at doing is splitting those so that these less intense uses like ball fields would have a separate category from these other major recreation uses like an amusement park. An amusement park. Please let it be known to the media would not put an amusement park in Western Loudoun County. I think I'm in my time but I think I'm in my time but so an amusement park like are you talking about like temporary amusement park I mean if someone wanted to propose something that

[05:14:25] would that would be that would be the category it would fall under yes okay I mean not as a temporary use but as a permanent use okay I guess I'm fine with it but it just seems odd that we would have active recreation in our rural policy area but I guess ball fields yes our active rec absolutely okay what about what about horses and stuff like that what would that be considered is that considered active or out

is that considered outdoor recreation or major recreation they would not be included in this category they have their own

[05:15:04] category they're all on their own okay okay all right I guess I'm fine with the motion thank you okay mr. Turner you just reading the friendly I think yes okay all right all right motion is made by me who second this motion and second Mr. Crony, I want to please say aye.

[05:15:26] Aye. With the friendly from Mr. Turner through the business community through Mr. Turner. What was that, 53? Okay, you want to do 54? Sure, we're going 54.

[05:15:42] Mr. Crony? Yeah, re-evaluate the existing parking ratios for the outdoor major recreation use and develop new ratios that reflect the intensity level of outdoor recreation and major recreation uses.

[05:15:59] And that's just because it's over-parked right now for the lower intensity use for the outdoor recreation. And it's over-parked right now, so it's to look at the ratios. It's over-parked right now? Yeah, we require too much parking, am I correct, for the outdoor rec?

[05:16:16] Like, if you want to do a cricket field, there's a lot of parking required. That's exactly right. Yeah. Okay. All right. Yeah. Okay. All right. Mr. Kirshner? This ties in with the previous motion, I'm assuming. So once we define what those two major acts of recreation, we can then talk about what the parking ratios are, correct?

[05:16:37] Yeah. Okay. So they're kind of too tie-in with each other. All right. Thank you. All right. Mr. Crony made the motion. I second it. All people say aye. Aye. Any opposed? That motion will pass 801. And then the last one on this section is 56.

[05:16:55] It's the last one for this section, 56. um sure go for it that one you're sure okay okay uh daily language permitting b&b homestays to host up to 10 annual parties above the daily daily language it says draft language sorry sorry it's getting late it's 11 13 bed and breakfast ends with one bedroom continue to host up to 20 annual parties with attendees above the daily limits while bed and breakfast ends with two

[05:17:30] or more rooms and country inns be permitted to host up to 25 annual parties with attendees above the daily limits while enforcing current noise, traffic, and lighting ordinance and regulations. Yeah, this one we worked collaboratively with the B&B Guild and staff, and so this motion just gives five more annual parties with attendees above the daily party limits for

[05:18:00] B&B inns and country inns that are larger? My only issue with this is kind of what Mr. Letourneau said before. This is very specific for Arroyo. I almost feel like this should be something that goes to the ZOC and the Planning Commission and they discuss it. This is very specific for Arroyo. And I mean, I know we do want to give guiding language, but we're giving incredibly specific language on this one and i i don't i'm not real comfortable with that so

[05:18:38] i don't know why we're being so this is real specific to me for so that's all i know but yeah it's still but if it's going to be a worry it can be changed that's if you want you might amend and if they want to amend we're being really specific so um are you all concerned about that at We're really not because the issues have been so varied, so polarized on opposite ends that we were really seeking more specific direction to kind of help us through the process.

[05:19:15] Okay. All right. Mr. Crony, do you want to, you guys, I need to say with me, we'll take a break after this before we go into the third tranche. You guys, stay, hold with me. Do you want to have a closing,

Mr. Crony? No, no, I'm happy with where this is. Okay. Ms. Quinn made the motion.

[05:19:32] Mr. Kirsten seconded the motion. That's interesting. Those two. All in favor, please say aye. Aye. Any opposed? That motion will pass 8-0. Okay. So now we would go on to the ones that really are the most controversial of all, which what I have left, what I have left is, and staff, tell me if I'm wrong, I have 6, 10, 11, 16, 22, 28, 29, 34.

[05:20:07] I thought we did 16. We did 16 and 34. We did 16 and 34. So 6, 10, 11, 22, 28, 29, 51. Wrap-up motion of 57, but we have Mr. Crony's three motions. Is that right?

[05:20:23] Is that what we have? Yes. Somebody talk to me. Is that what you guys are seeing? Yes. however i i think 51 was in the first grouping okay one and two no 51 and was it yes you added it no it wasn't yeah it was you and you added it i added it in there i added in there there yes yeah i added it in there okay so we're good we're good we're that's even less so 6 10 11 22

[05:20:57] 28 29 57 except for mr ponies or anyone else's motion on the dais that's that's pretty good actually. You guys need a break or you're good? Let's keep going. Okay. All right. Number six, expand the minimum threshold to 600 square feet of land disturbing activity prior to requiring a grading permit in unforested area of slopes of zero to 15% that are also located within the sensitive and to 200 square feet for the highly sensitive MOD area. This is limited to land

[05:21:36] disturbing activities associated with residential or agricultural production uses. Motion is made and seconded. I don't have an opening for this motion at all. It was not a -- Mr. Kirshner did oppose this motion when we went through it.

[05:21:54] That's why it's on this list. And the conservation group opposed this motion as well. So Mr. Kirshner is in line with the conservation groups on this one. Might be. It might be you have questions. Would you like to speak on the motion, Mr. Kirshner?

[05:22:13] So what is the current standard? If the staff could answer that for me. So it's in unforested areas, slopes of 0 to 15 percent that are also located within somewhat sensitive areas. No grading permit is required for structures of 600 square feet or less for the following type of structures associated with residential or agricultural uses.

[05:22:34] and that's sheds, greenhouses, chicken coops, and similar small structures requiring no land disturbing activity. So this makes it more restrictive or less restrictive? Less restrictive. It would allow you to construct up to 600 square feet. Okay. That makes sense then. But the second part became more restrictive, right? That would also be less restrictive because then you would be able to do 250 square feet in highly sensitive. Okay. Okay. I think I can support this.

[05:23:07] i may have misunderstood original originally yeah missed i don't think i can support this miss brixman you supported it i know i don't know why my light was on sorry okay mr crony uh yeah and i guess it'll be um it'll describe what the 600 square feet um are permitted right the structures that are permitted with the 600 okay as long as it's very descriptive thank you once again this is very very prescriptive overall and to be honest I don't know that I fully understand this motion which is making me a little nervous about voting so I'm going to abstain only because I don't fully understand

[05:23:47] what this motion is doing right now and it's it's a really prescriptive motion that I don't fully understand if everybody else does yay for all of you all all right so miss who you made the motion you

made the motion I made the

[05:24:02] Darn it. I made the motion. I really don't. I really don't. I'm not going to abstain. All the people who say aye. Aye. Opposed? And that would be a 7-1-1 vote because I'm going to abstain and Ms. Umstead's not here. Number 10. Madam Chair, this was probably my motion. This was your motion. You want to go?

[05:24:32] explore permissions for the new construction of residential driveway in the highly sensitive soil area of mod without the need for specs approval motion made second by supervisor sayings this motion comes about yeah this is the natural place for us to resolve it um and again i don't know what the answer is but that's why it's not highly prescriptive here the idea is that the zoc as well as the staff and the planning commission can kind of work on this right now i've had a couple of constituents who built a home and a small portion of their driveway go through the mod

[05:25:10] i mean at less than a few feet and they had to spend a hundred thousand dollars getting the driveway to their that was just the beginning actually i think that was in that they had to go through specs um in order to try to get this done and spend hundreds hundreds to two hundred thousand dollars i think it ended up being somewhere between there in order to just put this driveway to their home. I think that that is egregious when someone's simply trying to get access to their home, they have a building sign, they're lawfully building it, and then they

[05:25:42] got to spend an extra \$150,000. Now, I understand protecting the mod and how much, et cetera, but that's why I think we need to kind of look at this, and the staff feels comfortable with coming up with standards to address this. You're aware of the issue?

[05:26:00] Yes. Okay, thank you. No further questions. Mr. Mr. Crony. Yeah, I won't be supporting this. I do support if it's located entirely within the existing driveway footprint, but this is a highly sensitive area with slopes of 25% or greater, and I can't support new construction of a residential driveway that's, could be 5,000 square feet of land disturbance.

[05:26:29] Mr. Mr. Zanes. Thank you, Madam Chair. so i'll just again being the eastern supervisor so in the east when somebody wants to do their redo their driveway do a new driveway do they have to get a special exception to do to do so no and i'm assuming if you're out west or whatever you know i know there's some concerns about runoff going to the chesapeake peak what we have the same concerns in the east possibly as well i mean this is more associated with the highly sensitive soils located in the mountainside where right but it all

[05:27:08] flows into the Potomac or the Chesapeake eventually as well. So if we're not highly concerned, if I'm doing my driveway or somebody else. No, there's not a special exception in eastern Loudoun for the driveway. Okay. No, go ahead. You're here. Hi, I'm Melanie Mason. I'm in building and development. The reason for the specs requirement in highly sensitive soils is more for slippage because those soils are very prone to slippage and to collapse.

[05:27:43] It has less to do with water quality and runoff. Okay. Well, all right. Well, I still support the motion, but all right. Thank you. Thank you for that information. You're welcome. Mr. Turner. Thank you, Madam Chair. I really want to try and nail down this minor specs in the sensitive areas because this is going to come up again later on tonight.

[05:28:03] So we're in a highly sensitive area. They're going to have to, if they want to put in a new driveway, they're going to have to get a grading permit, an engineering study, and other things, correct, to

put in that driveway? Yes. Okay. So the minor specs adds \$8,000 from the minor specs. Can the minor specs be done concurrently with the other things, the engineering study and the grading permit, or is it sequential in the application process? Ideally, it's sequential, but we often work with applicants to do it consecutively. Yeah. Okay. Simultaneously. Okay. So the benefit

[05:28:40] the minor specs is it's a highly sensitive area and it lets staff take a much closer look and get board approval because it is a highly sensitive area and we want to be careful what we build there and what we're adding is the eight thousand dollars of the minor specs theoretically it can be done and is often done concurrently with all the other things they're going to have to do anyway to build that driveway right right that's right okay Alright, I think that sets the tone for the future minor specs that we've got coming up.

[05:29:13] Thank you. So, I do know the situation where this came up. Woman built a home and she didn't, and as it turns out, she built a kind of windy, a long, windy driveway. Unfortunately, of the long, windy driveway, no kidding, like a half a foot in this part of a bend and a foot in this part of a bend fell into the highly sensitive area.

[05:29:40] So it wasn't the entire driveway. And I did sit with her and we did try to explore other ways for that driveway to go to her house. It would have been literally just a straight incline. And even when she decreased to a reasonable amount, decreased the footprint of the driveway, you have to have a driveway enough for a car to get on it. So the reason I can support this is because it doesn't have any specificity to it. It says explore new construction. And I will say

[05:30:16] that I would hope that when ZOC and Planning Commission takes a look at this, that if possible, no part of the driveway is in a highly sensitive soil area, no part at all. However, if you find that in a long, windy driveway, you got literally a foot on one end and a half a foot on another bend that falls into that area.

[05:30:42] That's literally what happened. And so I do believe for this case and how this came to my attention, Mr. Kirschner's attention, because it was our constituent, she did try to avoid it. But as the driveway turned or kind of bent one way going up, a small piece of it just fell into a highly sensitive area.

[05:31:05] So the fact that this doesn't have any specificity to it is exactly what we need to be doing to figure out how to do this. If it was the entirety of a driveway, that would be an issue for me. If this was somebody that knew that the entire driveway could fall into a highly sensitive area, that would be an issue for me.

[05:31:27] But when you have a driveway that was that long and windy and two small areas, very small areas, fell into the highly sensitive soil area of the MOD, I think we have to work with people maybe even in advance for those things to be worked out.

[05:31:48] So I know this one really well, and the staff did a great job working with this constituent. And she did spend thousands of dollars for two small pieces of driveway, to be honest. So I'm going to support this because there are no numbers attached to this.

[05:32:06] This just says go explore. So that's what we're going to do on this one. Did you make the motion? I did. You want to close? Just briefly, and thank you, Madam Chair, for your support. That's not the only constituent that I've had. I've had several others that, and it's very similar situation, five feet where they have to cross a section.

[05:32:23] And again, I believe the idea is to build up standards so they don't have to spend so much extra money just getting through the process that will address the concerns when doing that. And, you know, I'm sure it's going to be a minimal disturbance and that sort of thing and whatever.

[05:32:40] But I think we can get to where we need to get on this to make it a lot better for our constituents and the citizens of Western Loudoun County. thank you who may be following to the situation it's going to be rare but they're going to fall into it again all right mr kirsten made the motion i i second the motion on people say aye any opposed that motion will pass 7-1-1 number 22 um which also passed 5-0 the business community was opposed to this one i'm yet 22 it was 22. did i not do 11. no ma'am okay i'll go back to 11.

[05:33:18] Let's do this. I'm already I'm already here now. I'll go back to 11. I'll go back to 11. Separate. I'm doing 22 right now. Separate agritourism from the cultural tourism use. 22.

[05:33:33] Two, separate agritourism from the cultural tourism use, consolidate agritainment with agritourism, and make the resulting agritourism an accessory use to agricultural operations with its own specific standards and permissions for agritourism events.

[05:33:57] Second. All right. I got nothing. Do you have something? Again, you know, this was an effort to, you know, consolidate some of the turns to remove agritainment from the ordinance and basically replace it with agritourism.

[05:34:15] We are going to create a new definition for agritourism, which will match the state's definition. Okay. All right. Thank you. Anybody else on this one? No? Yeah, you have a question on this one? Really? Well, I know you said we're going to create definitions, but could you give us the definitions currently for what we have in here?

[05:34:35] Was it agritourism, cultural tourism, agri-entertainment? Can you give us those definitions that are currently? Sure. So cultural tourism actually does include agritourism in its definition, but cultural tourism is land areas used for visitation for cultural, natural, or agricultural education.

[05:34:56] and this includes the following as defined below and that includes agritourism or farm-based tourism which is a commercial enterprise that links agricultural production and or processing with tourism in order to attract visitors to a farm, ranch, or other agricultural business for the purposes of entertaining or educating. Stop right there. Give me an example of a business.

[05:35:18] Would that be a great country farm? Would that fit that definition or no? Anybody? Sure. Yeah. um oh i don't have any that's not a good idea okay i'm gonna lose my time so that agritourism you can't give me an example your example is correct yeah great country farm would fit that okay what about cultural tourism what's an example oh well i'm sorry cultural tourism is what i was referring to so agritainment is that what your other question is well okay agritourism give me

[05:35:57] an example i said great country farm with that farm yes okay all right i can understand that culture tourism give me an example so agritourism is part of cultural tourism as the definition so we're just putting it together we're rearranging the shells in a different way to try to clean it up okay but give me an example so you're saying great country farm would fit agritourism and it would fit cultural tourism right now is that what you're saying yes and we're just kind of put those two together we're putting agritourism agritainment together we're pulling agritourism

[05:36:30] out of cultural tourism and combining that with agritainment because there's just a lot of uses there's three definitions so you're taking you're trying to go from three down to two yes okay now give me an example of agro entertainment it's really the same thing agritourism so that's why we want to combine okay we're just trying to simplify it instead of having three we're trying to go down to two yes okay and then to clarify from your brewery and winery wherever those fit their own uses okay they're separate things okay all right we got a lot to learn but okay if we're

[05:37:07] trying to simplify it go from three things to two things and you're saying two of the three currently right now are the same fine all right sounds good mr kirschner yeah just briefly i'm probably going to vote no on this because of the same old reason that i've said before when we start changing these definitions and regulate it and i and i know the the there are certain stakeholders in the industry that would be opposed to this simply because, again, agritourism activities under state law, unless we can show a substantial impact on public health, I understand what staff is trying to do.

[05:37:39] I appreciate it. I think it's fine, but I'm going to stick with my guns on this one and just vote no, put it on the record that when we start changing and defining these terms, then we start regulating these terms. When we start regulating these terms, I think we run up against state statute in terms of regulation. So you're changing your vote from the first time?

[05:37:55] I am. Okay. All right. All right. I think I made this motion. Who seconded this motion? Mr. St. Second the motion. All in favor, say aye. Aye. So that motion will pass 7-6-1-2, because Mr. Turner is off the dais, and Mr. Kirsten voted no.

[05:38:28] Back to item number 11, and I did have a motion for this one, guys. I sent it out this morning, and let me read it and try to answer the questions of why. So this was one that the business community objected to, and I tried to answer their issue.

[05:38:52] And Jason, you and I flubbed this one today for quite a long time, so let's see if you and I together can get this right today, okay? I move to revise the table 5.04-503 to require non-residential covered activities to demonstrate that a minimum of 50% of the existing forested areas are retained on site and to provide that existing legally established commercial uses that do not conform to this amended standard are not non-conforming uses.

[05:39:29] - Okay, thank you. Motion's made and seconded. So we actually want to make sure that we have as much of, keep as much of the existing forested area as possible. But if we do something different, we didn't wanna say if there were any uses right now that already existed, we were going to make those non-conforming.

[05:39:55] And so I at first used the word grandfather, but I guess kind of that's a different word or not really an appropriate word for this moment. And so we used the word not non-conforming. So we're trying to keep as much force to air as possible, but not punish a business that's already there.

[05:40:16] So in the future, we're keeping it. So that was the goal, and that's why this language looks like, that's the goal of this item. Ms. Bricksman. - Thank you, Madam Chair. My granicus just died on me, but I think I remember my questions.

[05:40:34] What would happen if a winery, say a winery had some forested area and they wanted to convert that to vine and that would make them be under 50%?

[05:40:54] Like in other words, aren't we restricting folks from expanding? - Are you asking me that or are you asking staff? - I'm asking staff. - It could prevent them from expanding if they could not maintain the 50%.

[05:41:11] Okay, okay. And this applies only to MAD, so mountainside overlay only. Oh, it applies only to the mountainside overlay district. Okay. That must be the table 5045 is all about mountainside overlay. Okay, okay. Yeah, but we just had winery people in here that said the best place sometimes to plant the vines is on a mountainside because of the exposure and the drainage, like the might be southern exposure and the drainage.

[05:41:43] so this this makes me a little uncomfortable if we want to let our industry expand i believe that under the current mod regulations um assuming that the winery the farm winery use that you're referring to that they qualify for bona fide agriculture they're exempt oh they'd be exempt okay is that would anyone else be exempt um i think the only other exemption is in the existing house or not that would be residential structure so i'm sorry residential structures this wouldn't

[05:42:18] apply to residential structures to non-residential yeah okay so it would farm wineries are exempt commercial wineries there's a difference right so only bona fide agriculture is exempt that does not include a structure correct so the vines would they're growing something if they're yeah that would qualify whether they're commercial or farm what are the two types of wineries we have again commercial and farm right okay so either one of them would be exempt the vine would be

[05:42:54] exempt so the growing part the bona fide agriculture itself where you're growing the vines that would be exempt the structure no oh if they wanted to take right let's that's what i'm concerned about i'm not yes i want them to be able to expand their agricultural not their buildings necessarily yeah okay all right i guess i'm okay with it thank you mr kirschner so i thought i was going to oppose this, but I know Mr. Turner and I opposed it originally, but what you're saying is this would not impact either a new farm winery or someone engaged in bona fide agricultural

[05:43:32] process for growing. They would not be confined. They would not be non-conforming. Well, no, they wouldn't be confined to the new rec. They'll be exempt is what I'm understanding. Is that correct? Agriculture is exempt. Okay. So what sorts of things would be impacted by this can you because it doesn't include residential so just i guess timber clearing what else that's still a obviously buildings are not timber timber clearing could qualify as exempt i believe as silver culture if it's right beats the requirements for silver

[05:44:07] culture so you couldn't add a tasting room that would be a structure and that would not fall under the exemption but as long as you kept 50 forested under the new definition versus 35 correct okay how about deer fences i mean i'm just i'm not sure what i guess i'm trying to figure out what we're trying to solve here deer fences well what it's a it's a fence i guess to keep out of yeah

[05:44:41] agriculture no but that's not a structure well is that all we're referring to one one of your current amendments is to allow fences in the mod so that would be allowed if that were to go through okay you will come up with deer fences you good because i'm going to go into mr turner um for the for the moment, I guess.

[05:45:09] - Mr. Turner. - Thank you, Madam Chair. So to be clear, I think my original-- - I'm sorry, I'm sorry, I'm sorry. Mr. Sainz, I didn't see you. - Thank you, sorry, Mr. Turner. So would I need to be in a hilly

area for me to be exempted from my winery, or say if I have some hills and I grow grapes on my property and then have a taste room and all that stuff, would I be exempt or would I be part of this?

[05:45:42] - So this is only in the, what is this? Sorry, one, I mean, this is only in the mod areas. okay all right thank you mr turner thank you madam chair so any kind of a winery is exempt it's an agricultural operation it's got an agricultural exemption right not the buildings the vines correct the vines would be i think the reason i objected to this originally as i was concerned that we're going to make a bunch of establishments non-conforming but it sounds to me like we've resolved the non-conforming thing at this stage of the process that's correct okay

[05:46:21] That is actually the reason the business community actually was objecting is because they thought it was going to make a lot of existing things non-conforming, which is why I added that into the motion. Again, I was going to use the word grandfather, but I was told legally the better way to say it is to amend the standards that are not, so that they're not non-conforming uses.

[05:46:45] So I was trying to both, you know, save the forested area and not punish any businesses that are already existing at the same time. Okay. So I make the motion. Mr. Crane second the motion. I'll be able to say aye. Any opposed?

[05:47:03] That motion will pass with Ms. Bricksman abstaining, Ms. Umstead being off the dais, so 7-1-1. Okay, for numbers 28 and 29, so on 28 and 29, we talked about this earlier, depending on, I want to really understand what you're saying when you say bona fide agriculture process, bona fide agriculture production, bona fide agriculture operation,

[05:47:42] because depending on this answer is whether or not I'll make this different motion. So what I'm trying to get to on this one is what we talked about earlier, which is to recognize that a brewery probably cannot, no, not probably, very likely cannot grow all the material that they need to make beers, even half of it, But we still should have some kind of, quote, bona fide, unquote, agriculture product that is produced and could be sold on that property.

[05:48:21] So that's what I'm trying to get to in this motion. But what do you all mean when you say bona fide? That's why I need that answer. That's the 28 and 29, actually, guys. Bonafide agricultural production is the term used by the Code of Virginia.

[05:48:40] Based on that, we believe it is a higher threshold than just regular agricultural production, which I spoke of earlier. The bona fide, that would be a test, basically, standards that would be developed as part of this amendment process from staff.

[05:48:57] Earlier on, we discussed that such standards could take the form of, well, currently, let me back up, bona fide agriculture production also currently is a defined term in the zoning ordinance, so it exists, there are standards. This is the one that Soil Water Conservation District had issues with because they're kind of put in the place of the gatekeeper.

[05:49:19] So as part of this, we would develop other standards that try to remove Soil Water Conservation District from that role that they're currently playing. The things we would look at would be something like land use, inclusion and land use assessment.

[05:49:35] Other things could be for properties that can't qualify for land use assessment. It would be things like are you in conservation, open space easement, possibly agricultural forestal district. You know,

in some limited situations, it may be a county-approved forest management plan or conservation farm plan.

[05:49:55] So I still don't know that I understand what bona fide is, even after all that, to be honest. I'm serious. So if I don't make the motion I have, but I go with this motion, What you're saying in this motion is that the staff would, or between ZOC and Planning Commission, you would create a process by which agriculture production use could be verified as bona fide.

[05:50:27] There already are use-specific standards that define what is bona fide agriculture, so we would be revising those use-specific standards. The primary revision would be to remove Soil Water Conservation District. Currently, the requirement is you have to have an approved conservation farm plan by the Soil Water Conservation District.

[05:50:52] That's what's putting them in the gatekeeper function that they don't want to be in. So you see this motion really as being about the conservation board? That's how you see this motion? About nothing but that?

[05:51:07] That's how you see the motion? I think this would be the, this motion would allow us to be the group that's verifying agriculture is being conducted on that property prior to the building code granting an exemption for some of these farm buildings.

[05:51:26] And does the agriculture that's developed on that property have to be used in what they are selling or any agriculture? We haven't developed the language yet. We haven't developed the language yet. Okay, okay. Well, then that's the case.

[05:51:41] I'm comfortable making the packet motions then. All right. Mr. Kirshner, you and I opposed this, but I'm comfortable with that definition. I'm comfortable saying I move to create a process by which agriculture production uses could be verified as bona fide agriculture productions and make such verification a necessary component of being able to qualify for the building code exception regarding farm buildings our structures. Okay, motion made. Thank you, Mr. Croning, for a second at my motion. Like I said, what I'm really trying to get to on this motion is this, for me, this motion was really about

[05:52:21] ensuring that breweries that could not create enough, grow enough of the product to make beer were able to operate as an agriculture production if they had other agriculture activities on that land that they could develop and sell to add to the rural economy.

[05:52:49] This language could still allow for that. Okay, that is what I'm trying to do then. All right, then I'm good. Thank you. Mr. Kirshner? We don't know what the definition of bona fide is. I think they're going to work. I think they don't know yet. That's my question.

[05:53:04] We know what it is in the statute, state law? I don't believe it's defined in state code. Okay. Virginia code. It uses the term, but I don't believe it actually defines it. Yeah.

[05:53:22] The ordinance currently defines as agricultural conducted in accordance with the standards of section 4.08.01. Which requires approval of a conservation farm management plan. So really, this is just trying to get away from that conservation farm management plan.

[05:53:38] I can't hear you guys. I'm sorry, say that again. We're trying to get away from having the, what is it, Loudon soil? But someone's going to have to make this decision, right? Right. We're trying to come up

with some other test to get the Loudoun Conservation District out of having to be in their regulatory position and approve the conservation farm plan.

[05:54:01] We're trying to come up with a different way to define it. In order to determine whether or not their building is exempt or not? Yes. But isn't that still, going back to the state law on this, how do you feel about when state law talks about this is kind of their purview, you're not allowed to regulate it?

[05:54:27] Do you think defining it is regulating it? I don't think defining it is regulating it. I mean, we already define it. We already define bona fide agriculture. Is the plan, I mean, I would assume partly the plan is to look at the state code and say what is bona fide agriculture.

[05:54:47] I mean, it may not be specifically defined, but we're going to have some instruction there, right? Because if we're not following, if the state code says we can't regulate it, then we better follow what it is they're telling us we can't regulate. We would always follow the state code. I understand that.

[05:55:02] gone through this all right well I'm I'm a little concerned again by drawing out separate defining this specifically because now we're going to define what agriculture ultimately is and I don't think we're allowed to do that I've said that before this looks like it's going to get the it's going to pass but once again we are now looking at defining a number of terms which we're going to regulate which I don't think we're allowed to do so I'm sorry go on oh I

[05:55:38] So I was gonna say, just to address Supervisor Kirshner's comment, under the Right to Farm Act 3.2-301, we can regulate through zoning agriculture. That just says we cannot require a special exception or special use permit for any production agriculture or silver culture activity in an area that is zoned in an agricultural district or classification.

[05:56:01] Localities may adopt setback requirements, minimum area requirements, and other requirements that apply to land on which agriculture, silviculture is occurring within the locality that is zoned in an agricultural district or classification, and then it just says, no locality shall enact zoning ordinances that would unreasonably restrict or regulate farm structures or farming and forestry practices in an agricultural district or classification unless such restrictions bear relationship to health, safety, and general welfare.

[05:56:27] So it does grant us zoning authority with limits. - Fairly significant limits, I would say. - Ms. DeCrony? Yeah, I do want to say that there is state code about farm structure exemption and the fact that it has to be primarily for a farm.

[05:56:47] So there is enough, I think, guidance in this where you guys can come up with some regulation. So thank you. Seriously, I just want to do what I already said. I just want to make sure that if it's an ag business, something's growing.

[05:57:06] That's really what I'm trying to do here. I mean, that's really all I'm trying to do here. Something's growing. That's it. you can't say you have an ag business and you're growing nothing. That's all I'm trying to do. That's it. Okay. That's it. So I made the motion. Mr. Crane second the motion. All in favor say aye. Aye. Any opposed? Nay. Okay. That motion will pass with Mr. Kirchner being a no and Mr. Umstead and Mr. Turner being off the dais. We have one more, 29, which was also part

[05:57:41] of this the same discussion but i but for me you've kind of answered the question and so you want to make that motion mr crony you're good okay establish the use agricultural operation in the zoning

ordinance with associated use specific standards and definition consistent with virginia code 3.2-300 second okay so this is this is just establishing the use agricultural operation. Yeah. I'm fine with that. I would have put this one if I if I had had that ag ag bonafide ag discussion earlier I would have put this in another tranche of questions but

[05:58:18] because I didn't I did I put it here so I'm fine too now that we've had the what is bonafide discussion I'm fine with that one that's not an issue. Anybody else? All right all the people say aye. Aye. Any opposed? Again that motion will pass with Mr. Kirshner opposing it Mr. Ms. Umstead and Mr. Turner and Ms. Umstead. Thank you.

[05:58:41] Okay, supervisors, what we now have to do, because those are all the package motions, yay. Right? Yay. But, well, wait, did you just say 56? No, that's a wrap-up motion. Just calm yourself down.

[05:59:00] Calm yourself down, because we do have motions, not mine. My motions are all done, but we have other motions on the dais right now from Mr. Crony and Mr. Turner. I think not from Ms. Bricksman, because Ms. Bricksman is going to hold hers until June.

[05:59:19] So it's just from Mr. Crony and Mr. Turner, Sebastian Turner, when he comes back out. So since he's not out yet, did we have, did you guys? That's a staff motion?

[05:59:36] Yeah, for equestrian stuff. Did you guys have a staff motion up here for a question and things that you gave me that I didn't see? You do? There was an error with the number of hours of operation, which you appreciated with your motion. We've already done this one, though. Yes. Okay, we're fine. Okay. Listen, don't, don't, don't.

[05:59:52] Don't help me. Don't help unless you're helpful. Okay, Bricksman's not doing hers. So we have two. Actually, we have, well, 57 is a wrap-up motion. It comes in the end. Everybody come down. We have Mr. Crony's motion, two, is it two, Ms. Crony? Two. And Mr. Turner's motion, if he comes back out. If not, I'm not sure what we're doing. But Mr. Crony, would you like to make your motions, or a motion, one of your motions?

[06:00:25] Thank you. Thank you, Chair Randall. So I am going to move the first one, assembly uses. I move that the Board of Supervisors direct staff to create tiered small, medium, and large-scale use-specific standards similar to those in Table 4.05.10-1 for cultural tourism for assembly or event uses of 200 more attendees that are allowed in Western Loudoun but currently do not have use-specific standards based on scale. I will second this for the purpose of discussion.

[06:01:00] Okay, so I consider this kind of a cleanup motion, if you will. The zoning ordinance currently has tiered standards based on the intensity character of cultural tourism, but does not have consistent standards for other large-scale uses in rural districts. The public has expressed concerns with large-scale uses and has requested consistent standards to address traffic, capacity, road access, setbacks, site design, and public health, safety and welfare. My motion addresses public input from stakeholders and residents and

[06:01:39] organizations throughout this process to review all uses by intensity and scale as we go through this process and my motion is consistent with the comp plan to look at adjacent uses, not just the use, to take care of the impact on adjacent uses.

[06:02:00] And this is consistent with what stakeholders had done regarding outdoor and major recreation. We just discussed that. We just did tiers for outdoor and major recreation. And this purpose of this motion is to ensure all large assembly uses have tiered standards in alignment with other intense uses to be consistent.

[06:02:24] - Thank you. Mr. Sainz? - If I may, through the chair to Supervisor Coney. Can you elaborate on what are some of the uses, events, or venues that you're trying to target here, I guess?

[06:02:39] - Well, ones that are missing tiers are rural retreat, cultural facility, religious assembly, and agricultural education or research. Those are uses in the AR-1 and AR-2 districts that currently do not have tiers and that have like 300 people going to these places.

[06:03:02] And so it makes sense to have small, medium and large tiers to align those uses with the other uses. I consider it a cleanup motion so that we're making sure all of the uses in rural Loudoun have tiers, better or large.

[06:03:22] So if I heard what you're saying, a church or religious? Well, yeah, religious assembly is allowed in era one and era two by right. They can have up to 300 people by right, and they could be off a dirt road. So it makes sense, a gravel road, to look at tiers and to figure out, you know, different scales.

[06:03:42] I'm not going to say what it should look like because, again, we're in the Roya. So I would like staff and the ZOC and Planning Commission to come up with what it might look like. So, well, maybe it's in conflict with the motion that we just did earlier for unlimited events.

[06:04:05] So how are you then going to apply standards to that with this? That I did not. I mean, I wasn't anticipating that. So my examples are Rural Retreat, Cultural Facility, Religious Assembly, and Agricultural Education or Research.

[06:04:20] So no, it's on the it's on the purple. So last question for-- Oh, she's talking about something else, sorry. Go ahead. Last question to President Ciccone, trying to understand a little bit better. So when you say Rural Retreat, wouldn't that cover--couldn't that potentially cover some wineries and breweries that have bed and breakfast type things or, you know, whether they have space for a rural retreat is not under an agricultural use it's under commercial use but it's allowed in era one and era two so um no it would not it would not be similar

[06:04:58] rural retreat is a lodging use all right thank you mr ms brixman thank you madam chair um so just to use if i might ask staff just to use supervisor kerney's example that a church or religious organization could build a structure by right in AR1, did you say? In AR2, without any

[06:05:28] special exception or zoning amendment. That's correct? That's correct. If you want a seating capacity of more than 300, you have to get the special exception. But if you have the 300 or fewer seats on 10 acres, then you could do that by right. Well, on 10 acres, wouldn't, oh, AR1, area it could be 10 acres so it has to be 10 acres you're saying yes for a seating capacity of 300 and that and that wouldn't require any permitting for a drive like a driveway or anything

[06:06:05] like that about or a parking lot it would require um like we require permitting go through permitting and site plan yes but it would not require any legislative approval okay but but okay so through But a church of 20, just using this example, versus a church of 100 versus a church of 300 have very different effects.

[06:06:26] No, no, I get you. I hear that. I hear that part. But just so I understand, there would still be some use requirements if someone were to come in and do something by right because they need a site plan and permitting.

[06:06:44] So they may not necessarily be able to build a 300-person church without some requirements. Correct. Okay. By right, it's not the complete absence of requirements. They would have to -- but if there are some they would have to meet, if they check those boxes, then they are allowed.

[06:07:03] Okay. And some of the requirements might include you have to have enough parking. Yes. And you might have to have a paved road. No, that wouldn't be required. You'd have to have water. A well. A well.

[06:07:18] Yes. You'd have to have power. You'd have to have -- what else would you have to have? Building codes. Building codes would have to be followed. I mean, they'd have to comply with setbacks. Yeah, yeah. Okay, and this, I feel like, maybe I'm repeating what Mr. Sainz said, and I apologize, but didn't we kind of already cover that we're going to do a tiered approach for use-specific standards?

[06:07:41] Didn't we already say that in the previous motion tonight? Not for assembly uses. That was separate for ABC uses. Okay, thank you. Mr. Kirshner? So, this says for assembly or event uses.

[06:08:03] so this could be it could be some form of an ag use that we've been talking about correct well for assembly uses so i did or event uses i i mean this is not something that we talked about with any significance so i do not see this as cleanup we didn't have these conversations in our we didn't have the stakeholders come in this motion is just kind of being pulled a little bit out of the blue oh we just got assembly uses so let's slap a bunch of use specific standards on them. I see this not as clean up at all. I see it just as more regulation. Let's see what more

[06:08:42] regulation we can put on top without any discussion during the finance committee process. Excuse me, I am really tired. The TELUC rural zone processes at all. If I think if we wanted to address this, we should have addressed it at that time. So at least we could have had a more thorough discussion on it and we could have brought in more stakeholders to have discussed it to kind of drop this on us and say it's clean up.

[06:09:10] I don't think it's clean up when we haven't really had a full thorough discussion of it. So I just don't think I can support this because I'm not even sure completely what types of assemblies we're really talking about. I know that's what Supervisor Sains was trying to boil down on, I think somewhat Supervisor Brisbane was, but there's just too little we know about this to be able to flesh out in the two minutes we have to discuss.

[06:09:33] So I'm very uncomfortable, I'm not going to support this. So to be completely fair to Mr. Crony, Mr. Crony tried to bring this motion during the TLUC discussion and I tabled that motion, these motions. And that was three weeks ago, at least three weeks ago.

[06:09:50] It was in April. I tabled the motions because I told her that it was too early and we need to see them. So she's had these motions out here for at least three weeks. So if anyone wanted to see the motions, call people about the motions, which I have, talk to staff about the motions, they could have.

[06:10:08] She didn't just send these today. We tabled these motions at the last TLUC meeting, so that was weeks ago. So it's not fair to say that she dropped these at the last moment. She didn't. She tried to drop it

at the last moment before, and we said no. So if you're going to oppose it, oppose it, that's fine.

[06:10:25] It's not fair to say that you haven't had a very long track of which to read it, to understand it, to call her, to ask questions, to call stakeholders. All those things could have happened in the past three weeks. So I just want to say, if you're going to oppose it, oppose it. But it's not because she hasn't followed the exact – I tabled the motion last time.

[06:10:47] And the tabling of the motion was a unanimous vote, including you, Mr. Kirshner. And so you knew those votes were out there because you tabled them last time. So I just think we need to be, everybody needs to be fair right here. Listen, I actually think youth-specific standards are a good idea because depending on both what event and what venue could look very different.

[06:11:20] And so this tiered approach, I think, could be very helpful. And it's one we've talked about. We've talked about this for a long time. You know, I actually, had I thought about it, even for the hours of operations, I could have put maybe a use-specific standards for hours of operation.

[06:11:37] If your operation is 400, you're sitting on 400 acres, maybe you can go 9 to 9, maybe you can go 24 hours a day because no one can hear you anyway. Whereas if your operation is sitting on 10 acres, it's busy, it's different, which would have been a tiered approach.

[06:11:53] And so I think to have a tiered approach actually may actually in the end say you have less regulations on larger businesses or larger venues because they don't have to adhere to the same regulations that you might have on a smaller parcel of land.

[06:12:13] So in some ways it may give some people, in fact, many of the larger venues, less regulations. So I'm fine with this, and we've tabled it already, and she brought it back exactly when we told her to bring it back some three weeks ago.

[06:12:31] Would you like a closing? Thank you, Chair Randall. And, you know, just so everybody knows, the Rural Economic Development Council, when they looked at the ZOR in July of 2022, they recommended levels or tiers for different scaled operations.

[06:12:51] different sized operations small medium and large so this isn't a new idea you know this has been thought about before and as chair randall said you know larger operations they won't have as great of an impact so it's looking at um the scale and and just creating tiers and this is a this is aroya so you know there'll be time for everybody to look at it and to have input one staff creates it and the Planning Commission looks at it all right mr.

[06:13:22] Crony made the motion by second the motion miss Brixen's off today is all people who say aye I oppose that motion will pass I think that's five two two that's I think I'm getting here five two two with mr. Mr. Sains and mr.

[06:13:43] We're cursing and saying no when Ms. Bixman, Ms. I'm stepping up to dance. Ms. Okay, for the first time ever, via our rules of order, I have to make this motion. Supervisors, I make a motion that we continue, since it's after 12 midnight, I make the motion that we continue this meeting until we finish it, not to go later than 1 a.m.

[06:14:10] I do need a motion. Why don't I need a motion? It's a regular meeting. It's a business meeting. If you're going to start a new item. I am going to start a new item. Well, a new item. I see what you mean by a new item. It's all the same. Does the board say you promptly resolve the item that you're dealing with?

[06:14:28] Yeah, it's a new item versus a new motion within. Okay. All right. Never mind. Good. Keep going. Okay. Don't move to the mountainside. All right. So we have three more motions. Mountainside? Yes.

[06:14:44] Okay. I move that the Board of Supervisors require a minor special exception for all non-residential covered activities in the somewhat sensitive and sensitive areas of the Mountainside overlay district. Again, for purpose of discussion, I will second this motion.

[06:15:00] Okay, thank you. You're welcome. The MOD was discussed at the September 30th Stakeholders Meeting. This motion is based on feedback and discussions with members of Friends of the Blue Ridge Mountains and Loudoun Soil and Water Conservation District. This motion only applies to non-residential activities which are a higher intensity than low residential development.

[06:15:24] Right now a SPAC is required in the highly sensitive areas of the MOD for all non-residential activities. This motion will require a minor SPAC in the somewhat sensitive and sensitive areas of the MOD to limit land disturbance, impervious surfaces, and clear cutting of mature forests that stabilize steep slopes and prevent erosion, protect groundwater recharge areas that are critical to our drinking water supply, ensure mountainside development is compatible with the existing soil conditions, and will not impact natural resource areas.

[06:16:03] This motion does not apply to Bonafide Ag as this activity is a permitted use in all areas of the M.O.D. Hey, hey, hey, what are we doing? Yeah. No, no, no, no, no, no. That was just, she's in the, she's talking.

[06:16:19] Yeah. Finish up, please. And it does not apply to Bonafide Ag. So Bonafide Ag is a permitted use in all areas of the M.O.D. Neighboring Clark County and Fauquier County do not permit by-right non-residential development on the shared mountains of Blue Ridge and Paris Mountains.

[06:16:40] I just wanna say that I did get the amount of acreage in the MOD. So the villages, it's only 1.12%. The rural historic, so it's a very small percentages of the MOD is in our villages.

[06:17:05] The majority are in the AR1 and AR2 districts that are not in the towns or the villages. So if you wanna look at that map, you'll see that the MOD is largely the Blue Ridge Mountains and there is the Paris Mountains, but this will help protect our mountainside.

[06:17:22] It is one of the only areas where there's a contiguous preservation of mature trees and natural resources. - Thank you. - Thank you. Discussion on the motion. - Mr. Kirshner.

[06:17:39] - All right, so I would encourage my fellow supervisors to come up here and look at this map. If you hadn't had a chance, for those of you who are on TLUC, if you see what this motion ultimately is going to do, it's going to regulate the somewhat sensitive and sensitive areas.

[06:17:54] All that in green and yellow is a somewhat sensitive in sensitive areas. Okay, you're going to see stuff along Harmony Church Road. You're going to see stuff in the village of Payonean Springs. You're going to see stuff up and down between Lime Kiln, all the way up through Waterford.

[06:18:13] Now, I, as much as anybody, want to make sure that we do the proper preservation, but we haven't done any study on this and what this is going to impact, what parcels is going to impact, what current businesses, quite frankly, it's going to impact. and I appreciate that it's going to be exempt for agriculture but we we are now putting a motion out here that and I've I've warned this is going to be an

absolute nightmare if this passes and this is why I brought this map out to show all the different areas in green and yellow that are nowhere that aren't even in the mountainside they're considered um in the the somewhat sensitive

[06:18:50] and sensitive because of the way the map's drawn I think largely it doesn't even have to do with slopes is that my understanding generally it has to do with elevation in large part is that correct staff has someone can you explain that it typically has to do with um soils soils and then with groundwater recharge and then elevation and forestry cover are a part of that and do we know and have we looked at the total how many parcels this is ultimately going to impact that someone in order to open a little cottage business on their property or in the village or down on harmony

[06:19:25] church if they wanted to do something on that particular how many parcels that's going to ultimately impact we haven't looked at that have we we have not we have no idea no sir so i think i think this is way too premature to just say hey let's do this protection now um what kind of these these particular um these sensitive and somewhat sensitive already have a level of protection is that correct that's correct so if you wanted to open up a business now what would have to do there's a lot of development standards that you have to apply you're limited on the amount of land that you can disturb you're limited on the amount of land that you can clear

[06:20:06] so there's already a lot of a lot of restrictions on the property already highly sensitive requires the specs sensitive and somewhat sensitive just require you to get the the approvals that you need like the grading permit if you need a site plan approval those sort of things right so this This would require a minor special exception, so we as the board, just remember, so anytime anyone wanted to do, right now it's going through the staff process.

[06:20:30] There are certain limitations on what they can and cannot do. If we were to pass this motion, first of all, it's going to be very prohibitive for the standard person who wants to do whatever small industry it is on their personal property, but then it's going to have to come to us, and we're going to have to decide on it.

[06:20:46] I'm going to stop you because your time's up, sir. That is not efficiency. Thank you, sir. Ms. Brixman? Thank you, Madam Chair. What's required now for non-residential activities in those somewhat sensitive and sensitive areas of M.O.D.?

[06:21:01] They have to adhere to the development standards, which generally limit the amount of land that they can actually develop on their parcel. So it's limited anywhere between 15 to 50 percent of the land that they can actually use. And then they have to adhere to our tree cover standards, so they have to have a specific amount of tree cover based upon the parcel area.

[06:21:25] So they could be limited to as little as 15% use for non-residential in these areas? I think that might be the highest. Or it would be a range from 15% to 50%, so no more than 50%.

[06:21:41] There are, yes. Okay, okay. So it sounds like there's already some significant restrictions. Yes, it's already very difficult to build in those areas. Okay. And then what if it was, say, an ag use or a bona fide ag use?

[06:21:59] So the agriculture itself would be, the structures would not be. Same as the discussion we had a minute ago. Correct. So if you wanted to build a barn to hold your tractors to farm your agriculture, you would have to get a minor special exception for that.

[06:22:17] Okay. And are there any non-residential activities there right now that would be non-conforming if we did this? I don't know the answer to that.

[06:22:32] We don't know the answer to that. Okay. Non-conforming wouldn't come into play. This is just to require a minor special exception for new. Oh, so it would only be moving forward? Correct. Okay. Okay. Do we know how many acres or how many lots are in the sensitive, in the two areas that are in the motion?

[06:22:53] how many acres by any chance we do not know that staff didn't examine that because it's a board member motion yeah uh-huh okay okay it's a board okay and what was this discussed at all in the tluck meetings this idea well i guess the emotions the chair said the motions were brought then table so they were brought like three weeks ago and then table and they were discussed during the teluk meetings there was an original motion to require a special exception and that failed

[06:23:30] but even a minor special exception could require like the drawings the woman had earlier tonight that cost they could require the engineering drawings that cost a hundred thousand dollars even if i know that you that the county doesn't charge that i know that's like depending on the lawyer you get or the engineer you get or whatever the cost could vary but the cost could potentially be a hundred thousand dollars and coming through heat to us for a minor special exception yes they would have to incur those engineered drawings yes okay all right thank you mr turner thank you madam chair so once again to rehash the minor special exception it sells

[06:24:08] about eight thousand dollars it could be done concurrently there this would not apply to the vines of a winery it would reply to non-residential buildings associated with the vines or any non-residential buildings that don't have an ag exemption and the minor special exception would require the applicant to come to the board for approval, correct? Yes, that's correct. Okay.

[06:24:37] And it only applies to new buildings going forward? Correct. Okay. I originally thought this was overkill, but based on the discussion tonight, I do not think this is an especially onerous requirements since they already have to get engineering studies and they already have to get grading permits which are extensive and I just I think I think it's reasonable to have the board look at anything that's going to be built in the mountain overlay district in in the mountain overlay district that's not that's not agriculture I'll support it thank you so my issue with this is

[06:25:15] this is not a royal motion that's my issue with this this is I move the Supervisors require a minor special exception for all non-directional covered activities. This doesn't say that you study it, that you look into it, that you do it. This is a direction, which is not what Aurora is supposed to have.

[06:25:34] And so it is also true that she brought this three weeks ago. That's all true. What I said is all true there. But Aurora is not supposed to be. It's an intent to amend. At this point, this is direction, straight direction.

[06:25:51] And so if this was investigated, if this was discussed, if this was taken to the zoning ordinance group or taken to the planning commission, okay. But for Aurora motion, this is not Aurora motion. This is what we're doing right now.

[06:26:07] So in another setting, I might say yes, but I don't think this is an appropriate motion for Aurora. And this is what we're trying to do today. so I'm going to it's not even that I agree or disagree with the with

the thrust is that I'm trying to keep us focused on what we're doing tonight which has been very tough to keep us focused on what we're doing tonight and I would also say that if you were talking about um Mr.

[06:26:42] Fixman can you guys please be quiet I'm just begging you it's so hard to run a meeting when people are talking. I'm also going to say that because it's a minor special exception, well, that doesn't even matter. My issue, Mr. Crony, is I don't think this is an appropriate motion for Arroyo. Would you accept a change, an amendment to explore? I would accept that because I think that would be an appropriate term for Arroyo. Yes, I would. Because this says require. To explore.

[06:27:17] okay thank you I can do that okay all right would you like to close yeah we know there are water supply issues in western loudon the county is doing a groundwater monitoring program to collect data and we heard from delegate McAuliffe today that he got through the state a DEQ study to study the threats the mountain overlay district gives us the groundwater recharge it is it will help us preserve our water resources, especially when we have deficits and water supply issues in western

[06:27:56] Loudoun County. And I also asked staff, what are the benefits of doing something like this, of adding a minor spec where it comes before the board and there's public input. Staff said that, building and development staff said they could put, you know, it'll give them review to put conditions or make recommendations to limit disturbance within certain soils forested areas or steep slopes as appropriate and also it gives the public a voice. So we've heard tonight that the public values and wants to protect the mountainside. We had a bunch of yellow t-shirts

[06:28:33] here tonight so I think I think it's worthy to explore this and see whether this will help us protect it from larger non-residential structures. Thank you. Point of clarification, you're changing the word require to explore. So would you please move, would you please read the new motion as it would read? Yep. I move that the board of supervisors explore a minor special exception for all non-residential covered activities in the somewhat sensitive and sensitive areas of the mountainside overlay district. Thank you. All right. Mr. Coney made the motion. I second the

[06:29:08] motion on people to say aye aye aye aye opposed okay that motion will fail I don't know more people said no than yes I have no idea five three one let's go with that we're going five three one let's go five three one okay um Mr. Turner you have a motion and then we have a wrap-up motion then we are done yeah well but but I actually he does but no I think the motion on the white paper can be wrapped up in a wrap-up motion could be wrapped into a wrap-up motion you're not gonna support this oh okay well then maybe you can't be wrapped into a wrap-up motion

[06:29:45] i knew that no i want to i want to have a discussion okay we're going to go and do the motion you want to you want to make i move the board of supervisors direct staff to establish a minimum i move the board of supervisors direct staff to explore the establishment of a minimum setback of 50 feet for outdoor private party areas accessory to bed and breakfast homestay and bed breakfast in uses. I further move that the board has supervised the direct staff to explore establishing a minimum setback of 50 feet from the parcel boundaries of any agriculturally or residentially zoned properties under separate ownership for outdoor tasting rooms and similar

[06:30:21] outdoor activities at farm wineries. Very briefly, this just makes 50 foot setback the standard basically in all outdoor agricultural uses. That's kind of what we'd like to do as part of the royal process i'd like the zock and the zoning and the planning commission to look at using 50 feet as a standard i was very concerned about this and wasn't sure i was going to support it because of the making existing uses non-

conforming but i'm assuaged that the non-conforming use is not that big a deal and we can work around it so i i think a 50-foot standard would be a pretty good

[06:30:59] agricultural outdoor use standard thank you anybody else miss brixman i guess isn't this just as prescriptive as the last motion that we said explore supervisor to crony just had i mean staff would you think this is just as prescriptive as the previous motion i don't think so because it asked us to explore it and i will add dave was just telling me that there's actually a 50-foot landscape buffer that's already required so technically we don't need the motion is a 50 foot setback so we don't need the motion is that

[06:31:39] what you're saying that we already have it so for for outdoor private party areas they must meet the landscaping buffering and screening requirements of 70403a7 and one of those requirements is a 50 foot setback from the lot line so that's already in the zoning ordinance for so for this first part of the motion is already in the zoning ordinance for private party areas outdoor private So I'll make it friendly that we only do the second part of the motion.

[06:32:11] It's Mr. Who did second this? I just want to be clear. So the first part of the motion is already covered by our existing zoning ordinance. The second part, though, I accept the friendly if the second part is relevant now. Yes. Okay. I'll accept the friendly, too. Okay.

[06:32:30] And I think I'm still in my time, but I think I'm still in my time. So let me just ask the second part of the motion, a 50-foot set-pack parcel boundaries of any agriculturally or residentially zoned properties under separate ownership for outdoor tasting rooms.

[06:32:49] I don't – can you define – can you explain that to me, define that for me? Separate ownership is the key? It would just be when the – is it not – I'm sorry, it's late and I can't think.

[06:33:16] Is it not when it's just a different owner? Like if you have a tasting room on one property and then on the adjacent property is under separate owners. So somebody, I'm using literally the word, if it's owned by somebody else.

[06:33:32] Okay, all right. Hey, you're really doing great, honestly. I don't know how you've been able to find all the crap we're asking you about anyway, so we're all tired. Don't even worry about it. I'm undecided, but I will stop now. Thank you. Mr. Crony.

[06:33:49] Thank you, Chair Randall. Well, so I just want to clarify that the lodging, the minimum setbacks of 50 feet for outdoor private parties, I thought we had a 25-foot district default for the lodging, just because I think staff had made that motion a while back.

[06:34:08] Yeah, so this was something that was discovered. I mean, it's in the zoning ordinance, but yes, like an AR-1, well, depending on the type of AR-1 lot, it is 25. but this is in the zoning ordinance already we just it was overlooked oh okay okay so we just need it for the 50 feet for outdoor private parties right for farm wineries right that's it that to make a so this is a consistency motion correct yeah this is so that we can get consistency

[06:34:42] see. Okay, thank you very much. Mr. Kirshner. Yeah, briefly. So the only thing this really is looking at is there are some circumstances where we're at 25 feet, correct? No? So this is really, or I'm sorry, I guess I'm looking at, it can be looked at in two different directions, but right now the lowest setback we have is 25 feet, right? For farm wineries, yes, 25 feet, and this motion would increase it to 50 feet.

[06:35:22] It would look at it, it would direct staff to look at. Correct. To examine. And do we know how many of our farm wineries would be non-conforming if this were to pass?

[06:35:38] No, we do not know at this point, but what we could do is add the language that it applies to new. Yeah. Would you accept that as a friendly, that it would apply to new farm wineries? I thought by definition anything we pass in the zoning ordinance applies to new and later.

[06:36:02] It doesn't go back. It does go back unless there's provisions written in that somehow negate that. We've already given direction that we're going to add those provisions to make existing uses conforming, not non-conforming.

[06:36:22] That's staff's understanding that that's what you would like to do throughout this process. I don't think we need the friendly, I think it's already presumed. So is it staff's understanding then that Mr. Turner's understanding is correct that when we look at this with Zoc and with the Planning Commission, it's with the idea of new wineries only?

[06:36:42] Yes, because it's our concern because you've told us we do not want to create non-conforming uses. So we will take that into consideration when drafting all the techs for this project. Okay, are there any other other than farm wineries at 25 feet? Is everything else look is it are the buffers on everything else?

[06:37:03] I've thought for some reason that is less than 50 feet right now And I appreciate Supervisor Turner trying to make things consistent, but I just want to understand this because I thought we'd gone through this What's that limited brewery is already has it's already 50 feet? Okay, so that won't impact them How about does this cover when we say residential zone properties is this cover B&B's?

[06:37:30] I'm kind of out of time, Madam Chair, you're trying to figure out my question.

[06:37:51] Yeah, I know, I think you're figuring it out. I'm just letting Madam Chair know, being helpful.

[06:38:10] So right now the way the wording is, is that it's based on the zoning district. So AR1 or any residential zoning district, if the desire is to have it separated by use and not by the district, then the language of the motion would need to be slightly changed. Can I ask a question, Madam Chair?

[06:38:30] I'll use my time for closing. He's out of time. they finished answering him i was gonna i don't know i'm not allowed to ask are you finished answering mr turner yes i mean mr kirsten yes okay is there is there some kind of a default 25 foot setback somewhere in the zoning ordinance i was under the impression there is a default 25 foot setback that allows major production facilities to be built 25 feet from the property line yes like a the ar zoning district okay the intent of this is to make the default 50 feet get rid of the 25 foot default

[06:39:10] make the default 50 feet. Don't make anybody non-conforming. Just get rid of the 25-foot default, turn it into a 50-foot default. And if you want, I can amend my own motion to make it even fuzzier than it is. I mean, the motion would be explore the possibility of making the default

[06:39:46] setback for all of AR1 and AR2 50 feet. So not just farm wineries, the entire district? Everything, 50 feet. I mean, what? I know this is way too easy. I know. I guess as the zoning Administrator though I want a little bit of clarification of what you're asking for here sir are you asking for us to change the AR district setbacks period that would be for any use what we're trying to well you tell me the easiest way to do this well what I'm trying to do right now

[06:40:25] is we have a sounds like we have a default setback of 25 feet and then we allow 50 feet or we're asking for 50 feet for specific uses what I'm saying is cut to the chase if we're okay with 50 feet and we can isolate to outdoor event uses if we want to right so what we already have in the zoning ordinance for the lodging uses is a 50-foot buffer yard so there has to be if you have outdoor areas associated with the lodging uses there's a 50-foot buffer that you have to have to the adjacent property so

[06:41:00] my understanding is are you looking at farm wineries farm breweries distilleries all of the abc uses if there is an outdoor area associated with it they have a do you want a 50 foot setback or a 50 foot buffer yard consistent with what's already in the zoning ordinance what's the difference the difference would be the buffer yard requires certain plantings i think right now it's a it's a type b buffer yard which has like 90 plant units it's a 50 foot wide buffer i like that it's not just a vacant setback it's a buffer i like that i like that and that would be for all

[06:41:37] ABC uses. Correct. And I think the difference is that you could have multiple parcels under the same ownership. We want to make sure that it's not at the parcel boundary, it's at the perimeter of the winery. Yes. Okay, so Mr. Turner, you're out of time, so would you like to change your motion, do anything with your motion so we know what we're voting on now? I would like to do that.

[06:41:57] Okay, so do that now so we can take the vote. I would move that we explore the possibility of establishing a 50 foot buffer a 50 foot type b buffer yard for all abc uses in the ar districts in the air districts okay so he's he's he's um 50 foot type people i understand i understand what you're saying i'm just trying to make sure that that motion's not so different it's because if the motion's too different well you'd have to withdraw your other motion put this motion in and we're not doing a whole nother round of questioning okay we're not doing that we're not

[06:42:37] so i'm going to say that you kind of friendly amended your own motions which you just did okay that's that's that's what we just that's what just happened you friendly amended your own motion that was seconded by mr crony so everyone has spoke on that motion all in favor please say aye aye aye opposed you gotta be kidding me oh my god all of that all of that okay okay all right Fine. All right, so now it's time for the last motion of the night. Praise God.

[06:43:12] Is that 5-3-1? 5-3-1? Is that failed 5-3-1? I don't know. Girl, I don't know. I'm trying to take notes. I think it was 5-3-1. I'm going to say, yeah. I'm going to go with 5-3-1, yes. Yes, yes, sure.

[06:43:29] Okay, so this is my question. Motion number, for the last motion tonight, can I make motion number 57 and add the part on there that I would add, or is that the last motion? We do need the motion on the actual Roya.

[06:43:45] And the actual Roya, so do this and then do that motion on page 22, and then we're done, right? Correct. Okay, all right, so I'm going to do this motion then. No, no, no, oh, Mr. Turner. No, forget it.

[06:44:00] Okay, no, we're not making it. I mean, I had such success on the last one. I'm not going down that road. Yeah, we're not making it. We're not making it. Okay, so this is the motion I'm making right now. I move that we make any necessary revisions to the zoning ordinance as appropriate to ensure consistency among uses and use-specific standards as related to amendments associated with ZOAM 2024-0002 Western, Loudoun, Rural Uses and Standards, and to ensure no conflicts are created.

[06:44:31] And I further move that the standards adopted under this ordinance amendment shall be interpreted and apply consistently with standards applicable to equivalent uses and operations intensities

throughout Loudoun County. Any standard applicable in western Loudoun County zoning districts that is more restrictive than the standards and equivalent use of the operation intensity anywhere else in the county shall be supported by a specific written finding fact documented, documenting the basis of the differential treatment.

[06:45:07] So, in other words, all I'm saying is this standard is countywide because we said that when we – I need a second. Okay. It's on the page that I have. I'm sorry. What I'm saying is this – when we put into place the – what did we call them?

[06:45:31] We didn't call them proactive. We called them – Rapid response. No, we didn't call them that either. Compliance. We said it's compliant for the whole county all the way through. So I'm saying that what I'm saying right now is what we did today, any zoning changes that we made, if those zoning conditions are found in the east, then they also apply to the east, is all that it's saying.

[06:45:55] Okay? You seconded that. Any discussion on this motion? It's really not that hard. All in favor, please say aye. Aye. Any opposed? Okay. Thank you. That motion was 801. And now the motion on page 22.

[06:46:15] no it's in the package yep I think this motion is not even that first part this motion is I move that the Board of Supervisors direct staff to revise the Loudoun County's ordinance as follows to allow the relevant transportation and land that's what not that part it would be attachment one the resolution I'm sorry but yeah I further move and what you're looking at on page 22 after the

[06:46:51] two bullet points yeah oh that's all yes oh I further move the board Well, then there wouldn't be any further move because it's a whole new motion. Yes. So I move that the Board of Supervisors adopt a resolution of intent to amend the Loudoun County 's ordinance provided as attachment one to the May 4th, 2026 Board of Supervisors business meeting action items.

[06:47:10] And shouldn't I say in all relevant changes made this evening, made on, no, well, yes, I should actually. Yes, I should. Yes, I should. And all relevant changes made on the May 4th, 2026, Board of Supervisors Special Business Meeting action item.

[06:47:29] Motion made and seconded. All I wanted to do in that motion was make sure we got all that was already there, and we made sure that we captured all that we've done tonight. That's all that motion's doing. It's not doing anything else. Point of clarification, was that the packet motion?

[06:47:46] It was the packet motion. It was the end of the packet motion. It was the end of the packet motion, yep, packet motion. On page 22? Instead of saying I further move, I just said I move because it's not a further move motion. It's an I move motion because the rest of the motion wasn't made. So I just went with I move.

[06:48:04] So if you see where it says I further move, take that part away. Just say I just said I move. Yeah. I made the motion. The chair of TLUC seconded that motion. I think we're good. You're good, Mr. Turner? I'm good. Your light's on. All right.

[06:48:19] All in favor, please say aye. Aye. Any opposed? That motion will pass, 8-0-1, and we are done. Now we can clap. Yes, yes, clap, clap, clap. Thank you.

[06:48:35] Wait, staff, thank you, thank you, thank you, thank you, thank you very much. You all have been phenomenal.



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